

COLONIALISM, VIOLENCE AND MUSLIMS IN SOUTHEAST ASIA

The Maria Hertogh Controversy and its aftermath

Syed Muhd Khairudin Aljunied

ROUTLEDGE

This is a richly textured, theoretically provocative analysis of the Maria Hertogh Controversy, an outbreak of ethno-religious violence in 1950 which continues to reverberate through debates about the politics of multiculturalism in Singapore and Malaysia. Until now this case has been little known outside Singapore and Malaysia in part because it did not escalate in the way that such incidents often have in neighbouring countries. That is exactly why the case, and Aljunied's analysis of it, is so important. They show us how elite intervention and concerted efforts at reconciliation and confidence building can ameliorate violence. A must read for those concerned with the interplay between ethnicity, religion and collective violence in Southeast Asia, and globally.

Mark Woodward
Associate Professor
Arizona State University

Khairudin Aljunied has undertaken a profoundly important task: to set the Maria Hertogh controversy and the violence that followed it in the context of colonial rule in Southeast Asia. His superb account, unparalleled in detail, is an exceedingly significant contribution to our understanding of British rule and resistance to it.

Donald L. Horowitz
James B. Duke Professor of Law and Political Science
Duke University

The Maria Hertogh riots of 1950 represent one of the iconic markers in the emergence of contemporary Singapore and Malaysia. Together with subsequent incidents in 1964 and 1969 they remain a powerful motif in debates about the violent potential of religion and ethnicity in the pluralistic environment of the city-state. In this new analysis of events, Dr Aljunied provides a highly perceptive and readable account of these events, focusing especially on the ruling regime's strategies in their aftermath. The wider implications of such events for the legitimacy of the State and for contemporary engagements are also examined in this significant book.

Michael Hill
Emeritus Professor
Victoria University of Wellington, New Zealand

Colonialism, Violence and Muslims in Southeast Asia

This book deals with the genesis, evolution and far-reaching effects of a legal controversy and the resulting outbreak of mass violence, which determined the course of British colonial rule after the Second World War in Singapore and Malaya. Based on extensive archival sources, it examines the custody hearing of Maria Hertogh, a case which exposed tensions between Malayan and Singaporean Muslims and British colonial society. Investigating the wide-ranging effects and crises faced in the aftermath of the riots, the analysis focuses in particular on the restoration of peace and rebuilding of society.

The author provides a nuanced and sophisticated understanding of British management of riots and mass violence in Southeast Asia. By exploring the responses by non-British communities in Singapore, Malaya and the wider Muslim world to the Maria Hertogh controversy, he shows that British strategies and policies can be better understood through the themes of resistance and collaboration. Furthermore, the book argues that British enactment of laws pertaining to the management of religions in the post-war period had dispossessed religious minorities of their perceived religious rights. As a result, outbreaks of mass violence and continual grievances ensued in the final years of British colonial rule in Southeast Asia – and these tensions are still relevant in the present.

This book will be of interest to scholars and students of law and society, history, imperial history and Asian studies, and to anyone studying minorities, and violence and recovery.

Syed Muhd Khairudin Aljunied is an Assistant Professor at the National University of Singapore. His research interests include colonial history, the history of ideas, ethnic minorities and social identities.

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Routledge
Taylor & Francis Group
LONDON AND NEW YORK

First published 2009
by Routledge
2 Park Square, Milton Park, Abingdon, Oxon OX14 4RN

Simultaneously published in the USA and Canada
by Routledge
270 Madison Ave, New York, NY 10016

Routledge is an imprint of the Taylor & Francis Group, an informa business

This edition published in the Taylor & Francis e-Library, 2009.

To purchase your own copy of this or any of Taylor & Francis or Routledge's collection of thousands of eBooks please go to www.eBookstore.tandf.co.uk.

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British Library Cataloguing in Publication Data
A catalogue record for this book is available from the British Library

Library of Congress Cataloging in Publication Data
Aljunied, Syed Muhd. Khairudin, 1976–
Colonialism, violence and Muslims in southeast Asia: the Maria Hertogh controversy and its aftermath/Syed Muhd Khairudin Aljunied.
p. cm.
Includes bibliographical references and index.
1. Riots—Singapore. 2. Muslims—Singapore. 3. Hertogh, Maria, 1937– I. Title.
HV6485.S55A54 2009
959.57′04—dc22 2008050626

ISBN 0-203-87683-0 Master e-book ISBN

ISBN13: 978–0–415–48594–4 (hbk)
ISBN13: 978–0–203–87683–1 (ebk)

ISBN10: 0–415–48594–0 (hbk)
ISBN10: 0–203–87683–0 (ebk)

Studying colonial history reminds us that in the most oppressive of political systems, people have found not just niches in which to hide and fend for themselves, but handles by which the system itself could be moved.

(Frederick Cooper)

To understand Malaya, study our recent riots. They were a great uprising of Malays against the centuries of British arrogance. No one led the rioters. No one told them what to do. They simply went out and killed all the white people they could find.

(Abdul Samad bin Ismail)

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Preface and acknowledgements

Although much ink has been spilt on the genesis and outbreak of the Maria Hertogh riots in Singapore, the far-reaching effects of the first among a series of incidents of mass violence which determined the course of British colonial rule in post-Second World War Singapore and Malaya has remained an under-developed field of study. How did the colonial state deal with the outbreak of mass violence and its immediate aftermath? To what extent did local individuals and organisations assist in the restoration of civic order following the riots? Did the legal controversy invite protests from the wider Muslim world? What were the implications of the riots upon Muslim and non-Muslim relations? What about the crowds that unleashed chaos and brought the island to a complete standstill for two full days? Who were they? Were they simply riff-raff and hooligans? What were the forces that drove them to stand up against the colonial state? How significant were the riots to all parties involved? By uncovering the answers to these and other related questions, I hope not only to present a fresh interpretation of a distinctive moment in the history of Singapore, but also to offer new angles of vision that will challenge conventional assumptions about British colonialism, mass violence and Muslims in Southeast Asia.

I have made extensive use of archival sources, governmental reports, newspapers, periodicals, private papers and oral interviews found in Britain, United States of America, the Netherlands, Australia, Malaysia, Indonesia and Singapore in the course of writing this book. By marshalling such a wide array of materials, it is my hope that the voices and agency of both state and non-state actors could be recovered. The term 'Muslims' used throughout the book includes Indians, Arabs, Malays, Chinese, Eurasians and Europeans whose working language was Malay or English. The reactions of Muslim and non-Muslim Chinese and Indians, as well as Dutch and Pakistani personalities and organisations, will be integrated into the narrative in so far as they affected the British colonial administration and other communities in Singapore and Malaya. Such insights are by no means exhaustive. Indeed, it is crucial to point out that Dutch and Pakistani activism in the course of the Maria Hertogh controversy each requires a separate scholarly analysis. To deal with these topics in detail would be an enormous undertaking that would not be possible within the confines of this book. References to 'riots', the 'outbreak of violence' and 'mass violence' are used interchangeably to

describe crowds and groups of people who committed acts of violence towards Europeans and Eurasians in the colony in reaction to the Maria Hertogh legal case. 'Maria Hertogh' was also known by her Malay name, Nadra. I refer to the same girl by both names, just as both names were employed in public discourse at the time of the riots.

The period between the immediate aftermath of the Second World War and the eve of the 1950s form the chronological limits of this book. Even so, the main part of my analysis begins on 13 December 1950, upon the discontinuation of mass violence. It ends towards the closing of the year 1953, which saw a decline in activity among all parties involved in the Maria Hertogh controversy. Some discussion will also be devoted to developments beyond the given time frame insofar as they illuminate or provide necessary background for the understanding of the causes and long-term effects of the riots.

Travelling across a few continents to complete a book such as this one requires the support, generosity and expertise of families, friends, colleagues, and staff members of various libraries, archives, cafes, religious sites and bookstores. I am most indebted to Professor William Clarence-Smith of the School of Oriental and African Studies, University of London, who supervised my doctoral thesis (upon which this book was largely based) with much patience, wisdom and enthusiasm. His cheerful disposition and intellectual rigour have been a source of inspiration. My two examiners, Dr Timothy N. Harper and Dr Rajeswary Brown, as well as two anonymous reviewers, gave me detailed and perceptive comments that brought about numerous improvements to the book.

My own family has helped me in countless ways. Abah (Noah) and Mak (Noraishah), as well as Adha, Sakinah, Hamzah and Khadijah gave me endless encouragement during tough times. I do hope that Inshirah, Fatihah, Yusuf and Muhammad will derive some benefit from a work that has been written at various intervals when I was asked to read, play and sing to them.

The National University of Singapore and the Tan Kah Kee Postgraduate Scholarship provided generous funding for the research for this book. I thank Professor Tan Tai Yong (Dean of the Faculty of Arts and Social Sciences), Associate Professor Shaharuddin Maaruf (formerly Head of the Department of Malay Studies) and the scholarship committees for their assistance in this regard.

I am most grateful to Cik Zaitun Juhari, Terenjit Singh and Syed Ali Alsagoff for providing me with some useful sources and photographs. Erik Holmberg, Maurizio Peleggi, Max Lane, Kamaludeen Mohd Nasir, Derek Heng, Syed Nazir, Loh Kah Seng, Sophiandy Sopali, Chng Nai Rui, Jan van der Putten, Timothy Barnard and Omar Moad read initial drafts of the book and sharpened many of its arguments. Professor Anthony Stockwell, Joey Long, Carool Kersten and Azharudin Mohd Dali helped to obtain many important sources relevant to this research. Pak Jamal Tukimin devoted much of his precious time in helping me to regain my 'rusty *Jawi*'. The families of Professor Mashudi Kader, Iqbal Asaria, Umar Ebrahimsa, Najib Yasin and Nazirudin Nasir were kind enough to allow me to stay at their homes with little advance notice. Daud Ali, Sujuandy Supaat, Sophiandy Sopali, Faizal Razak, Yusri Yubhi, Rudie Asmara, Romyaldy, Harris

Senin, Suryakenchana Omar, Taris Ahmad, Fuad Ali, Isaac Saney, Saqib Barburi, Salih An-Nahdi, K.V. Muralee, Maureen De Silva, Chiara Formichi and Wan Faizah were the best of friends throughout the difficult months of field research.

Though Marlina is to be held accountable for reviving my optimism in moments when I felt that writing was a lonely and often unrewarding occupation, I am solely responsible, as always, for any errors in this work.

Abbreviations and glossary

A	Australia (Archival Record Code)
Advisory Committee	Established during the Malayan Emergency, the committee's role was to consider the appeals of those who had been arrested by the colonial administration and make decisions on the validity of the appeals.
API	*Angkatan Pemuda Insaf* (Group of Awakened Youths)
CAB	Records of the British Cabinet Office
CID	Criminal Investigation Department
CO	Colonial Office
CT	Communist Terrorist
Fatwa	An Arabic word for 'legal judgement' or an explanation given by a Muslim scholar on matters pertaining to the understanding and practise of Islam.
FO	Foreign Office
HNA	*Het Nationaal Archief* (The Netherlands National Archives)
Imam	An Arabic word for 'leader'. It was used by the Malays to describe the leader of a prayer congregation or commander of a Muslim army.
IRO	Inter-Religious Organisation
ISEAS	Institute of Southeast Asian Studies, Singapore
Jamiyah	All-Malaya Muslim Missionary Society
JMBRAS	*Journal of the Malayan Branch of the Royal Asiatic Society*
Kampong	A Malay word for 'village' or 'a cluster of settlements' that was smaller than a town.
Kathi or *Qadi*	A Muslim judge. In Malaya, the *kathis* were entrusted with the registration of marriages and the arbitration of marital disputes.
Legislative Council	The Legislative Council of the Colony of Singapore consisted of twenty-two persons. Its main function was to assist the Governor to make laws for Singapore. The Governor however had veto powers over the Council. A majority of the Council's members were nominated by the British government. In 1948, there were only six

	elected members. The number of elected members was increased to nine in 1951.
Lex Domicili	The law of the place of a person's domicile.
Locus standi	Recognised position or acknowledged right to a given issue. In the realm of law, it refers to a plaintiff who has reasons to be a party to a legal case.
Madrasah	Islamic school
Maulana	An Arabic word for 'our lord' or 'our master'. It was commonly used in South and Southeast Asia as a title for a respected Muslim scholar.
MCP	Malayan Communist Party
MNP	Malayan Nationalist Party, also known as the *Pergerakan Kebangsaan Malaya Merdeka* (PKMM), or the Malayan National Independence Movement
MRLA	Malayan Races Liberation Army
Mufti	A Muslim scholar who interprets Islamic laws.
NACPM	National Archives, College Park, Maryland, United States of America
NAS	National Archives of Singapore
Nikah Gantung	A truncated marriage or a marriage that was deemed by Malays in the post-war period as valid from the perspective of Islam but incomplete for the reason that the customary rites had not been performed.
Parang	A large knife that was used by Malays to cut through thick vegetation and also for self-defence, as well as violent crimes.
PERAM	*Pemuda Radikal Melayu* (Radical Malay Youths)
PKM	*Panitia Kemerdekaan Malaya* (or the Committee for Malayan Independence)
PREM	Records of the British Prime Minister's Office.
RAF	Royal Air Force
RG	Records Group. These are files that are deposited in the Washington Archives in the United States of America.
Special Branch	A unit within the Criminal Investigation Department (CID) of the Singapore Police Force. Its main function was to acquire information to protect the public and the colonial state from subversive and extremist activities.
Syariah	Islamic Law (Malay spelling)
Ulama	Muslim scholars
UMNO	United Malays National Organisation
Whitehall	A locality in London where the Colonial and Foreign Offices were to be found; shorthand for the British government



0.1 Map of Singapore in 1950



0.2 Map of Southeast Asia

1 Remembering violence

11 December 1950

A British serviceman named John W. Davies was travelling on a bus through the streets of colonial Singapore with his wife and eight-year-old daughter. What seemed to be a calm evening was suddenly disrupted by a confrontation with rioters who were infuriated by a British court's decision that a Dutch-Muslim girl named Maria Hertogh was to be restored to her Christian parents. Europeans and Eurasians in the colony were thus perceived as enemies of Islam. Davies was dragged out of the bus and assaulted by the roadside. In desperation, he jumped into a drain in a futile attempt to hide, but the rioters overcame him and subjected him to a vicious attack. While the serviceman's wife and daughter were left unscathed in the course of mass violence that spread rapidly across the island, Davies was left mortally wounded. His death, along with the deaths of many others who were either victims or perpetrators of violence, marked a new epoch in the history of one of Britain's most important colonies.

Since that fateful incident, what has come to be known as the Maria Hertogh controversy has occupied a vital place within the Singapore government's depiction of the turbulent colonial past, so much so that it has often been singled out and invoked during periods of conflict and social effervescence. In November 1986, for example, after protests launched by Malay Muslims in both Singapore and Malaysia in response to Israeli President Chaim Herzog's visit to the island-state, Singapore's Prime Minister, Lee Kuan Yew, declared that such protests had the dangerous potential of provoking riots similar to those in 1950 when all 'hell broke loose'.[1] Then, as it is at present, the riots still function as a metaphor for Singaporeans that religion should never be enmeshed with secular and radical politics. It provides a potent historical lesson that excessive ideological fervour, missionary zeal and moral assertiveness are undesirable and have no place within a progressive society. Constant references to the riots have also served as a subtle warning to the press that any attempts to incite racial and religious tensions will result in the cessation of publication and criminal prosecution. Presented in the mainstream media and school textbooks in such a way as to validate the post-colonial nation-state and its ideological ethos, the Maria Hertogh controversy has become something of a 'moral panic' that defines the normative boundaries of society.[2]

Distinct but contrasting images come to mind as one considers Tengku Abdul Rahman's recollections of the riots. For the first prime minister of Malaysia, the Maria Hertogh controversy marked the beginnings of his struggle for the country's independence from the British Empire. It was a moment of solidarity in defence of Islam, yet at the same time, the riots were an aberration because the use of violence in the name of religion had no true historical precedent in colonial Malaya. Recounting his rage towards those who had filed a lawsuit to gain custody of a Muslim girl, the Tengku maintained that Maria Hertogh had been deprived of the care of her foster mother and was 'forcibly taken to the convent and converted to Christianity'. Nonetheless, he admitted, 'I had gained much popular support for myself and the party I led as a result of this case.'[3] It is, therefore, paradoxical that memories of the riots and their ramifications have outlived the Tengku's popularity. In fact, there arose a renewed interest in the popular media to re-enact what is seen as a landmark event in the country's political history. Newspapers, magazine articles and documentaries have portrayed the riots as artefacts of nation-building, challenges to social cohesion and an imperialist plot on the part of the British and the Dutch against Islam. Oblique allusions to the riots were also made during the course of the recent debates surrounding the Lina Joy apostasy case, with the dominant line of reasoning among Muslim bloggers, advocates and legal experts being that the Maria Hertogh controversy serves as a moral warning that no attempt to lead Muslims astray from their religion would be left unchallenged. Any failure on the part of the state to preserve the religious life and identity of Malays in Malaysia will lead to violence.[4]

With such a premium placed on the Maria Hertogh controversy in both Singapore and Malaysia and the emotions it has elicited, it is hardly accidental that a considerable body of historiographical literature has been devoted to the subject. Writers who were involved in, or witnesses of, the events that unfolded in Singapore in December 1950 attribute the riots to domestic problems, especially in the realm of the adoption of children, inter-ethnic marriages and the colonial state's management of Muslims. Academic historians, in turn, have given more prominence to wider imperatives, such as the currents of Islamic resurgence and the anti-colonial movements that swept throughout Southeast Asia.[5] Regardless of their varied interpretations, what binds all of these works together is the preoccupation with the causes and factors that led to the outbreak of the Maria Hertogh riots and their eventual suppression. Here, it would not be excessive to assert that almost all previous studies of riots, pogroms and disorders in Southeast Asia have been largely concerned with the ideological, structural, psychological, political, economic and social conditions that gave rise to instances of mass violence. To the extent that some discussion of the aftermath of mass violence has been made by a handful of scholars, such accounts have tended to be descriptive rather than analytic. There has been no comprehensive scrutiny of the variety of strategies that were employed by colonial states to deal with the various forms of resistance, the collaboration of local elites and the impact of these processes upon minorities. The traumas suffered by victims and the various efforts that were undertaken to thwart the recurrence of mass violence remain relatively understudied.[6] Such limitations

in the extant literature, the hollowness of state-sponsored histories and the persistence of public enchantment necessitate the employment of new data, original approaches and refined analyses to the study of the Maria Hertogh controversy. Through this, I seek to open up new spaces in the historiography of British colonialism, violence and Muslims in Southeast Asia.

More than offering a mere narrative of events, this book initiates a shift beyond the study of the causes of the riots towards a deeper examination of the wide-ranging effects and crises faced in the aftermath. The study of the aftermath of violent upheavals such as the Maria Hertogh riots is particularly important as it calls for a reassessment of the various institutions, organisations, ideologies, symbols and values that operate within a given colonial society. By broadening the analytical focus to encompass the ways in which the historical actors grappled with the restoration of peace and the rebuilding of a society that was torn asunder by mass violence, the historian is compelled to rethink the structures of colonial dominance and the extent of interdependency between the ruling elites and the subaltern masses, and between the coloniser and the colonised.[7] This does not in any way imply that the causes and circumstances that led to the outbreak of riots and other forms of collective violence are to be summarily neglected. In what follows, I will provide fresh reinterpretations of the confluence of global forces and local dynamics which shaped British strategies, as well as the responses of the communities in Singapore and Malaya.

Second, in sharp contrast with previous studies and popular literature, which depict the riots as part of a master national narrative, this book will frame the Maria Hertogh controversy against the backdrop of British imperialism and decolonisation in Southeast Asia. It will explore the linkages between the British colonial administration in Singapore and the policy makers and officials in the Home Government and other colonies. To be sure, the British Empire functioned within a methodical framework in which the opinions and ideas of officials in the peripheries (the colonies) interacted with those of the metropole (the Home Government) before key decisions and policies were executed. To focus solely upon micro-politics in the colonies is to lose sight of the macro-politics that defined the modus operandi of the British imperial network in the post-war era. The British Empire, as a leading imperial historian has succinctly pointed out, 'is best understood not as a territorial phenomenon but as the grand project for a global system'.[8]

As a corollary, I find it useful to develop, and yet also to problematise, Tony Ballantyne's conception of the British Empire as 'a complex web consisting of 'horizontal' filaments that run among various colonies in addition to 'vertical' connections between the metropole and individual colonies'.[9] It will be demonstrated that both the horizontal filaments and the vertical connections of the British Empire proved to be vital in ensuring that there were swift reactions to the protests of the various parties who were concerned with the riots and the legal controversy. Paradoxically, in an age of decolonisation, the communication links and political networks established by the British also functioned as avenues of resistance and critique for politicians in newly independent countries, as well as anti-colonial activists and news agencies in the colonies and in Britain itself.



Figure 1.1 Maria Hertogh and Che Aminah

Source: Terenjit Singh and Family

A more nuanced and sophisticated understanding of colonial management of riots and mass violence in Southeast Asia constitutes the third area that will be developed throughout this book. Historians writing on the subject of colonial policies in the post-Second World War period have often espoused the two-pronged approach that was adopted by the British in dealing with resistance movements, popular protests and insurgencies. Through the strategy of 'concession', the British sought to foster native leaders and organisations to aid in the realisation of the long-term aims of the colonial state. This strategy was accompanied by the use of brute force and coercive measures to obliterate the challenges posed by those who promoted violence and radicalism. Perceptive as it is, such widely held interpretations have led to the neglect of British usage of covert agencies which performed not only the roles of 'concession' and 'coercion', but also the 'collection' of vital information for the purposes of anticipating and repelling all forms of opposition to colonial rule.[10] 'Self-criticism' was an equally important strategy to insulate the colonial administration from a continual loss of legitimacy and to justify its relevance and dominance upon colonised societies in the aftermath of mass violence, but it has also generally been left unexplored. Chapters 4 and 5 of this book will address such neglected frontiers.

No study of the Maria Hertogh controversy would be complete without a thorough discussion and analysis of the responses of the non-British communities. I contend that British strategies and policies can only be better understood by elucidating the themes of resistance and collaboration, particularly that of the Muslims in Singapore, Malaya and the wider Muslim world. The Nigerian

scholar J. F. A. Ajayi sharply asserts that 'although Europeans were generally masters of the colonial situation and had political sovereignty, cultural and economic dominance, they did not possess a monopoly of initiative during the colonial period.'[11] Building upon such observations, this book provides a new frame of reference that cuts against the grain of 'Eurocentric' and 'nativist' tendencies in Southeast Asian colonial historiography. While assigning primacy to the discourses and courses of action pursued by colonial rulers, I examine also the multifaceted impact of policies, the responses of the local communities and the dialogical exchanges between the rulers and the ruled.

More to the point, I will draw upon and propose new ways of analysing various forms of resistance that were employed by Southeast Asian communities in confronting colonial rule. The first form of resistance involves violent acts, such as riots and rebellions. This was followed by active participation within colonial administrative structures, such as Legislative Councils, political parties and other state-sponsored organisations. Petitions and other forms of discursive engagements fit into the next level of approach. Fourth, in applying the theories and concepts of James C. Scott, Donald Nonini demonstrates how silence and passivity towards colonial policies served as potent forms of 'everyday resistance' and 'weapons of the weak' for peasants in British Malaya.[12] To add to the above list, in Chapter 3, I will elaborate upon 'strategic desertion' as yet another form of resistance in situations where the above four approaches had proved futile. 'Strategic desertion' refers to a planned and conscious departure from the arena of contestation to a new site, beyond the colonial orbit of influence and control. Such a strategy was pursued with the intent of sustaining a form of resistance from without.

Above all, this study extends and refines the corpus of literature pertaining to minorities in Southeast Asia, particularly Muslim minorities under colonial rule. It has been argued that colonial regimes tended to view 'ethnic and religious minorities as weak and vulnerable and in some instances established separate administrative areas and special laws or regulations to protect their interests'.[13] Although applicable in the context of post-war Malaya, this assertion is inherently inadequate and requires further elaboration. I will exhibit the ways in which British enactment of laws pertaining to the management of religions in the post-war period were determined by European assumptions and attitudes towards gender, childhood and native legal systems. This had, in actuality, the reverse effect of dispossessing Muslims and other minorities of their perceived rights and resulted in the outbreak of mass violence and continual grievances in the years that ensued. Chapters 2 and 7 of this book delve into this issue in greater detail.

To put it succinctly, in the following pages, I shall develop the argument that the Maria Hertogh riots stemmed from the failure of the British to address four crucial factors which shaped the Singapore Muslim community's attitudes towards the colonial regime: the influence of radical ideas, the effects of socio-economic marginalisation, press sensationalisation surrounding the legal controversy and the ineffectiveness of the police force and other security agencies. The outbreak of the riots had a negative impact upon the image and role of the British colonial administration in Singapore, which jeopardised diplomatic ties between

the British Empire, the Netherlands and the nations of the Muslim World. In response, the British utilised a symbiotic combination of proscription, surveillance, self-criticism, reconciliation and reform. Through these strategies, they sought to redeem their tarnished image, mitigate the negative effects of the riots, and anticipate similar outbreaks arising from racial and religious dissent. The politics, resistance, collaboration and ramifications upon minorities in Singapore arising from each of these five strategies will be brought to the fore.

Each of the book's chapters is framed within an over-arching British strategy, and at the same time, the book provides a comprehensive account of the wide repertoires of responses from the non-British communities. The driving theme of Chapter 2 is the set of challenges faced by the British colonial administration in re-asserting their position in post-war Singapore following the Japanese occupation of the island, which lasted from 1942 to 1945. The failure of the British colonial regime to address local problems and global influences, which fostered the rise of anti-imperialist episodes of resistance and shaped the Singapore Muslim community's attitudes, will be elaborated here. Aside from that, this chapter illuminates the ways in which the British image and role in the Muslim world was tarnished by the legal controversy and the outbreak of mass violence.

Chapter 3 provides an analysis of British attempts to proscribe key precipitants of the riots. The concept of 'proscription' here is understood in its widest sense as deterrent and repressive measures employed by the colonial state against several antagonists whom the state regarded as responsible for the riots and/or potential instigators of further violence. Foremost in this respect were newspapers, which were looked upon as vehicles for the communication of dissent and anti-British propaganda. Also factored into the equation were ideologues who incited hatred and violence. Third, the British sought to proscribe opportunists who saw the riots as a means to pursue their own criminal goals and anti-colonial ends. More subtle and yet equally dangerous were the rumour mongers who were bent upon aggravating the already tense situation. All of these elements were of equal concern to the British, and the tactics employed to cripple their agency were manifold. This chapter will also elaborate on the use of 'fear' as a political tool of the colonial state, the appeal trials and Tengku Abdul Rahman's role in petitioning for the commute of those rioters who were condemned to death.

The fourth chapter unravels the heightened role of British intelligence, especially in the realm of Muslim affairs. Various developments in Malaya, Indonesia, Pakistan, Britain and the Netherlands will be elucidated, in so far as they affected the security of Singapore. As will be shown, potential threats from radical activists in these countries were detected in their early stages by colonial administrators and politicians, and such information was relayed to the Home Government and Singapore to allow for prompt and effective responses. This chapter will also provide a comprehensive discussion of how Special Branch agents and spies perceived and dealt with the different forms of threats which they encountered. At many junctures, such perceptions were guided by paranoia and unfounded fear.

The British strategy of 'self-criticism' as manifested primarily in the establishment and proceedings of the Commission of Enquiry and the disciplinary measures meted out to colonial officials accused of mishandling the Maria Hertogh riots will be analysed at great length in Chapter 5. Although the British were self-critical and were generally receptive of criticism directed against them, they ensured that the higher echelons of the state machinery were insulated from a severe collapse in their legitimacy in the aftermath of the Maria Hertogh riots. The politics, tensions and anxieties inherent within this limited process of self-criticism will be brought forth in detail. In doing so, I provide a corrective to the arguments advanced by Niall Ferguson and other contemporary advocates of British imperialism.

The main line of discussion pursued in Chapter 6 is the daunting challenge faced by the British colonial administration in Singapore and in Britain in reconciling the interests of multiple parties in the local and international arenas. In particular, the British stepped up their efforts to accommodate the influence and role of religion in society, especially in response to the demands of Muslims. Numerous institutions and persons who had suffered from the loss of kith and kin as well as property during the riots were also duly compensated by the colonial authorities. Accordingly, in this chapter, I will expound on how various individuals and organisations from within the colonised society actively contributed to the efforts devoted to mending inter-racial and inter-religious relations that had been severely shaken by the riots and providing relief to those who had suffered throughout the ordeal.

Chapter 7 is an exploration of British attempts at reforming vital aspects of their administration that were deemed to be the root causes of the outbreak and spread of the riots. Reforms were directed towards transforming the police force and education policies, as well as marriage and child adoption laws, with the intention of preserving the integrity of the colonial bureaucracy. Emphasis will be given here to the dynamics, negotiations and resistance encountered in the midst of such efforts. Aside from summarising the principal arguments of this book, the concluding chapter provides insights into the short-term and long-term effectiveness and ramifications of British management of crises within the colonies in the post-war era.

Viewed as a whole, this book employs the Maria Hertogh controversy as a prism through which the Southeast Asian pasts may be better understood. Without ignoring the decisive roles played by British administrators and the colonial state apparatus in determining the course of history, I attempt to integrate the voices and agency of the subalterns, the social activists and the underclass. The sense of the past that emerges from this approach is, to put it in the words of Mikhail Bakhtin, 'polyphonic' and 'heteroglossic' – interweaving narrative with theory, the political and the personal, the local and the global, the lived experiences and discourses of men and women, the oppressors and the oppressed, the victors and the vanquished.[14]

2 The colonial setting and the outbreak of riots

Singapore, in the immediate post-Second World War years, was a site of contestation between the secular forces of communalism, communism and nationalism. Together with these developments, there was a revival of religious activity in the colony in response to social, political and economic challenges, as well as wider influences from South Asia and the Middle East. In the realm of everyday life, food shortages, disease, poor housing, unemployment and social vices were the key problems facing the common man.[1] Coupled with a weak police force plagued by rampant bribery and disorganisation, mass delinquency and criminal activities of all sorts were at their peak. And yet, it was this wide array of challenges that provided a fertile environment for the growth of critical thought and civic engagement. Numerous organisations, clubs, parties and movements flourished on the island, articulating demands and concerns that had been circumscribed during the pre-war period. This was an era of experimentation, of idealism, of hopes and of the outpouring of popular dissent.

Three and half years of Japanese rule had demystified the notion of White superiority and dominance. Even so, the British were determined to re-establish the paramount position of Singapore within their post-war imperial policy. Although the population had declined markedly due to the war, the island-colony retained a multiracial and religious outlook where multiple diasporas intersected and interacted with one another. It became a centre for the transmission of ideas, values and ideologies. The attempts of the British to insulate Singapore from the sway of radical movements overseas proved to be ineffective because the dismantling of colonial empires in South Asia, Indonesia and Indochina, along with the rise of Pan-Africanism and Pan-Arabism, had ushered in a worldwide awareness of anti-imperialist movements and individuals who promoted ideas of independence from foreign rule. In fact, regional links and global interactions were intensified in the post-war setting, which had, in effect, transformed Singapore into a breeding ground for militant radicalism.[2]

In view of these mounting pressures, policy makers in Britain promoted the creation of a Pan-Malayan identity involving the development of strategic partnerships and aid programmes to ensure a more lasting friendship with the colonised peoples. This policy was institutionalised in the Malayan Union Scheme, which was formalised on 1 April 1946. Yet Malays and other communities in the Malay Peninsula saw the implementation of the Malayan Union as an attempt to erode the powers of the Sultans and an infringement upon Malay special rights. The United

Malays National Organisation (UMNO) was thus registered in 1946 and began campaigning for what was to be known as the Federation of Malaya. Singapore was excluded from this Federation due to the Peninsular Malays' fear of Chinese numerical dominance on the island. Although a segment of the Muslim population in Singapore accepted such a rationale of political separation, many hoped that they would soon be incorporated into the larger mainland community, where kinship and familial ties were deeply rooted.[3]

The members of the Malayan Communist Party (M.C.P.) perceived the creation of the Federation as yet another measure on the part of the British to progressively proscribe their activities, specifically the militant front – the Malayan Races Liberation Army (M.R.L.A.). When three British rubber planters were murdered in Perak by M.R.L.A guerrillas on 18 June 1948, the British declared a state of emergency throughout Malaya. The enemy fighters were nicknamed 'bandits' and, in the years that followed, the label was changed to 'Communist Terrorists' (CTs).[4] As violence on both sides of the conflict escalated, the British Prime Minister, Clement Attlee, declared in the House of Commons:

> His Majesty's Government have no intention of relinquishing their responsibilities in Malaya until their task is completed. The purpose of our policy is simple. We are working in cooperation with the citizens of the Federation of Malaya and Singapore, to guide them to responsible self-government within the Commonwealth. We have no intention of jeopardising the security, well-being and liberty of these people, for whom Britain has responsibilities, by a premature withdrawal.[5]

Accordingly, amidst the outward display of territorial 'separation' between Singapore and the Malayan Peninsula following the Federation Agreement, close communication and coordination between British officials in the two territories persisted. Tan Tai Yong observes that British officials in Whitehall adopted a regional approach to policy making throughout the 1950s. The security of the Southeast Asian region was contingent upon the formation of alliances between states, especially in the realms of administration and trade. In the long run, the British envisioned the creation of a bloc that would, in effect, regain the British foothold in the region.[6] Indeed, Singapore was regarded as a strategic base to ensure the continuation of British global leadership in the post-war era and to prevent Southeast Asia from falling to communism and Russian hegemony. Policies and strategies, however, had to be periodically revised in response to changing conditions within Malaya and the emergence of other superpowers in the region. From the vantage points of cabinet ministers and defence planners in London, Singapore lay at the very heart of British Grand Strategy in Southeast Asia, rendering the prospect of total independence for the island implausible.[7]

Muslims in Singapore

In the face of such a rapidly evolving context, Muslims in Singapore recognised that a brave new world was about to be born, and that the onus was upon them to

shape it in the ways which they desired. The era was marked by the birth of a new 'public sphere' manifested in newspapers, journals, rallies, strikes, unions, parties and modes of thought.[8] The 1947 census revealed that Singapore's population was estimated to be over 1 million, out of which 77.6 per cent were Chinese, 12.2 per cent Malays, 7.6 per cent Indians, 1.0 per cent Europeans, 1.0 per cent Eurasians and 0.8 per cent were categorised as 'Others'. Arabs were often intermixed between the categories of Malay and Others. Exact figures for the population of Muslims in the colony lurked in the realm of the unknown till the end of the 1950s. Each of the Annual Reports for the years 1954 through 1956 maintained that a comprehensive statistical analysis of religious practices had never been undertaken. Malays were generally Muslims. Among members of the Indian community, it was reported that about 70 per cent were Hindus, 20 per cent Muslims, 5 per cent Christian, and 2 per cent Sikh, with the remaining persons subscribing to no religious belief whatsoever.[9] This was no more than a cursory glance at the heterogeneous nature of the Muslim population in Singapore.

Upon deeper scrutiny, the Muslim population was fragmented along the lines of ethnicity, ideology, notions of belonging, class, affiliation to organisations and geographical location. In terms of ethnicity, most Muslims in Singapore were of Malay origin, but they were not a homogenous ethnic bloc. Judith Djamour, in her book entitled *Malay Kinship and Marriage in Singapore*, unravels the fluidity of Malay identity as it was manifested at that time. She notes that Malays in Singapore were divided into two broad groupings; the first consisted of immigrants from the Malayan Peninsula who had lived in the colony for several generations. The second grouping was from Indonesia, which was previously known as the Dutch East Indies. This group was mainly comprised of Javanese, Baweanese, Bugis, and Banjarese, whose families had been settled on the island for one, two or three generations. Indonesian immigrants could claim to be Malays if they were accepted by the village community as such, especially after the establishment of marital ties with local Malays.

Marriage was also the key factor that accounted for the conversion of a small number of Europeans and Eurasians to Islam, and their subsequent integration into the local Malay society. In slight contrast, Arab, Indian and Pakistani Muslims were incorporated within the wider Malay category through their active participation in social, religious and political activities, and their adoption of Malay language and culture – a process known as *masok melayu* (becoming Malay). This process also refers to the conversion to Islam and identity shift among Chinese children through the widespread practise of informal adoption during this period. Sold by their Chinese parents to Malay families, these female infants were labelled with two Malay terms: *anak beli* (a bought child) and/or *anak angkat* (adopted child). They were known for the rest of their lives by their Muslim names and, consequently, saw themselves as Malays.[10]

The second line of partisanship was ideological, due primarily to affiliations towards differing schools of Islamic jurisprudence and sectarian beliefs. Arabs and Malays derived their understanding of Islamic laws from the *Shafi'i* School, whereas the Indian Muslims subscribed to the *Hanafi* tradition. There were also

members of the Muhammadiyah movement, whose approach to Islamic jurisprudence transcended the four accepted schools of law (*Shafi'i*, *Hanafi*, *Maliki* and *Hanbali*).[11] All were Sunnis, even though their conceptions of Islam on an individual level could gravitate from a liberal to a more conservative, if not radical, stance depending upon the issues and circumstances at hand. The 'Shi'ite' and the 'Ahmadiyya' – two groups which constituted several other sub-sects – formed the next level of sectarianism and were regarded as minorities within a predominantly Sunni Muslim community. These sects were often labelled as heterodox and were stigmatised by the Sunnis. Shi'ite elites were, however, active within several Muslim associations, but would often conceal their religious leanings.

On the other hand, the Ahmadiyya movement, whose headquarters were based at Lahore in Pakistan, received constant warnings from Muslims on the island and was in the centre of controversy due to its active missionising. Inhabiting a common space with radical Muslims yet sharing the same fates as that of the Ahmadiyya, proponents and sympathisers of communism were shunned by most Malays who perceived the communist ideology and its objectives as un-Islamic. Upon the declaration of the Malayan Emergency in 1948, the number of Malay communists declined rapidly to a few prominent radicals who were later proscribed or driven underground. Paradoxically, spiritual cults and invulnerability sects, which were regarded by Muslim scholars as wayward and deviant, mushroomed within this tumultuous milieu.[12]

Not all Muslims in Singapore upheld the idea that Singapore was definitely the place where they belonged. Notions of belongingness were nebulous and porous, especially among Indians and Arabs. A small yet influential number of Indian Muslims were deeply involved in campaigning for the creation of Pakistan and maintained close links with their ancestral home. Arabs, who originally hailed from the Hadramaut region in Yemen, maintained trade and familial ties with relatives in the homeland with the aim of preserving fundamental aspects of their traditions, culture and language. Even though signs of cultural dilution were apparent due to the disruptions caused by the Second World War, the practise of sending Arab children for religious instruction and enculturation to places in Yemen such as Tarim and Sana'a was still pervasive in the 1950s. Von der Mehden observes that the interactions between the Middle East and Southeast Asia in the post-war era were centred upon two areas: to address the dismal state of Muslim minorities and to propagate purist interpretations of Islam.[13] Cognisant of developments in the Middle East and conscious of their place within a global diaspora, Arabs in Singapore made effective use of familial, economic and political links that had been fully revived in the aftermath of the Second World War to promote the interests of the Muslim community on the island.[14]

Singapore Malays who were more localised in their ideas of belonging saw the *kampong* (village), and, to a considerable extent, Singapore island, as the focal point of their loyalty and identity. Located in sub-ethnic enclaves such as Kampung Glam, Kampung Ubi, Kampung Melayu, Kampung Siglap, Telok Blangah, Pasir Panjang, Padang Terbakar, Ayer Gemuruh, Bedok, Jalan Eunos and Geylang, these Malays developed a strong sense of place as a result of a confluence of social and

historical factors. Having severed ties with their countries of origin and settled in Singapore to start life anew, the first generation of immigrants were mostly fugitives, outcasts and wayfarers who would, in most instances, not inculcate the succeeding generations with any sense of belonging to the original abode. The sense of territoriality was then cemented by later generations through the establishment of a village government elected by the people and led by a *penghulu* (headman), inter-marriages between occupants within the same village and/or other villages and collective participation and mutual aid in activities such as *berkhitan* (circumcision), marriage, the end of the fasting month, *Maulud Nabi* (celebration of the Prophet's birthday) and funerals.

Aside from this, a small number of Singapore Malays looked beyond the confines of their local villages and maintained that the island of Singapore, along with the Malayan Peninsula, was a single entity to which they belonged. To be Malay was to look 'in two directions at once' and many prided themselves with lineages that could be traced to parts of mainland Malaya. Their main occupations were in the civil service and they were often deployed to Singapore to serve short- or long-term contracts. To this group must be added a highly politicised minority who extended their conception of belonging further outwards to the *Nusantara* (The Malay World). These Malays maintained close links with leftist activists and migrants from Java and Sumatra who were using Singapore as a base from which weapons and other forms of aid could be supplied to the revolutionaries fighting for Indonesian independence. They were also known for being ardent supporters and promoters of the unification of Singapore, Malaya and Indonesia into what was called the *Melayu Raya*.[15]

Muslims in Singapore were also divided into several classes as reflected in their occupational patterns which, in turn, had a great bearing upon the nature of public engagement and reactions to issues pertaining to Islam. Arabs and Indian Muslims were economically more established. Although few in number, they were generally of the higher classes and were active in providing socio-economic, religious and political leadership. Whilst a majority among the members of these two ethnic groupings maintained friendly relations with the British, their attitudes and approaches towards the colonial regime oscillated from collaboration to overt resistance. Indian Muslims of the lower classes, according to a British intelligence report, shared the predicament confronting the majority of Malays in Singapore. They maintained large families, were employed in poorly paid occupations, seldom engaged in mercantile pursuits, and were socially downtrodden as well as 'economically marginalised'.[16] The common occupations for men of the lower classes were office clerks, labourers, drivers and seamen, as well as the lower ranks of the police force, the fire-fighting services and the military. Everyday life for an average Malay was described by a poignant expression, *Kais pagi makan pagi, kais petang makan petang*, which means living from hand to mouth. Illiteracy, poor education and reliance upon information via word of mouth characterised the lower segments of the Muslim community. These factors contributed to the ease with which passions were inflamed in the course of the Maria Hertogh controversy.

Organisations provided another line of division. This was the period in which Muslims of varied social backgrounds and political leanings would organise themselves under the banner of uniquely named bodies. There were no less than a 100 registered organisations in total, and the membership of individual bodies could be as high as several thousands. In most cases, only half a dozen die-hard enthusiasts were enlisted, and these organisations usually had brief lifespans, generally not surviving beyond a year of activism. The Muslim Advisory Board, *Jamiyah* (the All-Malaya Muslim Missionary Society), the Singapore Muslim League, Singapore UMNO (SUMNO), the Young Men's Muslim Association, the Muslim Welfare Association, the *Kesatuan Melayu Singapura* (Singapore Malay Union), the *Persatuan Melayu Semenanjung* (Association of Malays in the Peninsula) and the *Kesatuan Kebajikan Perempuan Islam* (Singapore Malay Women's Welfare Association) were among the most prominent and influential organisations in campaigning for Muslim rights in the public realm.

This last collective deserves some further elaboration. Established in the late 1940s by an emerging group of modernist-oriented female activists in post-war Singapore and led by an energetic leader, Che Zaharah binte Noor Mohammed, the Singapore Malay Women's Welfare Association was chiefly concerned with highlighting the ill-treatment of women in the colony. It offered material, moral and emotional support to victims of domestic abuse and conducted classes to raise awareness of the rights of women as well as their roles in society. Far from merely criticising social injustices that were prevalent within the Muslim community, the organisation forged close ties with other prominent non-Muslim female personalities and collectives on the island to highlight British paternalistic and colonialist attitudes regarding women. Together, they advocated comprehensive reforms in the realms of marriage laws, education and social welfare.[17]

Another movement that was vying for public attention was the *Angkatan Sasterawan 50* (ASAS 50; meaning the Literary Generation of 1950; the acronym ASAS means 'Basis'). Established in August 1950 and guided by the motto '*Seni Untuk Masyarakat* (meaning 'Arts for Society'), the group championed several important aims, among which were the goals of refining and promoting the Malay language, and making it the lingua franca of Singapore and Malaya. Aside from the publication of hundreds of novels, poems, short stories and essays related to society, language and literature, ASAS 50 catapulted itself to the forefront of dozens of organisations that fostered linguistic nationalism through three regional congresses that were held between 1952 and 1954. Issues such as the establishment of a Malay Language Department in the University of Malaya, the inculcation of Malay language as the second language of all non-Malays in Malaya and the romanisation of the *Jawi* script were proposed during these landmark meetings.

Activists within all of these Muslim organisations also worked as editors and writers for newspapers, journals and periodicals, such as *The Muslim World*, *The Islamic World*, *Dawn*, *Qalam*, *Sinaran*, *Utusan Melayu and Melayu Raya*. The *Utusan Melayu* became one of the most widely read newspapers in Singapore and Malaya, influencing and shaping the psyche of Malays. By 1954, its circulation was reported to have reached 22,000. A majority of the subscribers were

based in Malaya and the newspaper was also distributed in parts of Indonesia. Renowned for its independence from any party or state interests, several of its editors and journalists faced imprisonment for their radical views and affiliations.[18] Although the *Utusan Melayu*'s influence in the post-war period was expansive, it was not left unchallenged. A rival newspaper, the *Melayu Raya*, was published in Singapore beginning on 29 August 1950. It was regarded in its time as the defender of Malay rights. The newspaper achieved meteoric prominence during the Maria Hertogh episode, gaining the support of more than 7,000 shareholders and a circulation of about 28,000 copies throughout Malaya by December 1950. A majority of its directors was ex-members of the Malayan Nationalist Party (MNP) and were described by British intelligence agencies as having 'extremist views'.[19]

English newspapers in the colony were also important sources of information for those who were actively involved in organisational activities. Foremost in this regard was the *Straits Times*, which had a wide circulation of 55,000. Although independent, the paper was conservative and pro-British in its outlook and functioned as the voice of European expatriates in Singapore. This was followed by *Singapore Standard*, which was owned by Aw Boon Haw, a prominent Chinese merchant whose main objective in pioneering the paper was to propound 'Asian' viewpoints in the colony. By 1954, the paper had a circulation of 35,000 throughout Malaya. Three other local newspapers which were relatively widely read were the *Straits Echo*, the *Singapore Free Press* and the *Straits Budget*. Known for their publication of critical opinion pieces and political polemics, these newspapers had relatively small circulations of no more than 15,000. It is undeniable that such newspapers reflected the main concerns of actors in their times, embodying certain philosophical and ideological motives which determined the selection of news and the texture of commentaries. John Lent went so far as to assert that the press in post-Second World War Asia functioned as a purveyor of values, norms and beliefs that governed the collective mindset of societies apart from providing the raw data of events and experiences at a given time.[20] Newspapers were thus strategic launch pads in the battle of ideas.

In terms of geographical location, Arabs and Indians were interspersed in the central and eastern parts of Singapore and other districts that were dominated by Europeans and Eurasians. Malays were located within several sub-ethnic enclaves in the south-eastern and south-western parts of the island, largely living in squatter settlements and densely populated *kampongs* built in low-lying swampy areas. Sanitation and drainage was poor. Endemic diseases such as typhoid, cholera, tuberculosis and malaria were rampant. The Bugis, Javanese and Baweanese were located near Kampung Glam, adjacent to the Sultan Mosque. Malays from the Malayan Peninsula settled in villages in different areas of Singapore, including Telok Blangah, Tanglin, Holland Road, Paya Lebar, Geylang and Jalan Eunos.[21] This partly explains why the Maria Hertogh riots and subsequent skirmishes were most intense in these areas.

Despite their divisions along various lines, the members of the Muslim population in Singapore would often rally together as a cohesive whole in the face of

infringements upon their religious rights. Indian Muslims of this period were particularly acknowledged for the forging of strategic alliances with their co-religionists to pursue religious goals. A fine example of this was the formation of a Muslim political party which contested the 1949 municipal elections.[22] The party's founder was Karim Ghani, who, although not a 'Malayan' by descent, was able to bring together Muslims of different sectarian, ethnic and class backgrounds amidst the restrictions imposed by the emergency. Karim Ghani was not alone in his quest to reassert the place of Islam in society. The need to heighten awareness and attachment to Islamic precepts and worldview, which had ironically deteriorated during the painful experience of the Japanese occupation of Singapore, was the concern of most Muslim elites in the colony. Undeniably, prayers and other basic Islamic rites were neglected by the Muslim masses, and mosque attendance was relatively low.[23] The highly acclaimed autobiographical novel *Salina*, which is now regarded as an important source of information on social life in 1950s Singapore, records most vividly the moral laxness of Muslims who were beleaguered by prostitution and other sexual vices.[24]

In the main, British policy towards Islam in Singapore was riddled with inconsistencies and contradictions. Rapid transformations within the Muslim community meant that policies had to be adapted to changing conditions and circumstances. As early as 1947, intensive measures had been undertaken to curb Indonesian and Islamic influences on the island as manifested in the MNP and its militant youth wing, *Angkatan Pemuda Insaf (*API).[25] In the same year, the pre-war Mohammedan Advisory Board was re-established and renamed the Muslim Advisory Board to ensure increased communication between the British government and the Muslim community in dealing with potential threats. Yet, by mid-1948, Malcolm MacDonald and the Colonial Office were convinced that the real battle was against Communism and not Islam.[26] 'Communism', as described by a British political report, 'is the greatest single factor which is likely to aggravate the internal Security of Malaya during the next few years, in peace or in war'.[27] At the same time, the Special Branch kept a close watch on the movements and ideas of Muslim revivalists and radicals from the Middle East and South Asia, which were influencing the minds of the literate segment of the Muslim community in Singapore. The probability of an open rebellion or mass violence by Muslims was, however, ruled out. Rather, it was believed that militant Islam in Malaya 'would not go beyond seditious public speaking and boycotts'.[28] Coupled with press sensationalism and an ineffective police force, it was the failure to contain radical influences, the social estrangement and economic crises faced by the Singapore Muslim community that resulted in the outbreak of mass violence amidst the Maria Hertogh legal controversy.

The Maria Hertogh legal controversy

Maria Huberdina Bertha Hertogh was born at Tjimahi, Java, on 24 March 1937, during the eve of Dutch colonial rule on the island. Her father, Adrianus Petrus Hertogh, arrived in Java in the late 1920s and served as a Sergeant in the Royal Netherlands East Indies Army for several years before his marriage to Adeline

Hunter. A Eurasian of Scottish descent, Adeline was brought up nominally as a Muslim and was fluent in the Malay language. Both Adrianus and Adeline were Catholics at the time of Maria Hertogh's birth, and she was baptised as a Catholic at the Church of Saint Ignatius on 10 April 1937. Upon the Japanese invasion of Java, Adrianus became a prisoner of war and was separated from his family. Seeing the difficulties of raising five young children single-handedly amidst the wartime crisis, Adeline sent Maria Hertogh to be cared for by one of her mother's friends named Che Aminah binte Mohamed, who was a Muslim of the Shafi'i school of jurisprudence.

Unlike most Malay-Indonesian women of her time, Che Aminah was well-travelled, literate and conversant in the Japanese, Dutch, Javanese and Malay languages. Widowed twice, she had accumulated much wealth from her previous marriages and had engaged in several business ventures in Java and the Malayan Peninsula. Che Aminah was, however, barren and had adopted children from poor families whom she raised as her own. It was this widely accepted practise of informal adoption within the Muslim community in Southeast Asia then that provided the pretext for the legal contentions in the years to come. Refuting Adeline's account during the court proceedings, Che Aminah claimed that the child was handed over to her for permanent adoption. Her allegation was supported by Adeline's elder brother, Soewaldi Hunter, who witnessed the adoption process.[29] Che Aminah further asserted that Maria Hertogh was circumcised in 1943 in the presence of her mother and grandmother. Arguing against this, Adeline stated in her affidavit that she was arrested by the Japanese on her way to fetch Maria Hertogh from Che Aminah's house and was interned until the end of the war. Che Aminah then proceeded to raise Maria Hertogh as a Muslim. After the end of the Japanese occupation in 1945, the Hertoghs returned to the Netherlands, having been unable to locate their child. A prolonged search by Dutch officials with the support of the British finally revealed that Maria Hertogh was living with Che Aminah at Kemamam in Trengganu, Malaya. A British official, Arthur Locke, requested Che Aminah to be present at a meeting with the Dutch Acting Consul-General in Singapore so as to ascertain Maria Hertogh's status as her foster child. Having acquiesced to the request, Che Aminah soon realised that she had been lured into a legal battle that changed the entire course of her life.

On 22 April 1950, the Dutch Acting Consul-General in Singapore, Jacob van der Gaag, obtained an order for custody in the High Court of Singapore under the Guardianship of Infants Ordinance, directing that the child should be delivered to the Social Welfare Department. A further order was obtained on 19 May 1950 which gave van der Gaag the liberty to restore Maria Hertogh to her parents in the Netherlands. Che Aminah, in turn, lodged an appeal that was heard in June. The court declared the proceedings null and void, as neither Che Aminah nor Maria Hertogh, who were the necessary parties to the case, had been properly served copies of the orders, as required by the rules of the British Supreme Court. The Judge contended that 'the document purporting to be an Originating Summons was prepared in a hurry and without adequate care' by van der Gaag, who had no legal right to claim the custody of Maria Hertogh. All claims had to

be based on kinship relations and the Acting Consul-General was not empowered to act on behalf of Adrianus Hertogh.[30]

The court's decision came in the midst of a fierce debate regarding a Dutch soldier, Raymond Westerling, more notoriously known as 'the Turk'. Unabashedly loyal to the Dutch colonial regime and violent to the extent of murdering thousands in a terror campaign against the newly independent Indonesian Republic, Westerling had fled to Singapore after a failed rebellion in Bandung. He was detained upon arrival on the island. The news of Westerling's arrest soon reached the Dutch embassy as well as many prominent Dutch personalities and soldiers who were based in Singapore. Perceiving the issue as a potential source of friction between the Dutch and British governments, British colonial officials issued a letter of refusal to extradite the detained Westerling back to Indonesia to be tried for war crimes. This resulted in strong protests from the Indonesian government and thousands of former revolutionaries living in the colony. By August 1950, the Singapore High Court decided against Westerling's extradition. The episode was portrayed by the vernacular press in Malaya as a veiled strategy on the part of the Dutch and the British to reassert their waning influence in the region.[31] Westerling was provided with a safe passage out of Singapore, setting the stage for the escalation of the Maria Hertogh legal tussle.

A few weeks later, the Netherlands Ambassador in Britain sent a strongly worded letter to the Home Government urging that Maria Hertogh be restored to her parents. According to this Dutch official, the legal decision that was made by the British Supreme Court in Singapore was unclear and not in keeping with established standards. It was feared that Maria Hertogh would, at the very least, be forced into marriage and impregnated, or in the worst state of affairs, kidnapped and hidden in the jungle. The British Foreign Office responded emphatically to Dutch demands by stating that the Home Government had no *locus standi* in the matter and that all appeals should be directed to the Singapore High Court.[32]

In Singapore and Malaya, the Court of Appeal's decision was misinterpreted by Muslims to the effect that Che Aminah had been awarded full custody of Maria Hertogh. Adding fuel to the already inflamed sensibilities of the Dutch, on 1 August 1950, a marriage was arranged between 13-year-old Maria Hertogh and Mansoor Adabi, the 21-year-old scion of a wealthy landowning family from Kelantan who was then undergoing his training as a probationary teacher in Singapore. His father, Abdul Kadir Adabi (1901–1944), was a well-known political activist and a prolific writer of novels and commentaries in leading Malay newspapers till his premature death during the Second World War. Mansoor Adabi preferred to remain aloof from any politically oriented movements in Malaya, and later recalled his naivety concerning the implications of his marriage to Maria Hertogh because of his superficial knowledge of colonial and Islamic laws. It was proposed that he was to enter into a type of marriage called *nikah gantung*, which means 'a truncated marriage' in the Malay language. This was a common practice among Malays in post-war Malaya and Singapore, who regarded it as a necessary measure to safeguard young couples from engaging in free mixing and uncontrolled interactions that are forbidden in Islam. The word

gantung which means 'truncated' indicates that the marriage, although valid from the perspective of Islam, was 'incomplete'. From the Malay cultural point of view, the *nikah* (solemnisation) must be followed by wedding rites known as *bersandin*g in order for the marriage to be considered valid. Mansoor had hoped to return to Kelantan with Maria Hertogh following the *bersanding* rites and his graduation from the teacher training course.[33]

Muslims in Singapore in the 1950s were divided on the acceptability of such child marriages. Whilst many were supportive of the marriage owing to the established tradition of early marriages since the days of the Prophet Muhammad, many others held on to the view that the timing was inappropriate. At the same time, the British Home Government sought yet again to defuse Dutch agitation for intervention in the controversy. An assurance was made by the British that affirmative steps would be undertaken to ensure that Maria Hertogh's minority status would be protected and that the Singapore Governor would keep the Dutch government updated on all developments. An official at the British Foreign Office anticipated that the marriage would spark protests from the Dutch masses in the Netherlands, which would inexorably bring about strained relations between the British and Dutch governments.[34] His reading of the situation was prophetic.

Catholic activists in the Netherlands issued several public statements exhorting the British government to give satisfactory explanations for what were branded as policies biased against Dutch subjects in the colonies. An anonymous letter was sent to a British official at The Hague, threatening him with death if Maria Hertogh was not repatriated back to the Netherlands. The Dutch monarch, Queen Juliana, who was actively promoting the welfare of children in developing countries, expressed her concerns about the developments in Singapore. At Bergen op Zoom, a 'Bertha Hertogh Committee' was established to provide the best legal representation and to pay for expenses incurred by Adeline and Adrianus Hertogh. A sum of 80,000 guilders was raised within a span of a few weeks and this was accompanied by hundreds of letters of support and encouragement that were sent by Christians from different parts of Southeast Asia. The common perception among Catholics in Singapore and Malaya was that Maria Hertogh's outright refusal to return to the fold of her natural parents was caused by black magic and witchcraft practiced by Che Aminah.[35]

The Maria Hertogh controversy also attracted a great deal of publicity in major Muslim countries and provoked strong reactions from politicians and organisations in these lands, from Indonesia to Pakistan and even as far away as Saudi Arabia. Letters promising financial help were sent to Muslim organisations in Singapore. British officials on the island saw the affair as developing

> to a small extent in the public eye into an inter-religious and inter-racial question. Attempts were made to enlist the intervention of educated and influential Muslims to prevent further complications. Although they deplore the manner in which this marriage has taken place and consider the bride to be young, their attitude is that as the marriage is legal according to the law of Islam, it would be wrong for them to intervene. The Dutch Consul-General made representations

> that action should be taken by Government against Mansoor Adabi, possibly under the Emergency Regulations, but he was informed there was no action which the Government could legally take to prevent the course of events or interfere in the matter which was clearly one of legal concern.[36]

Admittedly, the British were unsure of the proper course of action as any wrong moves would affect public opinion towards the government. On the one hand, Muslim organisations were permitted to raise public funds in aid of Che Aminah's legal battle for the custody of Maria Hertogh. On the other hand, British policy makers attempted to introduce the Laycock Marriage Bill on the lines of the 1929 Age of Marriage Act in the United Kingdom, to invalidate marriages between persons who were below the age of 16.[37] More than just a spontaneous reaction to the ongoing Maria Hertogh controversy, the bill was also a preventive measure to ensure that European children were not lured into marriages with non-Europeans. Such unions would, in the long run, threaten the purity and superiority of Europeans in the colony and their natural right to dominance.[38]

Muslim female activists in Singapore supported the Laycock Bill and went even further to highlight the abuse of women, which was rooted in an androcentric interpretation of Islam in the Malay World. Their radical stance drew severe criticism from the *ulama* (Muslim scholars) in Malaya, who unanimously condemned the bill as anti-Islamic. Other organisations, such as *Jamiyah*, the Tamil Muslim Union and the Muslim Welfare Association joined in the fray to protest against the implementation of the bill. The editorials of *Utusan Melayu*, *Melayu Raya* and *Qalam* warned the Singapore Governor, Franklin C. Gimson, to exercise the utmost discretion before deciding upon the implementation of laws that would result in a worsening of Muslim confidence in his leadership. Consequently, the bill was amended, with Muslims excluded from its provisions. It was regarded at that time as a major victory for Muslims.[39] More importantly, the episode had also revealed the embedded weakness of the British colonial administration in facing up to the resistance of its Muslim subjects.

Concurrently, an originating Summons filed by Maria Hertogh's parents was issued in the High Court of Singapore, requesting that the marriage of Mansoor and Maria Hertogh be declared illegal and that she be restored to her parents in the Netherlands. At the hearing, which was attended by hundreds of Muslims, Justice Brown of the Singapore High Court awarded the custody of Maria Hertogh to her parents for the reason that the court had no power to absolve parental rights. The judge declared that the 'marriage' of Maria Hertogh to Mansoor Adabi was invalid, on the grounds that Maria Hertogh was legally domiciled in the Netherlands. Under the Dutch law, all marriages under the age of 16 were deemed unlawful. It was argued that Mansoor Adabi was not domiciled in Singapore, and hence could not assert his rights as Maria Hertogh's husband based on the colony's laws pertaining to Muslim affairs.[40] The Court's decision in declaring the marriage invalid was a critical turning point in Mansoor Adabi's career. He resigned from his post as a trainee teacher and became engaged in politics, social activism and legal reform.

Yet no measures were undertaken by the British to arrest the sentiments which English and Malay newspapers were capitalising upon at this crucial juncture. Numerous commentaries portrayed the legal controversy as part of a wider and ongoing battle between Christianity and Islam. Powerful symbols such as the cross and the crescent moon were juxtaposed in cartoons in a blatant effort to sacralise the legal controversy. The state of affairs worsened when Maria Hertogh was placed temporarily in the Roman Catholic Convent of the Good Shepherd. Images of the tearful girl kneeling in the church which were published in the *Singapore Standard* infuriated Muslims in Singapore and Malaya.[41] On 4 December 1950, *Jamiyah* and the Singapore Muslim League called for a mass meeting to be held under the leadership of Muslim elites in the colony. A consensus was reached among the local Muslim leaders that Maria Hertogh had been brought up as a Muslim girl, and that her marriage was legal. Resolutions passed in this meeting further amplified the ubiquitous perception that Justice Brown's verdict was directed against the Islamic law of marriage.[42]

Five days later, radical activists who were enraged by the court's decision formed the 'Nadra Action Committee' which incited Muslim crowds to wage a holy struggle against the enemies of Islam. Newspaper reports on the Maria Hertogh case and its implications upon Muslim life were also widely discussed in mosques, coffee shops and other public places. Nevertheless, the British Special Branch did not fully anticipate the imminent outbreak of mass violence. They did not register, as did the American Consul-General (William A. Langdon), the rapid escalation of religious tensions in the colony, and the fact that Muslims were 'prepared to act in a unified manner where their religion is involved'.[43]

The riots

On 11 December 1950, the court rejected an application for a stay of execution of the judgement which had been filed by Che Aminah and Mansoor Adabi. The first major riot in post-war Singapore began that day outside the High Court. Violence escalated after shots fired by Henry L. Velge, a Eurasian Volunteer Police Officer, wounded two Malays. Sporadic attacks developed quickly into widespread incidents of arson, robbery, murder and other forms of brutality, directed mainly at Europeans and Eurasians. Such acts of violence are examples of what Charles Tilly has termed 'reactive collective actions' which were undertaken by an enraged mass to defend a moral code. Devoid of a clear political programme and organisation, such a movement would not be able to sustain a long-term struggle against an established polity.[44] In the short run, however, the dozen troops and policemen who confronted the rampaging masses proved to be ineffective. Malay police officers refused to comply with orders to arrest their co-religionists, whom they saw as pursuing a just cause against non-Muslims. By 6 o'clock in the evening, mass violence had spread to other areas of Singapore. Bukit Timah Road, Kampong Java, Kampong Glam, North Bridge Road, Kallang and Geylang Road were places where the riots had been most virulent. Donald Horowitz argues that the Maria Hertogh riots were exceptional in that there were varying incidents and

cycles of violence directed towards diverse targets.[45] Put differently, there were in actuality several different riots that were lumped together under the general heading of 'The Maria Hertogh riots' by the colonial state, the media and subsequent writers.

When examined closely, the targets of the rioters were not only Europeans and Eurasians, but also Muslims who were perceived as siding or collaborating with the colonial state. Women and children were generally left unharmed, which points to the fact that the rioters were not necessarily mindless and irrational but were sure of their prey. Bottles of water, beer and oil were also looted from vehicles that came into contact with the rioters. In one of these incidents, a funeral hearse driven by Kasmin bin Bakri was damaged due to stone and bottle throwing. A Malay soldier, who was standing near the Sultan Mosque during the riots, had to fire several shots from his revolvers to ward off his assailants. About 260 passengers from various ethnic backgrounds were ordered by rioters to alight from a commercial bus before the vehicle was set on fire. Sharing the predicament of Europeans who were driving their vehicles in the riot areas, H. J. A. Gutridge's van was stopped by a 100 rioters near Syed Alwi Road. He was forced out of his vehicle and attacked with sticks. His lifeless body was discovered two days later in a canal. By 10 o'clock on the night of 11 December, the riots had died down, only to resume at 8 o'clock the next morning.

The police were given orders to open fire in the face of imminent danger on the second day of the riots. In areas where Europeans and Eurasians formed a substantial part of the population, machine guns were mounted to prevent rioters from attacking houses and churches. Five persons had already been killed, and there were over 100 wounded. Three of those injured were reported to be Americans. Concerned about the possible spread of communist influence in the midst of the Korean War, the American Consul-General was called upon to submit detailed reports on the genesis and daily progress of the riots. During the height of the violence, the American Secretary of State was informed that all bus services had been curtailed, 'radio warned whites and Eurasians to remain indoors. International air travellers [were] still detained at [the] airports. FS [Foreign Service] female employees, wives and children [were] told to stay at home.'[46] It was only upon the arrival and deployment of three battalions of Malay infantrymen under the command of Major-General Dermott Dunlop that order was largely restored. Following a tip-off from a police informant, army troops were deployed at the causeway linking northern Singapore to the Malayan Peninsula, to prevent members of invulnerable cults, triads and militant groups in Malaya from entering the island. Helicopters were used to evacuate casualties and to take photographs of rioters for later identification.[47] On the same day, Maria Hertogh was flown to the Netherlands.

In Britain, the riots became a topic of intense debate between politicians of opposing parties. Prominent leaders of the Conservative Party, such as Winston Churchill and David Gammans, demanded that Labour Ministers in the House of Commons provide detailed reports on the incident. Questions were raised as to whether such an unanticipated outbreak of violence was a product of communist

influence, and fears were expressed about the possibility of the impending spread of a violent religious movement throughout Malaya. In response, the Secretary of State for the Colonies, James Griffiths, stated on 12 December that the riots had not been thoroughly quelled. Curfews that had been imposed since the first day of the riots would be extended for several more days. Griffiths dismissed the speculation that the riots were caused by a planned intervention by the Communists. Close cooperation with leaders of the Muslim community had also been established to prevent the spread of violent movements that were precipitated by religious sentiments.[48]

By noontime on 13 December, the riots had scaled down to sporadic attacks on the police. During the riots 18 people were killed, including 7 Europeans and Eurasians, and 173 were injured. Two buildings had been burnt and 119 vehicles were damaged. The death toll arising from two days of rioting and police reprisals was said to be the highest when compared with other violent incidents on the island from 1945 to 1963. Although a majority of the persons arrested were Malays and Indonesians, several Chinese members of a local secret society were also included in the list of suspects.[49]

Seen in terms of the number of casualties and the extent of the damage to property, the Maria Hertogh riots were less serious in comparison to previous major disturbances in other British territories. In Bengal in November 1947, for example, more than 200 persons died during what has been described as one of the bloodiest incidents of communal rioting between Muslims and Hindus in India.[50] The same degree of bloodshed characterised other colonies, such as Aden (in 1947), the Gold Coast (in 1948) and Nigeria (in 1949). Yet the significance of the mass violence that broke out in Singapore in December 1950 was to be found not so much in the lives that it claimed, as in the structural vulnerabilities of the colonial system which had been laid bare. According to Charles Jeffries (a former Deputy Under-Secretary of State for the Colonies), the Maria Hertogh riots were particularly significant, as they had exposed the weaknesses of a central pillar of British colonialism: the police force. The island's reputation as one of the most secure and strategic points of the empire had been stained by the two smouldering days of violence.[51]

The probable regional and global repercussions of the riots were even more worrying. Occurring as they did at the height of a period of decolonisation and an ongoing battle against the spread of Communism in Southeast Asia, the riots had placed a severe strain upon the internal security of Malaya. Within the larger Muslim world and in England, the riots received widespread coverage and negative responses in a plethora of newspapers and periodicals. Britain's legitimacy and the image of the Empire as a whole had been seriously undermined. There was a plausible fear that diplomatic relations between Britain and the newly independent Muslim countries would be jeopardised, especially with Pakistan and Indonesia. Most crucial of all, for Muslims in Malaya, the riots revealed that Islam could provide the ideological basis for unity and theological justifications for resistance to colonial rule. The quelling of the violence did not see the end of the struggle to restore Maria Hertogh to her rightful husband and to Islam.



DAWN
was started
on the 1st June 1950
as a Weekly
Views-magazine

DAWN

This is a Free Issue

From TO-DAY
DAWN
become a Tabloid
Daily
Voicing the
Malay and Muslim
Viewpoint

VOL 1—No. 25. • SINGAPORE, MONDAY, DECEMBER 11, 1950 • Phone: 4402

MUSLIM LEADER'S OPEN LETTER TO THE POLICE

May I kindly request you as your well-wisher, not to repeat the Gurkha mistakes. It is human to err, but it is angelic to forget the error and correct ones self. Is it not?

If the police want, I can arrange insha-allah to give you 33 Natras to control any Muslim crowd provided each Natra is armed with a Quran. Natras are enough to tackle a Muslim mob. The police pistols are meant for the Gog and the Magog.

If saner Counsels do not prevail, we are ready for stronger doses of COLD WAR mixture. You know how German Nazis were defeated by winter's Tec. And our Pen could also become sharper than sword, more biting than the winter tasted by the Nazis. And enough preparatory work and organisation exist, in the framework of the Islamic Brotherhood to deal with any situation as it may arise.

We hoist this white Flag and want Peace! We do not want to hoist white Flags in every house and have mourning processions in white. To the Christins Black may signify mourning; to us it is white because a dead Karimghani for instance would be wrapped for a Muslim burial in white and not in black. And if the Police want I can offer myself as volunteer, to control any Muslim mob? I can ask the Chief Kathi and the other Kathis to come and if you think that you do not want fellows of local significance, I can offer a man of world fame Moulana Siddiqui

OPEN LETTER

To the Trinity who will sit in Judgement To-day

Dear Brothers,

I am writing to you not in your capacity as Judges but in your capacity as human beings responsible to God as every other human being. If a man wears black coat and wigs and sits for a few hours a day on a particular chair, he need not cease to be a Man. As a man in the pulpit addressing to a Man in the judicial chair, in a personal capacity, as man to man, I have written to you not with contempt in my heart but with human brotherhood. And I ask you not to Judge in our favour, because though in legal terminology it is Amina Vs Mrs. Hertogh, before the higher Tribunal of spiritual values it is a case of Muslims Vs Catholics. Christ whom not only the Protestants and Catholics but also the Muslims honour said "Render unto God what is due to God; render unto Caesar what is due to Caesar" (I Quote from memory without time to refer). And because we Muslims try to follow Christ and Mohamed who came after him, we try to be loyal to God and to the King. But, when my duty to God demands that I do a thing, it does not matter if the King is displeased and I have to stand before a modren Pilate to be expelled from Singapore or sent to solitary confinement at the worst because in the reign of the Caesar to whom we are trying to be loyal there is no cruafixion. And so I am writing to you taking the risk which my friend Dato Onn's son and secretary has warned about. I take the risk of being haulted up in the Court for contempt of Court for my standing up for a claim that the Court in trying to establish its prestige should not become huilty of contempt of the higher Court of humanity and the still higher Court of the Judgement Day. Tomorrow you would be Pilates trying NATRA who is imprisoned in a convent which though not in law but in fact is a prison, where she stays against her will in spite of the Atlantic Charter. Of course, they in the convent are not torturing her there as Christ was tortured on his way to the Cross but the blind fanatics who did the crucifixion about 1927 years ago only whipped the body and nailed the hands finally speared the hips while NATRA whom all Muslims regard to-day as either own sister or daughter is having Torture of the Heart. To we Orientals, bleeding the heart of a human being is more torturous than the crucifixion of past history. I do not ask the Trinity who will play vital part in the Drama of Life to be enacted tomorrow to decide this way or that way. My only appeal will be to postpone this tense situation, more tense in the hearts of People than in what concerns my police friends, at least because it is December wherein falls Christ's birthday and it also happens to be Rabi-ul-Awwal wherein falls the Prophet's Birthday. Let the judgement day be postponed at least. And let us continue our Cold War Tactic to try to melt the heart of Mrs. Hertogh, her Committee or Helpers in Amsterdam, her nation and her Queen. After the prophet's Birthday and Christ Birthday, they can allow Justice to do its duty if before that time the LAW of GRACE which is higher than the law of Justice dose not prevail. May I also ask you to see the cartoon published in Melayu Raya do-day because it speaks for itself.

Edited, Printed & Published by M. Karimghani, for the Muslim Publishing House, Ltd., 123, Serangoon Rd., Spore.

Figure 2.1 A Muslim newspaper editorial comment on the riots

Source: Author's Family Collection

Appeals against the court's decision were still underway, and there were heightened efforts towards gaining the support of Muslims, both locally and globally.[52]

Whilst the riots were somewhat reminiscent of the Sepoy Mutiny in Singapore in 1915 in that Muslims were the main perpetrators of violence in both incidents,

there was, however, no turning back to the draconian measures that had been undertaken during the high noon of the Empire.[53] Rather, the British were well aware that a more complex and volatile environment lay before them. All counter-measures, therefore, had to be implemented with the utmost discretion, so as to minimise unwarranted reactions from the local and global Muslim communities. Jürgen Osterhammel was not far off the mark in observing that colonial states in the post-Second World War period 'reacted nervously and harshly to every stirring of opposition. Its guiding principle was never to let the initiative be snatched away and never to lose face. The state always had to have the last word; every provocation was to be punished with retaliation.'[54] It is to British strategies in the aftermath of the riots and their far-reaching ramifications to which we now turn.

3 Proscription

Instilling fear

Arrests, raids and curfews were three tactics which the British employed from the worst days of the riots. The aim was to instil fear into the hearts and minds of the enemies of the colonial state in order to prevent further violence. 'Fear', as Corey Robin brilliantly puts it, 'ensures that those with power maintain it, and prevents those without power from doing much, if anything, to get it'.[1] Fear was thus a political tool used by the colonial state to diminish all forms of violent opposition and to regain agency in the aftermath of the riots. But such tactics were not without contradictions and negative consequences. Hospital staff, for example, had to work for over 16 hours each day because doctors and nurses on the night shift were unable to report for duty. Among the ordinary citizens of Singapore, curfews were generally perceived as relics of the Japanese Occupation. A majority of the populace were thus averse to having to stay indoors, as this had a great impact upon their livelihood. The British government had, on many occasions, avoided the enforcement of curfews because they regarded it detrimental to the economy and the daily lives of the people. The Maria Hertogh riots were a watershed in that they compelled the British government to impose the first among a series of dusk-to-dawn curfews in post-war Singapore.[2]

At noontime on 13 December 1950, soldiers of the British army patrolled the streets and rounded up potential suspects. The police force had been issued with search warrants allowing them to enter private dwellings. Adult males in selected *kampongs* were systematically coerced to assemble in open fields to a point that it recalled the painful memories of 'Operation Sook Ching'; the mass screening of Chinese in the early days of the Japanese occupation in 1942.[3] The police ensured that all informers wore masks in order to hide their identities. Bruises, burn marks and possession of fuel were taken as tell-tale signs of direct involvement in the riots.

All in all, more than 500 persons were detained and interrogated from the first day of the riots. A majority of those arrested were Muslims in the age group of 15 to 40 years. A dozen Chinese gangsters who joined the fray were also rounded up. Those detained were rigorously interrogated and persons who resisted arrest were subjected to physical punishment. Reporters observed that the areas around the Sultan Mosque, North Bridge Road and Geylang seemed like miniature war zones, as shops

were closed and burnt cars littered the roads. In short, the municipal area of the island was 'dead'. The *Singapore Standard* warned that the riots might escalate into an 'orgy of indiscriminate slaughter' of not only Europeans and Christians, but also Chinese and Indians.[4] Though this was a somewhat extreme appraisal of the state of affairs, it did have a grain of truth in it – sporadic violence was far from over.

Vehicles were continuously vandalised, and men were often seen armed with *parangs* and sticks. A group of youths took up positions on the upper floors of shophouses to throw bottles and stones. Rioters attacked two police cars at Jalan Sultan and North Bridge Road. Other forms of criminal acts were also reported at Orchard Road, Bukit Timah Road, Serangoon Road and Aljunied Road. The police and military responded by firing warning shots at the perpetrators to mitigate the scale of damage to public and private property. Armoured cars of the 13/18 Hussars continued to patrol the streets and were stationed at places where the worst rioting had taken place. A daylight curfew was imposed over the whole island. In the Geylang district, the curfew was imposed until as late as 10 o'clock in the morning.[5]

Upon obtaining the permission of the Chief *Kathi* of Singapore, Haji Ali bin Haji Said Salleh, the police went about inspecting the Sultan Mosque. Malay detectives were also deployed to monitor and perform bodily checks upon all worshippers who entered and left the mosque. A rifle, ammunition, steel spikes, bottles and large stones were found and a young Javanese man, who was suspected to have joined the rioters, was taken in for questioning. Muslim leaders in the colony were apparently shocked by the police findings. An appeal by Mohamed Javad (M. J.) Namazie (the Joint Secretary of the Muslim Advisory Board) was broadcast via radio, calling on Muslims to put an end to the exploitation of sacred places for disgraceful purposes. Having proclaimed his unrelenting support for the British to proscribe known suspects and guilty persons, Dato Onn bin Jaafar took on the risky task of dissuading Muslims from rioting in areas of Singapore where antagonism towards the Europeans and Eurasians was still evident.[6] Such political posturing by the 55-year-old President of UMNO contributed to a decline in popular support for him, and the emergence of widespread criticism of his leadership.

On 14 December, parts of the city witnessed their third curfew, which extended from 6 or 7 o'clock in the afternoon till 6 o'clock in the following morning. Curfews were extended till noon in certain localities. In areas where curfews had been lifted, members of the public were allowed to roam around ravaged areas, much to their own peril. Altogether, 66 persons were arrested for breach of curfew, and 104 were detained under the Emergency Regulations during screening operations throughout the colony. The number of persons arrested since the riots began shot up to 884, of whom 42 were released. Those who were arrested were largely Malays, Indonesians and Indian Muslims. Only two serious incidents which involved Malay and European casualties were reported on 14 December. Non-Muslims, particularly the Europeans and Eurasians, were observed to be in constant fear of groups of Malay youths who gathered on the fringes of villages from Jalan Eunos to Changi Road. In reaction to this, the British deployed hundreds of military personnel to restore order and public confidence. Together with the Acting Commissioner of Police, R. C. B. Wiltshire, and military escorts, the

Singapore Governor toured various areas that had been affected by the riots. On the same day, a full list of the names of the persons who had died in the riots and hundreds of others who had been injured was published in *The Straits Times*.[7]

Meanwhile, rumours of fresh riots arising from police atrocities were spreading in the colony. Although based on false information, such rumours were potent in a society where word of mouth was the most common mode of disseminating news. In his study of Hindu–Muslim riots in India, Paul R. Brass has pointed out that alarmist rumours in the aftermath of an outbreak of collective violence have served to deepen the hatred and distrust between the opposing parties. The key consequence of such mutual revulsion is a persistent cycle of rumour mongering and violence within a given setting.[8] As seen in an earlier chapter, the Muslims of Singapore had been a close-knit community which relied on personal, face-to-face social connections and oral communication. All it took was a rumour to set the community of faith onto another rampage.

Speaking over Radio Malaya to warn against the manufacturing of rumours, Wilfred L. Blythe (the Singapore Colonial Secretary) maintained that stories of serious incidents occurring in various parts of the island were complete fabrications and that persons found guilty of spreading false information would be duly prosecuted. Forty-five armed vehicles would be touring the island to ensure that all untoward incidents would be dealt with swiftly. The general public was further assured that the police force had been deployed throughout the colony. Still some parts of the island, namely, Chancery Lane and Holland Road, were plagued by episodes of stone throwing directed at Europeans. One of the victims quickly reported the incident to the police, but many others saw the futility of such actions. On the night of 15 December, peddlers and prostitutes, whose income was severely affected by the curfews, were caught loitering in the back alleys of Selegie Road, Jalan Besar, Rochore Road and Desker Road. They were warned by the police to stay indoors. Selegie Road, which was one of the most dangerous spots during the riots, was kept under close surveillance.[9]

By 16 December, the Singapore Police had arrested another group of 187 persons for violation of the curfew order. Under the Emergency Regulations, 76 others were detained. As part of its deterrent measures, the government revealed publicly that the number of people arrested had reached a total of 1,107. About 61 persons were arrested on the following day, and 500 others were placed under detention.[10] A Special Branch report noted that the spread of misinformation regarding the facts of the Maria Hertogh case was still rampant. Another radio broadcast entitled ‘Police and the People’ was thus arranged to appeal, yet again, against the spreading of rumours. In a melodramatic way, George G. Thomson, the Public Relations Secretary, concluded his broadcast by mentioning that ‘There is today and tomorrow whose problems must be faced by us all, and they must be faced pending a judgment on the past. . . . We do not wish to ask, what in any case is impossible that the events of the past should be forgotten but to appeal that now on every side, the task must be taken up of building confidence and security again.’[11] By 17 December, curfews were limited to certain areas, extending only from 8 o’clock at night till 5 o’clock in the morning.

From time to time, the British had to deal with various challenges in enforcing curfews in Singapore. Most salient were persons who were ignorant of the riots. The *Singapore Free Press*, for example, related a humorous story which was illustrative of the predicament faced by Malay sailors and fishermen in Singapore at that time. A man named Said, who worked on a small boat, was totally oblivious of the riots, as he did not own a radio. When he came ashore, none of his relatives informed him of the events that had unfolded. Said thus left home in the late afternoon in search of entertainment only to be shocked at finding himself arrested by Gurkha policemen. After much difficulty, Said was released and sent back to his boat. Apart from that, there were many others who deliberately flouted the curfew orders. A European lawyer, M. H. MacDougal, was caught walking alone during the restricted hours. When asked by police to produce his identification card, the lawyer stated that he knew his rights and resisted arrest. He was brought to the police station and fined 10 dollars.[12]

Favouritism towards selected Europeans was also said to have been practised by high-ranking officials in the colony during this period. O. O. Salvesen, a Volunteer Special Constable, recounted an incident at Orchard Road police station when a European couple and six Asian men were arrested for breaking curfew and for their failure to produce identity cards. Whilst the six men were put behind bars, the European couple was subsequently released via the intervention of Sir Charles Murray Aynsley, the Chief Justice of Singapore. Several officers at the station who witnessed the incident saw it as an instance of British favouritism towards all Caucasians. Aynsley responded to this accusation by stating that he was not in any way involved in the release of the European couple nor did he seek to shield them from the legal process.[13]

Yet curfew-breaking was the least of the problems faced by the British. A major obstacle which had to be overcome was the reluctance on the part of the Malay police officers to arrest Muslim suspects, which they saw as a form of betrayal against their co-religionists. Disillusioned with the laws governing Muslims in Singapore and angered by the news that Maria Hertogh had been secretly flown back to the Netherlands, a majority of the Malay policemen refused to comply with the orders of their European superiors. Many decided to absent themselves without leave from their duties, due in part to their own criminal involvement in the riots. The morale of most Malay police officers was so low that it became obvious even to the non-uniformed officials of the colonial administration.[14]

By 18 December, the western areas of the island were freed from curfew. The names and identity card numbers of all curfew breakers had been recorded, and they would be charged in court if caught for a second time. None had broken the curfew twice. On 19 December, the curfew orders were completely lifted. Muslims were still subjected to routine bodily checks, and other members of the public were required to produce their identity cards upon encountering the police. With the exception of the burning of a bus by several Chinese youths on the outskirts of the city, no other incidents of violence were reported.[15]

Within governmental circles, plans were laid for the arrest of Muslim leaders who were responsible for inciting the Muslim masses to rise against the colonial

state. A long list of names was drawn up by the Special Branch, which included the names of ideologues who delivered polemical speeches in the heat of the Maria Hertogh legal case. The British were mindful that arresting anyone who was too influential would tilt the balance towards Muslim radicalism and, in turn, precipitate yet another wave of riots. Six influential Muslims were singled out upon careful consideration. An extensive exposition of the biographies of these men is crucial for an understanding of British moves to detain them.

Ideologues and perpetrators of violence

Topping the list was 42-year-old Abdul Mohammed Abdul Karim Ghani, more commonly known as 'Karim Ghani'. Born in Madras and educated in Ceylon, Karim Ghani grew up in Rangoon, where he became a Parliamentary Secretary under Ba Maw. In the course of the Second World War, Karim Ghani migrated to Japanese-occupied Malaya and was appointed as a Propaganda Minister of a virtual Indian alternative government led by Subhas Chandra Bose. He was imprisoned upon the British reoccupation of Malaya but was later released without being tried. In March 1946, he was diagnosed with a mental disorder and spent the next two months in an asylum. Following his release, Karim Ghani pioneered the publication of several newspapers and periodicals in Penang and Singapore, all of which were short-lived.

By September 1949, Karim Ghani had taken on the roles of General Manager of the Muslim Publishing House, the Chief Editor of a Tamil daily newspaper, the *Malaya Nanban*, and editor of an English weekly tabloid, *Dawn*. With the support of the South Indian Muslim community, he was simultaneously elected President of the Muslim League of Singapore and President of the All-Malaya Muslim Missionary Society. The onset of the Maria Hertogh controversy gave Karim Ghani a fine opportunity to pursue his standing interest in establishing a Muslim political party.[16] On 17 November 1950, Karim Ghani took over the management of the legal case from another Indian Muslim, M. A. Majid. Referring to himself as an *Imam* (Leader) of a Holy War against the unbelievers, Karim Ghani gained prominence through his charismatic speeches and erudite commentaries in newspapers. Judged by present-day academic standards, he could be described as a 'Radical Islamist'.[17]

It is, therefore, all the more remarkable that Karim Ghani did not call for violence against non-Muslims in the colony. In fact, he was instrumental in deterring his co-religionists from engaging in criminal activities during the riots. He urged Muslims in Singapore to direct their resources towards the pursuit of a legal struggle to restore Maria Hertogh to Che Aminah and Mansoor Adabi. In a speech delivered on 14 December at Kuala Lumpur, Karim Ghani revealed his intention of obtaining the support of all Muslim countries at the forthcoming World Muslim Congress in Karachi. The Indonesian Government would be asked to sever its diplomatic relations with the Netherlands as a symbol of protest against Dutch involvement in the legal tussle. A few days later, a mass meeting was held in Singapore to launch his Muslim political party. Karim Ghani had also laid plans for a trip to Jakarta in the hopes of locating Maria Hertogh's maternal

uncle, Soewaldi Hunter, in order to obtain more documentary evidence for the upcoming appeal in the Singapore High Court. Described by the British as neither dangerous nor a conspirator, but a convenient figurehead and a powerful symbol of Muslim resistance, Karim Ghani's arrest was intended as a warning to deter other aspiring fanatics.[18]

The British were, however, puzzled by the roles of 37-year-old Dr Burhanuddin bin Mohammed Nur (more commonly known as Burhanuddin Al-Helmy) and 32-year-old Mohammed Taha bin Kalu. They had strong suspicions that these two were the chief architects behind Karim Ghani's manoeuvres.

> It is not unreasonable to suggest that Dr Burhanuddin and Taha Kalu may have had in mind Karim Ghani's experiences as a minister in the revolutionary Indian Independence Government of the occupation period when they decided to hitch their wagon to his star.[19]

Both men were co-founders of the defunct Malayan Nationalist Party (MNP), also known as the *Pergerakan Kebangsaan Malaya Merdeka* (PKMM). Born in Perak and of Sumatran descent, Burhanuddin was a homeopathy practitioner whose collaboration with the Japanese, leftist leanings and close contacts with the Communists had resulted in several terms of imprisonment. He served as the President of the MNP in 1947 and was its general adviser from 1948 until the party's dissolution in 1949. In August 1950, Burhanuddin became one of the founders and the editor of the *Melayu Raya* newspaper. Mohammed Taha bin Kalu, an Indian Muslim born in Malacca, was a lawyer's clerk and had led a branch of the MNP in Singapore. Both men were known for their Pan-Indonesian sympathies and for campaigning for the independence of Malaya.

The outbreak of the riots together with the arrests of hundreds of Muslims and persistent warnings by the Special Branch had still not broken the radical spirits of these men. Merely two days after the riots, Taha Kalu, Karim Ghani and Mansoor Adabi visited Kuala Lumpur for a meeting with legal advisers. This was followed by a planned tour of major villages and towns in north Malaya to obtain the support of Muslims of all ages and affiliations in regard to the Maria Hertogh legal struggle.[20] A week before the arrest of Karim Ghani, Dr Burhanuddin was appointed the new editor of a radical newspaper, *Dawn*. From the perspective of the Special Branch, the arrests of Dr Burhanuddin and Taha Kalu were deemed necessary, for they were regarded as potential threats to the restoration of peace in Singapore. Indeed, the MNP had hoped to capitalise on the anti-British sentiments in favour of a violent revolution which would overthrow the colonial regime. This was part of the *cita-cita perjuangan* (the hopes and aims of struggle) on the road to the creation of the union between Malaya, Singapore and Indonesia.[21]

The three other potential detainees were somewhat representative of the sub-ethnic groupings within the Singapore Muslim community. A member of a well-respected Arab Hadrami family, 50-year-old Syed Ali Al-Attas was a businessman who was prominent within the Malay entertainment arena. He was also a member of the Malay Welfare Council and played an active role in garnering financial

support for Che Aminah and Mansoor Adabi. Similar to Al-Attas, Mohammed Mustaza was a Malay businessman from Taiping, Perak. He had been a sympathiser of API, the proscribed youth organisation, and later became the President of *Pemuda Radikal Melayu* (PERAM, the Radical Malay Youths). A British intelligence report described him as 'nothing more or less than an irresponsible firebrand'.[22] Last on the list was Darus Shariff, a political activist who was 35 years old. As a former President of the Singapore branch of the MNP and subsequently the Secretary of the Singapore Malay Welfare Council, Darus Shariff was vocal in urging Muslims to rise against the tyranny of the colonial state. A champion of Malay communal concerns and economic rights, he shot to prominence with the establishment of the Singapore Branch of UMNO in December 1951.[23]

At 3 o'clock on the morning of Monday, 18 December 1950, officers from the Special Branch raided the houses of the six men, detaining them and seizing all documents related to their activism. No resistance was encountered, and it was known that Karim Ghani had anticipated his arrest. The men were detained under Emergency Regulation 20 which gave the Singapore Colonial Secretary the authority to issue Detention Orders 'when it appears to him to be necessary or expedient for securing the public safety or for the maintenance of public order'.[24] The arrests, nevertheless, did not see the end of Karim Ghani's resistance against the colonial regime. On the evening of his detention, he sent a petition to the Singapore Governor on behalf of the five men who had been arrested along with him. He contended that the Detention Orders were unjustifiable and protested against being imprisoned with suspected communists.[25] Upon rigorous interrogation, the detainees were transferred from a high-security prison on St. John's Island to a detention centre at Pulau Belakang Mati.

The British were expecting violent protests from Muslims in the colony. To the contrary, unlike the radical protesters in Malaya, Indonesia and Pakistan, which we shall encounter in Chapter 4, Muslims in Singapore adopted a non-militant approach. An open letter signed by more than 100 sympathisers of Karim Ghani was sent to *Jamiyah* and the Singapore Muslim League, urging the two organisations to launch an island-wide campaign to condemn the unlawful arrests of Muslims and appeal for the release of the six men, who were respected leaders of the community. Failing to do so would lead to a decline in public support.[26] A monthly political report captures vividly the general sentiments among Muslims in Singapore at that point in time:

> Singapore – The Arrests on Detention Orders of Karim Ghani, Dr Burhanuddin, Taha Kalu and three other disciples on December 18th, has produced remarkably little reaction. The strong Military show of force and the earlier arrest of over 300 suspects in screening raids have undoubtedly had a sobering effect, but even so the signs of protest have not been such as to indicate that Karim Ghani had ever achieved a fanatical following. Muslim leaders who mistrusted Karim Ghani and were glad to see him removed, are now amongst those who are appealing for his release – but this is a natural manoeuvre.[27]

Consecutively, more than 566 persons were detained and 189 released after rigorous interrogation. Detention Orders were issued for another list of 171 persons. As the waves of arrests intensified, the Criminal Investigation Department (CID) announced the creation of the Riots Investigation Unit, which consisted of twenty-nine officers and detectives. The task of the Riots Investigation Unit was to collate information on the causes of the riots. Such information, as will be seen later, assisted in the work of the Commission of Enquiry. To address the drain on manpower within the police force due to the establishment of the Riots Investigation Unit, the police were on full alert for unexpected provocations by Malay youths, and stepped up the arrests of suspects to discourage lawlessness.[28] The CID appealed to the general public to provide any pictures or reports pertaining to the riots. It was observed that Malays and Indians were, by and large, reluctant to provide vital information for fear of implicating their families and friends. Another possible reason could have been the climate of distrust that had developed within the Muslim community towards the colonial government as a consequence of the arrests of innocent persons. Only Europeans and Eurasians were obliging in providing vital information on the riots. No members of other ethnic communities on the island had thus far provided any forms of assistance.[29]

The role of the press was at the centre of a debate in the Singapore Legislative Council on 19 December 1950. Tan Chye Cheng, a member of the Progressive Party, rebuked the press for its 'gross irresponsibility' and called for harsher measures by the government to address misrepresentations of the Maria Hertogh case.[30] In an effort to mitigate sensational press descriptions of the riots and the legal case, the Public Relations Secretary arranged for a conference with the editors of all Singapore-based newspapers at Government House. It was reported that the sale of vernacular newspapers, such as *Utusan Melayu* and *Malaya Nanban*, had increased by 100 per cent in the days immediately after the riots. The tabloid *Dawn*, which was the mouthpiece of Karim Ghani, had ceased publication following the editor's arrest. Even so, the Singapore Governor appealed to the press for their fullest co-operation in avoiding reports that could further provoke Muslim sentiments. Publications of pictures and inflammatory captions were forbidden.

At another conference with editors of several newspapers that were based outside Singapore, Gimson made similar appeals to refrain from reporting on the challenges faced by Maria Hertogh in the Netherlands. All newspapers (with the exception of the *Melayu Raya*) complied with governmental appeals and avoided polemics in their treatment of the legal controversy. *Utusan Melayu* featured updates on the Maria Hertogh case in its front page editorials for more than a week following the riots, but maintained what the British regarded as 'objective reporting'. Although the *Utusan Melayu* editorials continually asserted that Muslims had been offended by the government's lack of reverence for their religion and laws, its politics focused upon widening the differences between the leadership of UMNO and its youth bodies over the outbreak of the riots. Dato Onn was its main object of vilification.[31]

The British had already anticipated resistance by *Melayu Raya* but were optimistic of a change in attitude arising from the recent waves of arrests. However,

the founders and editors of *Melayu* were not swayed by the Governor's appeals. In his memoirs entitled *Malay Nationalism Before UMNO*, Mustapha Hussain recounts his meeting with Dr Burhanuddin Al-Helmy prior to the latter's arrest. Having been appointed as a trusted correspondent and distributor of the newspaper, Mustapha appealed for Dr Burhanuddin to steer clear of the impending crisis. 'We should do what *Utusan Melayu* is doing. Be cautious and not be seen to be involved.' Mustapha alerted Dr Burhanuddin to the presence of Special Branch agents in the vicinity of the newspaper's office and the possibility of the *Melayu Raya* being banned in Malaya. The response from Burhanuddin was sharp and decisive: 'This is a test of Malay faith.' The newspaper sustained its polemical stance. Mustapha was suspected of being an agent of the police and was abruptly replaced by a new correspondent.[32]

Melayu Raya went on to fuel anti-European sentiments and rebuked Muslim leaders for their cowardice. A challenge was posed to the *Utusan Melayu* 'to keep pace in satisfying the Malay public's demand for rumours and gossip on the case'. One of the rumours suggested that premeditated attacks would be launched upon Christians during the Christmas celebrations in late December 1950. Another letter of reminder was thus sent by the Public Relations Secretary to all newspapers to refrain from publishing photographs of Maria Hertogh. Informal meetings were also held between British officials and the editor of *Melayu Raya* through the intercession of Dato Onn. Yet all was in vain.[33] Repeated warnings by the Special Branch were ignored and a tough reprisal was underway.

Below the surface, it had become clear to the British that the presence of Indonesians in Singapore was one of the driving forces of the riots, as seen from the hundreds who were still in detention. A meeting was held between the Singapore Governor and the Consul-General of Indonesia to discuss the enforcement of the Aliens' Ordinance Act of 1940 upon Indonesian residents in Singapore. This meant that all Indonesian nationals would be required to register with the police and that they would be compelled to update their residential addresses in Singapore on a regular basis. The Consul-General of Indonesia welcomed the proposal, as his role was to keep a comprehensive register of all Indonesians in Singapore, and the British government's proposal to compile a list of their names would lend support to his own endeavour. The Colonial Office was initially positive towards this development. Similarly, Malcolm MacDonald felt that Malays in Singapore were likely to be preyed upon if they were exposed to the ploys of radical Indonesian ideologues. But the British were faced with strained relations with President Sukarno as a result of the Maria Hertogh case, and there were a series of administrative difficulties involved in differentiating the 'Indonesians' from the 'Malayans'. The proposal was later dropped without being implemented.[34]

The use and abuse of law

The Riots Investigation Unit completed its report in January 1951, and copies of the document were provided to all leading newspapers in the colony. Such a

policy of deliberate disclosure was part of British strategy to counter the damaging rumours that were still in circulation. The CID identified five impulses that had resulted in the outbreak of violence, the first of which was the personal aspiration of Karim Ghani. This was coupled with Malayan and Indonesian nationalism, intertwined with anti-Dutch antagonisms. The next cause identified was local hooliganism manifested in the form of secret societies. Related to this was the involvement of persons belonging to cults which harboured fanatical interpretations of Islam that had propelled youths to take up arms in the streets.

The CID report discounted the role of communists as the prime movers behind the riots. Members of the Malayan Communist Party seemed 'to have been taken by surprise. It is possible that MCP elements took the opportunity of staging a small number of arson incidents, but if so their share in the whole riot was insignificant.' It was emphasised that the placing of Maria Hertogh in the Roman Catholic Convent and the failures of the Malay police had made the situation far more dangerous than it would have been otherwise. The definite facts of the report were that persons who were arrested before 20 December 1950 had been cross-examined and justice had already been meted out. Newspapers in the colony were, however, ambivalent towards what was perceived as a notable yet shallow effort by the colonial government. While praising the CID Riot Investigation Unit and the police force in general for their ability to produce a report amidst other urgent duties, it was suggested that a more comprehensive investigation be conducted to unravel many other underlying factors that may have contributed to the outbreak of the riots.[35]

On 8 January 1951, in the midst of continued protests by various branches of UMNO in Malaya with regards to the arrest of the six Muslim leaders, the government made a bold move by detaining John Eber, one of the lawyers representing Che Aminah. He was interned along with Abdul Samad bin Ismail (the *Utusan Melayu* Editor), Devan Nair (a Union Leader), and thirty other undergraduates and teachers for their active involvement in a clandestine group called the Anti-British League. The arrests were criticised by leftist-oriented activists and Muslim elites in the colony. Rumours had it that Eber and Samad's arrests were linked to their involvement in the Maria Hertogh legal case. The British denied these wild speculations and clarified that the movements and activities of all those arrested had been monitored for many months and that it had been firmly established that they were in cahoots with the Communists.[36]

This incident was met with riots launched by a crowd of 100 Malays, Indonesians and Pakistanis at the junction of Arab Street and Beach Road. A patrol car was attacked and the police opened fire on the rioters, who were armed with bottles and stones. By midnight of 10 January 1951, the chaos was over. One man was severely wounded, and many who had sustained injuries were arrested. Several dozens were said to have escaped from police action by hiding in nearby houses and shops. The police denied any connection between this short episode of violence and the arrests of communists or the Maria Hertogh controversy. The flood of arrests and raids continued unabated and random searchers of suspected mobsters and fanatics became normal occurrences. Fourteen people were detained under the Emergency Regulations and a CID spokesman mentioned that

twelve among those in police custody were Malays and Indonesians who took part in the December 1950 riots.[37]

During the Legislative Council Meeting on 16 January 1951, the Singapore Colonial Secretary announced the amendment of the Emergency Regulations in order to fortify the government's ability to quell future outbreaks of mass violence. The new bill stated that island-wide curfews could be imposed by any police division. From the experience of the December 1950 riots, it was determined that a more advisable move was to apply the curfew throughout the island, especially in the event of massive attacks against the civilian population.[38] Interestingly, newspaper editorials in Singapore refrained from criticising the bill. Extensive coverage was given to the punishment meted out to rioters who had been detained, and such reports are particularly useful in unravelling the identities (age, ethnicity and occupations) of what George Rudé has described as the 'faces of the crowd' in the worst days of the Maria Hertogh riots.[39] Contrary to British suspicions that the rioters were largely criminals from working-class backgrounds, the trials clearly demonstrated that men of white-collar occupations, and even employees of the colonial administration, were an integral part of the mass violence that broke out.

The first among the hundreds of men who were convicted was a 24-year-old police constable, Yaakob bin Mohamed. Yaakob was initially charged with causing hurt and destructive mischief. Two witnesses, who were both police detectives, claimed that the Malay constable had stopped their car during the riots in search of Europeans and Eurasians. Yaakob was allegedly among the rioters who were guilty of inciting violence. No clear evidence of Yaakob's direct role in an attack upon the two detectives was found after two days of rigorous cross-examination. The charge was thus amended to involvement in an 'unlawful assembly' which meant that Yaakob was relieved of his post as a police officer and sentenced to six months in prison. The policeman's fate was shared by a Javanese man, Senordin bin Ahmad, who was 26 years old. He was charged with being a ringleader of an unruly crowd of 40 Malays and Indian Muslims. One of the men led by Senordin was apprehended during the riots, yet was set free by their accomplices, who prevailed over the outnumbered policemen. Senordin was sentenced to six months' imprisonment. Eight Indonesians who were tried for 'unlawful assembly whose object was to cause hurt' were given a maximum of two years' imprisonment. Another group of Malay youths, who had chased and injured three European sailors along Tanjong Pagar Road during the riots, were given similar sentences. A Malay fireman, Abdul Jabar bin Haji Abdul Rahman, who wore his uniform whilst setting fire to a car, was to serve seven months behind bars. Likewise, an Indian Muslim was sentenced to six months' imprisonment for shouting intimidating slogans and threats at Europeans in North Bridge Road.[40]

The general public was particularly informed of court trials relating to Father Octave Dupoirieux of the Canossa Convent. In his testimony, Father Octave told the District Court that Inspector Bujang bin Tunggal had refused his appeal to allow him to enter the police station, despite his having been attacked by rioters. Bujang's defence lawyer argued that the inspector was executing the orders of his immediate superior, Inspector Ong; he was to refuse to permit the entry of civilians into the

police station in the wake of mass violence. After a protracted legal battle, Bujang was acquitted due to contradictory evidence laid against him. Another case that gained widespread attention within the Muslim community was that of the nephew of Che Zaharah, the president of the Singapore Malay Women's Welfare Association. Zan bin Omar, 20 years old, was charged with rioting, along with several other Malay youths. Che Zaharah became one of the defence witnesses, but for a lost cause. Zan was sentenced to 18 months' imprisonment.[41]

Indeed, justice is defined by those in power, and is often opposed by others who are aware of its excesses. Concerned lawyers and community leaders in Singapore declared that British judges had abused legal processes and bent the rules that governed the judiciary. Dozens of witnesses who testified against persons who were convicted did not actually appear in court. Many had concealed their identities for fear of reprisals.[42] To address the abuse of colonial laws and defend innocent Muslims who had been detained by the police and were subsequently charged in court, the Singapore Muslim League created a panel of Muslim lawyers. Among the court cases that were regarded as abuses of justice was the case of a Malay who was charged with being a 'Dancing Rioter'. Juraimi bin Radzi was purported to have 'danced wildly' with a cloth tied round his head. A former senior assistant of the United States Information Service, Mohammed Abdul Samad, was sentenced to six months' imprisonment for taking part in an unlawful assembly. The Chief Justice, Sir Charles Murray-Aynsley, held that Mohammed was 'a man of some intelligence and education. It was more serious for a man of his character to be in an unlawful assembly than it was for an ignorant man.' Mohammed's lawyer argued that there was a lack of crucial evidence to prove that he had harmed anyone. Rather, Mohammed was a mere passer-by when the rioting happened. The lawyer chided the Judge's decision as excessive. A Baweanese youth, Arshad bin Sinwan, was sentenced to a total of five years imprisonment by Justice M. Buttrose for taking part in an unlawful assembly that had vandalised a van belonging to a British company.[43]

For many weeks thereafter, reports on the crimes committed and the harsh punishments meted out to hundreds of persons who were involved in the December 1950 riots were continually published by prominent newspapers on the island and aired via radio broadcasts as deterrents against further violent behaviour. The charges laid against men of varied occupations, ages and ethnic backgrounds could be reduced to several categories: Unlawful Assembly, Causing Grievous Hurt, Public Mischief, Robbery and House Trespass. Only a few among those tried were acquitted on grounds of insufficient evidence.[44]

In the intervening time, the *Melayu Raya*'s inflammatory articles had diminished the Singapore Governor's forbearance towards the paper. Sensationalised stories on the Maria Hertogh case and riots were repeatedly splashed across its pages, and editorial columns called for heightened activism among Muslims in resistance to the colonialists and disbelievers. As a matter of fact, Muslim leaders in the colony were distraught by the newspaper's provocative posture. In one of its editorials, for example, *Melayu Raya* averred that the *ulama* in South Thailand referred to the Hertogh case as a test from Allah and an admonition that divine laws should be preserved and not taken lightly. The paper also reported that the

ulama saw the Maria Hertogh controversy as an important moment in determining the future course of the Muslim community in Singapore and the Federation.[45]

The coverage given to the statements made by the much-revered *ulama* in south Thailand was regarded by the colonial government as an unambiguous sign that the *Melayu Raya* was fomenting hatred among Muslims in Singapore. On the night of 19 January 1951, J. E. Fairbarn, an Assistant Superintendent of the Special Branch, walked into the office of the Melayu Raya Press to issue an order withdrawing not only the newspaper's license, but the closure of the entire publishing firm as well. Justifying such a contentious move, the Singapore Colonial Secretary invoked the Printing Presses Ordinance, which provided him with the jurisdiction to withdraw the license of any publishing firm or newspaper that threatened the public peace. The Ordinance permitted the proscribed parties to lodge an appeal with the Governor-in-Council.[46]

During an interview with news agencies in Singapore, Mohammed Saleh bin Alu (the Secretary of the Melayu Raya Press) mentioned that the publishing firm was appalled by the abrupt withdrawal of its license, which was due to expire in December 1951. The directors of the firm were undecided on the question of lodging an appeal. What was certain was that 75 of the firm's employees had now lost their source of livelihood. Gimson anticipated a barrage of verbal attacks from sympathisers of the Melayu Raya Press. Astonishingly, major newspapers in Singapore and Malaya refrained from publishing any commentaries on the issue. Newspapers of smaller circulation regarded the closing down of the publishing firm as a discriminatory act. The colonial administration attributed such limited resistance to the effectiveness of the large-scale arrests, and to the influence of several Muslim elites in providing detailed explanations of the rationale behind governmental action. Even members of the radical Singapore Muslim League merely planned to use legal means to bring about the reinstatement of the license of the Melayu Raya Press.[47]

Rather unexpectedly, the closure of the Melayu Raya Press brought about severe criticism of the Singapore government from British officials in London. It is worthwhile here to quote a memorandum from the Colonial Office at length so as to illuminate the tensions between the Home Government and the colonial administration in Singapore:

> The practice adopted in the case of *Melayu Raya*, a Malay daily, of withdrawing the license of its printing press, *is a clumsy one*, since a press often publishes more than one paper and does a considerable amount of printing on the side. To close down the press in such cases unnecessarily penalizes persons and papers against whom there is no complaint. Consideration is therefore being given to enforcing a section of the Printing Presses Ordinance passed pre-war by which individual newspapers and periodicals have to obtain permits to publish. It will facilitate control over the press and, as has been mentioned above, is part of our peacetime laws. The Emergency Regulations published last year, do not allow action to be taken until the damage has been done; that, as has been too tragically proved by the events of last December, is often too late [Italics mine].[48]

The local government in Singapore responded to this criticism by stressing that *Melayu Raya* had inflamed Muslim feelings both before and after the riots. Although the newspaper did not engage in acts of sedition that could have amounted to contempt of court, it was a major threat to public peace and the colonial order. Furthermore, the paper had, on numerous occasions, ignored warnings and appeals that were issued by governmental agencies. The editors had also been given the privilege to appeal against the withdrawal of the firm's license, but they had not done so. Allaying the Home Government's concerns in regard to the emergence of strong protests from civil society organisations in England and Southeast Asia, Malcolm MacDonald gave specific instructions to British officials in Jakarta to emphasise that the Melayu Raya Press had transgressed the laws of the colony. British officials were also required to stress that the newspaper had been spreading rumours and had engaged in misreporting in order to increase its circulation. All of this provided the necessary basis for the closure of the press.[49]

On 16 February 1951, the Singapore Colonial Secretary proposed a motion in the Legislative Council to prolong the Emergency. His main justification was a decline in the security of the colony as reflected by the arrests of subversive elements in schools, cases of arson and, most crucially, crimes committed during the riots. The motion was carried without dissension.[50] The continuation of the period of Emergency meant that large numbers of policemen and soldiers could be mobilised in the face of any perceived threats. This prerogative was exercised just two weeks later when large numbers of uniformed policemen, together with a Gurkha squad, were dispatched to the Singapore Supreme Court as a precautionary measure in the midst of the lawsuit filed by the Melayu Raya Press against the Singapore Colonial Secretary. The gallery of the court was packed with directors, employees and sympathisers of the Melayu Raya Press. Counsel for the appellant, Nazir Mallal, argued in court that the withdrawal of the publishing firm's license ran contrary to the laws of the colony. In an interview with newspaper reporters outside the courtroom, Nazir Mallal remarked,

> It is monstrous that an executive officer should have the authority, by a stroke of the few [*sic*], not only to gag a newspaper but to kill it outright. . . . We were under the impression that such things happened only in totalitarian states.[51]

The case gained much publicity in the days that followed. The court ruled that the paper and its publishing firm were to cease all forms of publication for ten months. A requirement for its future re-opening was the sacking of one of its chief editors, Haji Mohd Dahlan bin Masod.[52]

The court's verdict did not lead to the demise of *Melayu Raya*'s rhetorical resistance against British colonial rule. At a speech delivered in Malacca in the same month, one of the press directors, Amir bin Haji Omar, mentioned that Muslim youths in Singapore were ready for violence far greater in intensity than the Maria Hertogh riots. He appealed for Malays in the Malay Peninsula to support their oppressed compatriots in Singapore. The outbreak of a third world war, Amir avowed, was inevitable. This, along with the assistance of Muslim organisations, would enable Malays to obtain their independence. The British reacted

by arresting another batch of suspected agitators. Fifteen Malays, seven Indian Muslims and one Chinese Muslim were detained under Emergency Regulations. In mid-April 1951, the Singapore Colonial Secretary revealed that another group of 333 persons had been detained in connection with the December 1950 riots.[53]

Reporting to the Prime Minister on the state of defence and insurgencies in the colonies, Emmanuel Shinwell, the British Minister of Defence, highlighted that the situation in Singapore and Malaya was far from improving.[54] British troops and policemen were expected to intensify the detainment of instigators of violence. At the same time, some disquiet had arisen within British circles in regard to the wrongful arrests of suspected criminals. Officials in Singapore and Malaya observed that a significant number of those detained under Emergency Regulations were victims of private quarrels, or grudges between informants and suspects. Adding to the complications, police detectives were reluctant to disclose the names of their informants upon the request of the Advisory Committee. High-ranking officials in Whitehall were perturbed by the issue, viewing it as a source of diplomatic fissure between Britain and the colonised peoples in Malaya. Finally, it was decided that

> where a member of the public volunteered information but was unwilling to make a signed statement, the police should forward a report of their interview with him to the Committee and should include in it an account of the circumstances in which words or actions reported by him had occurred; and, if he was unwilling that his identity should be disclosed even to the Committee, the police should be prepared themselves to attend before the Committee and give evidence of their knowledge of the informant and their estimate of the value of his information. Where information had been supplied by a regular police agent whose identity ought not to be disclosed, even to the Committee, his name was not mentioned in reports but it was stated how long he had been known to the police, whether he had been found reliable in the past, and what were his relations with and knowledge of the appellant.[55]

Towards the end of May, the Singapore Government announced that 12 civil servants had been detained in connection with the riots. About 406 persons who were arrested in the aftermath of the December 1950 riots had been released, another 78 were convicted and 21 were acquitted. Most of those who had been acquitted were still under detention.[56]

To err is human, to forgive divine

The first death sentence for participation in the riots was passed on 15 June 1951. A. K. S. Othman Ghani, an Indian Muslim, was found guilty of the murder of a Royal Air Force (RAF) Corporal, Peter Hugh Bell. He was accused of attacking and setting fire to the soldier at Victoria Street, which led to the latter's death. The defendant's lawyer, David Marshall, argued in court that his client had played no part in the murder. Six other Muslim men were condemned to death in the following month. Thamby bin Osman, Habee Kassim bin Syed Abdul Kader, Tamby bin Sidek, Dawood bin Mohammed, Zainuddin bin Taha and Mat Din bin Said were found

guilty of the murder of a Warrant Officer, John William Davies of the RAF, who originated from Hereford, west England. The defendants for this murder were represented by Sandy Pillay, who successfully applied for an adjournment of the Appeal hearing to 31 August, 1952. Thamby bin Osman maintained that he had no role in the murder of John Davies as he was not at the scene of the crime.[57]

Meantime, in an effort to tighten its grip on the press, the Singapore Government promulgated a new Emergency Regulation, which, as of 1 August 1951, required all newspapers and magazines published in the colony to obtain a permit from the Singapore Colonial Secretary. The new Regulations provided the Singapore Colonial Secretary with wider powers to withdraw the permits of all sorts of publications without closing the printing presses where the material had been printed. Parties who had been proscribed were allowed to appeal to the Governor-in-Council, whose decision was final.[58] Arguing in defence of the new regulation, *British Malaya* magazine stated:

> No one likes the powers or the situation which has made them necessary, but they are necessary reserve powers against any subversive press which may spring up. Government have confidence in the mature Press at present established in Singapore, a great international press activity, and hope that the powers will not have to be used and, that if they are used, the Press will be convinced of the justice of the Government action.[59]

Political activists in the United Kingdom were not persuaded. Rather, the regulation was denounced as a strategy concocted to silence dissenting voices within the colony. Criticisms and protests were hurled against the colonial government by influential newspapers in London, which soon inflamed the sensibilities of the Singapore populace. At a Legislative Council meeting, C. R. Dasaratha Raj opined that the new regulations were driven more by the colonial regime's selfish motive of asserting political control and ideological hegemony than with a concern for the safety and welfare of the masses. As a result of the tough resistance from newspapers and community leaders, the Regulation was amended. Printing presses that had been proscribed were given the right to appeal to an Advisory Committee, instead of to the Governor-in-Council. The press in Singapore and London congratulated the government for its handling of the matter and for its positive response to criticisms of the original Regulations.[60]

The Singapore police continued to conduct routine checks and raids on residences of persons with radical inclinations, namely, Communists and opportunists from within the Muslim community. In one successful raid of a Malayan Communist Party Communication Centre, evidence was found linking several communists to planned assaults upon British servicemen during the December 1950 riots. Another source of unanticipated trouble emerged out of a ploy by four Malay prostitutes. These prostitutes were known to have serviced several men who were working at the Salvation Army Home. On one fateful evening, the prostitutes were heard shouting over a wall at the Home, appealing to a Malay passerby for help. They claimed to have been coerced into attending Christian religious services. The Special Branch reacted swiftly. The prostitutes were

detained and placed in the custody of the Social Welfare Department. They were later transferred to a non-religious reform institution to avoid further controversies. The British hastened to seek the assistance of members of the Muslim Advisory Board, who clarified to the Muslim public that the rumours of the forceful conversion of the four prostitutes were untrue. All police and military units on the island were placed on high alert so as to act swiftly in response to any form of disorder or outbreak of riots at any moment.[61]

Melayu Raya Press regained its license in September 1951 and resumed publication on 11 November of that year. Even so, its popularity as seen during the height of the Maria Hertogh legal tussle had waned. The paper was also faced with serious financial problems, due to the withdrawal of funds by its major shareholders. Fissures had developed among the editors, who disagreed on the operations of the newspaper. Although intensive efforts were made to regain the newspaper's daily circulation by publishing articles pertaining to Malay education, Islamic thought and various social problems that were plaguing the Muslim communities in Malaya, the readership had progressively shifted to *Utusan Melayu*. In August 1953, *Melayu Raya* finally collapsed.[62]

Towards the end of 1951, Muslims in Singapore combined their energies to agitate for the release of Karim Ghani and five others who had been detained with him. The services of Ahmad Ibrahim, a renowned social activist and expert lawyer, were engaged, and in consequence, two detainees, Darus Shariff and Syed Ali Al-Attas, were released. Although suffering from tuberculosis, Karim Ghani maintained that he had been unjustly detained and thereby refused to present his case to the Advisory Committee. Fully informed of the seriousness of his condition, the Singapore Muslim League appealed to the Singapore Colonial Secretary to expedite Karim Ghani's release.[63] The British were, however, unsure of the political ramifications arising from the League's appeal. Karim Ghani's detention was extended.

Together with this, Muslim activists in Singapore and Malaya gathered signatures for a petition on behalf of the men who were condemned to death. The leader of this venture was Tengku Abdul Rahman, who had been elected as the second President of UMNO on 26 August 1951, following the fall from favour and resignation of Dato Onn. Dubbed by Sir Henry Gurney (the British High Commissioner in Malaya) as the 'hope of the Malayan peoples', the straight-talking Dato Onn bin Jaafar had received the support of the colonial authorities in advocating a slow and methodical movement towards independence. By contrast, the British were perplexed by the Tengku's political stances and manoeuvres. They viewed the 48-year-old Tengku as an elusive figure who, despite his friendly disposition and close relationship with several prominent British officials, was pressing for a rapid transfer of power to a Malay-led government in Malaya. To Henry Gurney, the Tengku was far from being the 'sort of leader who will be capable of holding UMNO together in any important controversy'; a prediction which turned out to be far from accurate.[64]

Determined to protect the rights and interests of Malays and to garner support for his leadership and party, the Tengku avoided stirring up Muslim feelings in such heated times. Instead, he stressed repeatedly that the party should adopt non-violent means in campaigning for the release of the convicted persons, and that UMNO members should maintain friendly relations with the British and other Europeans

while avoiding the influence of ideologies that promoted violence. During his visit to Singapore in December 1951, which was hosted by the Singapore Branch of UMNO, the Tengku admonished the large audience that they should devise constructive ways to solve the social and economic problems faced by the Malay community. Rapid improvements and reform in the realm of education, according to the Tengku, were the crucial steps that had to be taken before the independence of Malaya could be formally declared. By the end of February 1952, the Tengku had obtained more than 5,000 signatures on a petition against the death sentences and for the verdict to be reduced to imprisonment. He had played a decisive role in raising funds to aid the condemned men's dependents, and was also present at every court proceeding to show his overt support for those convicted.[65]

Consequently, Othman Ghani's death sentence was commuted to life imprisonment. Tengku Abdul Rahman was proclaimed the Hero of the Malayan people. This was followed by the waiving of the death sentences passed upon Zainuddin bin Taha and Mat Din bin Said for their part in the murder of John Davies. Their death sentences were commuted to seven years of rigorous imprisonment for charges of rioting. The appeals of four other men were rejected, as there was strong evidence of their direct involvement in the murder. Although Malays in Singapore were pleased by such developments, feelings of unhappiness were also slowly developing, not due to the Maria Hertogh case, but because of their weak economic position and the difficulties they faced in finding employment. Local Indian Muslims reacted otherwise. Rumours were circulated that the British were in cahoots with the Dutch and that there was no longer any justice in Singapore. The police reacted by issuing warnings to identified rumour mongers.[66]

Karim Ghani was released a month later under Suspension Orders, as the British considered him to be inconsequential to the colony's security. Still, his movements were severely restricted. In spite of strong appeals and encouragement from his supporters to pioneer another newspaper, Karim Ghani refused to partake in any forms of activism within Malaya. He expressed his decision to live in a sovereign state and continue the struggle for the cause of Muslims who were subjected to colonial rule.[67] Accordingly, he was an example of many activists in Southeast Asia who had sought to challenge the colonial order through constitutional and discursive methods, as well as through violent means, and in the process, failed to achieve their intended objectives. The last yet significant act of resistance Karim Ghani employed was 'strategic desertion' – a planned and conscious departure from the arena of contestation to a new site beyond the colonial orbit of influence and control. Such a strategy was pursued with the intent of sustaining a form of resistance from without.

Karim Ghani was not the first to adopt the course of strategic desertion as a form of resistance. Merely two years before his arrest, some thirty Malays from Singapore and Malaya had fled to Indonesia to regroup and pursue their struggle against British colonialists in the wake of the Emergency. Led by Ibrahim Haji Yaakob, the group of radicals had established an organisation called the *Panitia Kemerdekaan Malaya* (PKM, or the Committee for Malayan Independence) whose main objective was to agitate and, if necessary, to militate for the creation of an independent Malaya. In the aftermath of the Maria Hertogh riots, the organisation

sent letters to the British Parliament in London calling for the immediate release of Karim Ghani and many others who had been detained. They cited the series of arrests of Muslims in Singapore as an infringement of democratic principles and the rights of Malays who were the natives of the island. An appeal was also sent to the United Nations and all major Muslim organisations in India, Burma, the Philippines and Indonesia, appealing to them to pressure the British against the suppression of Muslims in Singapore and mainland Malaya.[68]

Although born in India, Karim Ghani's application for his return to his native country was categorically rejected by the state authorities. Politicians and activists in Pakistan, on the other hand, welcomed him with open arms, and began to prepare for his accommodation and other necessities several months prior to his release. On 2 May 1952, Karim Ghani was escorted by two Pakistani representatives to the Singapore airport. A crowd of about seventy supporters, consisting mainly of Indians and a small group of Malays, assembled at the airport to see their leader for the last time. Speeches were delivered in praise of Karim Ghani's sacrifices and contributions to the Muslim community in Singapore. There were a few who exploited the occasion to rouse the feelings of the crowd by shouting Islamic war cries. Indian Muslims were reported to have made several comments which created a limited commotion within the community. The British were very much relieved that the voice of Karim Ghani had finally been silenced.[69]

Karim Ghani's final departure from Singapore was followed by the release of Mohamed Taha bin Kalu, Mohamed Mustaza and Dr Burhanuddin, upon the recommendation of the Advisory Committee. The British foresaw the discharge of these men as having a far wider effect upon the growing positive attitudes among Muslims towards the Government. Neither demonstrations nor ferment directed against the colonial regime were displayed when the three Malay personalities were greeted by a crowd of supporters. Yet prayers were offered for the four Malays whose appeals for their death sentences to be commuted had been rejected. Tengku Abdul Rahman had collected more than 140,000 signatures from UMNO members and 2,000 Muslims in Singapore on a petition appealing for clemency on the behalf the condemned men.[70]

Meanwhile, four Malay men who were charged with the murder of Charles Joseph Ryan, a non-commissioned RAF officer, were acquitted of their crimes due to contradictions in the witnesses' testimony and the poor visibility at the scene of the murder. Describing the crucial part he and F. B. Oehlers played as attorneys in defending the men, Lee Kuan Yew recalled:

> There was disgust on the faces of the English judge and English prosecutor. I, too, was sickened by the result …. I had cast much doubt on the prosecution's case and thwarted justice. I had no doubt that my four clients did kill Ryan, that they were highly keyed-up that night and would have murdered any white or partly white person who came their way, anyone associated with the Christian religion and thus, to them, against Islam. I had no faith in a system that allowed the superstition, ignorance, biases, prejudices and fears of seven jurymen to determine guilt or innocence.[71]



Figure 3.1 Wedding photo of Maria Hertogh and Mansoor Adabi

Source: Terenjit Singh and Family

The long-term effects of Lee Kuan Yew's discontent with the legal verdict will be elaborated upon in the concluding chapter of this book. Suffice it to state here that on 22 July 1952, the newly installed Singapore Governor, John F. Nicoll, reprieved Thamby bin Osman, Habee Kassim bin S. A. Kader, Thamby bin Sidek and Dawood bin Mohammed who had all been sentenced to death for the murder of John W. Davies. Instead, they would serve terms of life imprisonment, and would be eligible for early release for good conduct. The governor's decision was undoubtedly part of a progressive endeavour to overcome the colonial government's legitimation crisis in the aftermath of the riots. Muslims were overjoyed, and registered their appreciation towards Nicoll's gesture of clemency. The *Utusan Melayu* and *Majlis* editorials commended the Governor's move as 'wise' and thanked the Tengku for his efforts in being a good leader.[72] Towards the end of the year, UMNO members in Selangor sent yet another letter of appeal to Queen Elizabeth II, appealing for the shortening of the prison sentences of hundreds of others who had been detained during the riots. The British responded

negatively to the letter and upheld the verdicts of the Singapore courts.[73] More importantly, the beginning of the year 1953 marked the end of the British strategy of proscriptions related to the Maria Hertogh case.

Annus horribilis

It was reported that there was more crime and violence in Singapore in 1951 than in any year since the restoration of peace and order in Singapore in 1947. This, according to the *Annual Report of the Singapore Police Force*, 'was almost entirely due to the reaction following upon the riots in December 1950 when lawlessness was still high amongst the criminal elements in Singapore'.[74] In other words, 1951 was an *annus horribilis* (a horrible year) for the colonial government. Partly due to the tactics of imposing curfews, raids, arrests and routine checks, as well as the issuing of public warnings, the introduction and enforcement of legal regulations and the sentencing of convicted criminals, there was a drastic drop in street violence and other criminal activities related to the Maria Hertogh controversy in the months that followed. Oddly enough, in the process of restoring the security of the colony through proscribing all suspected enemies of the state, the British had engaged in the use of coercion, the instilling of fear and, in many instances, the abuse of their authority.

Such violations of Britain's commitment to the protection of civil liberties, human rights and the rule of law as embodied in the European Convention of 1950 were, of course, not unique to the Singapore context. In Malaya, Kenya, Cyprus, Hong Kong and other colonies during the same period, similar forms of punishment and threats of reprisals were used to suppress revolts, riots and popular protests. State violence carried out by the British military and security forces had often claimed more innocent victims than the lives of militants and anti-colonial activists.[75] Still, for the British intelligence agencies, statistics were not clear indications that the rage among Muslims in Singapore had entirely dissipated. In the next chapter, I will explore the covert role of the Special Branch and other related bodies in teasing out fanatical undercurrents that were already rooted and fortified by the outbreak of violence.

4 Surveillance

The outbreak of the Maria Hertogh riots revealed, most crucially, the entrenched weaknesses of the British intelligence services. The basic assumptions that all threats emanated from foreign agencies whose sole object was the displacement of British colonial rule and that subversive activities in Singapore posed only minor threats to the security of the island were suddenly shattered and rendered obsolete.[1] Rather, the British became convinced that the Islamic threat originated from within Singapore as much as from without. Militant and radical ideologies and movements, the British now believed, were rooted within the Singapore Muslim community itself, and there was to be no delay in redressing their past oversight. A broader and more effective system of espionage was established. Agents and spies infiltrated Muslim gatherings of all kinds and monitored the evolving sentiments of all communities on the island. In some cases, however, the concerns and anxieties registered in British intelligence reports were driven largely by a paranoid sense of imaginary threats, rather than by reality.

The French philosopher, Michel Foucault, posits that 'surveillance' is a vital function of modern states, both as 'the auxiliary of justice in the pursuit of criminals and as an instrument for the political supervision of plots, opposition movements or revolts'.[2] Consonant with this line of argument, I will demonstrate that, through the gathering of information and the monitoring of situations, the British exposed crucial threats to the colonial order. The following pages will thus provide a comprehensive account of the mechanics of 'surveillance' as part of the British strategy to anticipate selected forms of opposition to colonial rule in the aftermath of the Maria Hertogh riots. Yet, before moving on, it is instructive to point out that, although the concept of 'surveillance' is inextricably linked to the 'proscription' of the local population, as examined in the previous chapter, there is one fundamental difference which necessitates a separate discussion of the two strategies.

Unlike proscription, the identification of threats through surveillance did not necessarily lead to the arrests of individuals and the outlawing of institutions.[3] Even so, it is essential to explore the role of the intelligence services and other related agencies, as this will provide us with insights into how the 'men on the spot' made sense of and dealt with the varied forms of resistance that confronted them. Indeed, any historian who seeks to examine dozens of intelligence reports pertaining to Muslim issues and other related affairs in such a tense setting will

be enthralled by the intimate detail with which day-to-day events and conversations were recorded. It reveals, most certainly, that a considerable number of the spies and informers consisted of Muslims of all classes and backgrounds.[4] Recognising that these intelligence reports are only partial representations of the realities of their day, I have read these sources against the grain and interrogated the silences within them to recover the voices and discourses of local actors. By juxtaposing the intelligence reports against a variety of alternative sources, such as memoirs, governmental reports and newspapers – or *fragments* as Gyanendra Pandey would call them – I will seek to reconstruct the context within which the surveillance of the local populace had been conducted.[5]

Insights into various developments in Malaya, Indonesia, Pakistan and the Netherlands will be provided in so far as they affected the security of Singapore. As the intelligence services saw it, the epicentre of Muslim discontent resided in the colony, which called for a more widespread and intense surveillance. While developments in other territories were regarded as important and not to be neglected, they were seen as seemingly less dangerous due to their geographical distance from Singapore. The decisive measures undertaken by the British in these territories included the harnessing of the support of native collaborators, who worked to restrain the masses. Meanwhile, the British Foreign Office in London instructed ambassadors in major Muslim countries, in cities such as Jakarta, Karachi, Cairo, Baghdad, Tehran, Jeddah, Damascus and Amman, to provide updates on any disturbances caused by the Maria Hertogh case, and to provide detailed reports of any schemes that were devised to exacerbate Muslim hostility towards Britain.[6] Since the international context had a strong bearing upon the course of events in Singapore, it was of paramount importance that potential threats in these countries were detected as early as possible. Crucial information that was sent to London was relayed to Singapore almost immediately.

Moments of anxiety

British intelligence services in Singapore and Malaya were on high alert for several fundamental developments that had been identified as serious threats to the security of the colony in the last days of December 1950. It was observed that misunderstandings and ignorance pervaded the minds of the general public. A majority were still poorly informed of essential facts pertaining to the legal dispute over the custody of Maria Hertogh, the reasons for the dissolution of the girl's marriage with Mansoor Adabi and the circumstances that led to the confinement of Maria Hertogh in a Catholic Convent. The prevailing notion held by the Muslim masses was that the government was responsible for such unwise decisions. Another issue of contention was the arrest of Karim Ghani and the other members of his Nadra Action Committee.[7]

Then, there was also the plausible fear of communist exploitation of the case through subversive methods. Muslim members of the security forces in Malaya were reported to be troubled by their commitment to defend the polity against the communists after having witnessed the unfair treatment of their co-religionists.

The communists, predictably, capitalised on this state of affairs by attempting to widen the split between the colonial state and its subjects. After more than two years of failed ideological campaigns, they had finally found a persuasive propaganda tool to amplify iniquitous British policies against Muslims.[8]

On 13 December 1950, a group of communists distributed two propaganda pamphlets in Romanised Malay, English and Chinese, highlighting jaundiced British attitudes towards the local population. Entitled *Seruan Rakyat*, the communists agitated for the transformation of the Nadra case from a mere religious struggle to a political one, led by a party capable of fighting for the people. Two weeks later, an English edition of the *Freedom News* was circulated, with an article entitled 'Develop the fight against the Nadra decision into a wide struggle against the British Imperialists!' Posters calling for all races in Singapore to coalesce against the colonialists were displayed in public places in Singapore. The British initially suspected that Chinese students with leftist leanings were responsible for these productions. There were questions about whether or not the Central Command of the Malayan Communist Party (MCP) could have been the mastermind. As the Special Branch stepped up its raids of various communist cells, it was found that the MCP was indeed the publisher and distributor of posters intended to entice Muslims and members of other communities to join the 'Anti-British Liberation Army' in an armed struggle against colonialism. Such propaganda spilled over to the peninsula in a drive to incite Muslim rage.[9]

The next threat to security was a looming possibility that relations with Indonesians within and outside the colony would further deteriorate. From the perspective of the British intelligence agencies, such volatile relations would accentuate anti-Dutch and anti-British propaganda, which would then influence how Muslims in Singapore perceived the colonial administration. This sense of anxiety was not unfounded. On 14 December 1950, a day after the quelling of the riots, several prominent Muslims in Indonesia established a provisional committee in defence of the marriage between Mansoor Adabi and Maria Hertogh. The committee authorised two renowned lawyers, Dr Datuk Djamin and D. Sujudi, to study the British court's verdict in preparation for the pursuit of a legal case. Telegrams were also sent to Dato Onn reminding him of his duty to defend Mansoor Adabi. Members of the committee planned to launch protests against what was seen as an insult to Islam.[10]

Writing in a widely distributed daily newspaper, Haji Abdul Malik Karim Amrullah (or Hamka), a well-respected Muslim scholar and prominent member of Muhammadiyah (one of Indonesia's largest Muslim movements), remarked that the placing of Maria Hertogh in a Catholic Convent was a clear sign of Western religious fanaticism. Muslims, according to Hamka, had remained submissive towards the oppressive measures undertaken by the British in the midst of the Malayan Emergency. In spite of that, their will to protect their religious beliefs should not be underestimated, as shown by the riots and other forms of resistance.[11] Hamka's argument was complemented by resolutions passed by a newly established women's organisation, the Front Wanita Indonesia (the Indonesian Women's Front), which condemned the British for insulting Islam

and expressed sympathy towards Maria Hertogh, Mansoor Adabi and Muslims in Singapore who were struggling for their religious rights. Representatives of Front Wanita Indonesia urged Indonesian Muslims to give their fullest support towards returning Maria Hertogh to Islam and to her husband.[12]

The heightened activism of Muslims in Singapore in the aftermath of the riots was foremost in the British intelligence agencies' list of concerns. Distrust between Muslims and the British government became so deeply entrenched that there was seemingly no prospect of reconciliation or even peaceful dialogue. According to one report,

> [e]ven the moderate religious leaders, and the leaders of the Muslim communities have only told their adherents to 'wait and see' the result of the appeals. No Muslim leader has yet indicated publicly that if the final decision goes against them it should be peacefully accepted.[13]

As a result, Malay detectives were deployed to keep a watchful eye on all forms of antagonism. The Special Branch was especially concerned with the Southeast Asia Muslim Missionary Conference organised by *Jamiyah*.

From 24 to 25 December 1950, the Victoria Theatre in Singapore was packed with delegates from the Philippines, Perak, Kedah, Kinta, Malacca, Negri Sembilan, Perlis and Selangor, as well as UMNO representatives from various parts of Malaya. Dozens of prominent Muslim and Christian leaders from Singapore were also present as observers. Indonesian Muslims were reported to have expressed their readiness to send their representatives, but such plans were later shelved. The conference had actually been scheduled for an earlier date, but was postponed due to the lack of funding and the poor response from Muslim organisations in the region. The violence that had taken place in the colony delayed the event even further. Nevertheless, key personalities such as Maulana Abdul Aleem Siddiqui and Syed Ibrahim Alsagoff, who were deeply engaged in calming Muslims during the riots, ensured that the event which they had been planning for many months was finally held.[14]

The aims of the conference were essentially three fold. The first was to provide a comprehensive assessment of Muslim missionary activities in Southeast Asia, particularly in territories where Muslim minorities were faced with state intrusions upon their religious rights. It follows then that a coordinated network of missionary activities under the umbrella of *Jamiyah* would be established. Second, the conference sought to address the threats posed by Christian missionary activities in Southeast Asia. This was a problem that had been repeatedly raised by a Singapore-based journal, *The Muslim World*. In one of its earlier issues, the journal had criticised the underhanded methods of Christian missionaries in offering material gifts to proselytise Malays.[15] It was thus not incidental that 25 December (Christmas Day) was chosen as one of the days of the conference. Last of all, the conference organisers hoped to obtain the support of the participants towards the establishment of a Muslim Theological University in Southeast Asia.[16]

Informed of the conference's aims and objectives since its planning stages, British intelligence was predictably nervous about stray comments and public statements related to the Maria Hertogh incident. Their worst fears were realised during a keynote address delivered by the prominent *sufi* scholar Maulana Abdul Aleem Siddiqui. Born on 3 April 1892 into a family of mystics and scholars, the Maulana was known for his conviction that Islam had been misunderstood by both Muslims and non-Muslims. He founded *Jamiyah* in 1931 to set aright such misconceptions and towards this end he held dialogues with British intellectuals such as George Bernard Shaw. At the beginning of his long speech, the Maulana expressed regret about the absence of important delegates from various parts of Southeast Asia. A significant case in point was the last minute cancellation of the arrival of representatives of Masyumi (Indonesia's largest Muslim political party) in view of the recent disturbances in Singapore. The Maulana emphasised that, since Islamic laws were divine and comprehensive, they did not need any fundamental reforms. It was obligatory for Muslims to sacrifice their lives, property and children to uphold Divine laws. He elaborated on how Muslims in various parts of the world were oppressed by secular regimes, subtly referring to the state of affairs in Singapore. Muslims, the Maulana argued, had been denied proper educational opportunities for many years, yet still remained a powerful force to be reckoned with. Realising the presence of such an obstacle, the enemies of Islam had devised manifold schemes to destroy Islam from without, but their efforts had failed. They then attempted to destroy Muslim unity from within. A stark example, said the Maulana, was the case of the Turkish people who had placed nationalism above their faith, leading to a progressive dismantling of their traditions.

The Maulana further reiterated the rhetoric of Muslim revivalists who called for the restoration of the internationalist nature of Islam and universal Muslim brotherhood. Muslims were expected to show respect to all other religious beliefs and, in the process, demand due respect from them. Alluding to the British, he forcefully asserted that democratic governments should not, in any way, compel Muslims to act in ways contrary to their beliefs. He urged Muslim missionaries who were present at the conference to view the world as their stage and to take upon their shoulders the responsibility of working towards the betterment of mankind. Muslim missionaries should be well-prepared to be dispatched to all corners of the globe in order to admonish Muslims about the neglect of their religion, and to convert non-Muslims. Committees should also be formed to discuss ways to improve Muslim education, missionary work and funding for missionary efforts, as well as to enact measures towards the preservation of Islamic laws in Southeast Asia. The conference ended with the passing of nine resolutions. Appealing for the support of all delegates for the formation of a unified Muslim body in the region, the Maulana closed the session by emphasising the need to secure the best legal aid possible for the Maria Hertogh appeal case. A prayer was read with the hope that Maria Hertogh would hold true to Islamic beliefs.[17]

Muslims in Singapore were unimpressed with the objectives and intended resolutions of the conference. Echoing the views of a selected segment of the community, the *Melayu Raya* editorial contended that the aims of the conference were



Figure 4.1 Standing on the extreme left: Ahmad Ibrahim at a tea reception organised by members of the Indian community. On the far right is Mansoor Adabi

Source: Author's Family Collection

grandiose and impractical. Moreover, most of the delegates were not respected Islamic scholars from the region. The editorial caricatured Maulana Abdul Aleem's speech as lofty rhetoric that fell short of addressing the real problems faced by Muslims in Southeast Asia. *Utusan Melayu* concurred with *Melayu Raya*'s viewpoints, but gave more emphasis to the presence of spies at the conference. The number of Special Branch officers, according to *Utusan Melayu*, was 'extraordinary' and as such was a direct encroachment upon the civil liberties of Muslims.[18] Seen from the perspective of the British intelligence agencies, the event was significant in that it served to unite the diverse elements within the Muslim community in Singapore and Malaya.[19]

The day after the conference, a Eurasian who had shot and wounded two Malays during the riots was released from detention. Henry L. Velge was an officer in the Singapore Volunteer Corps (SVC) and a member of the Special Constabulary. His release from all legal charges heightened public antipathy towards the British judicial system. The British anticipated vengeful attempts upon Velge. To the contrary, Velge was left unharmed as the news of his release was withheld from the general public in Singapore.[20] Much of the public attention within the local Muslim community was directed towards campaigning for the release of six Muslim activists who were arrested via Detention Orders on 18 December 1950.

Meanwhile, British agents kept a close watch on the formation of several Muslim-based committees. On 20 December 1950, the day after the detention of Karim Ghani, an action committee was founded by *Jamiyah* to provide legal aid to the detainees and to supply them with books, periodicals and other necessities. The committee's first course of action was to issue a press statement highlighting governmental violation of basic human rights, asserting that if the arrest of Karim Ghani and five other men 'was a precautionary measure, as tranquillity and order is restored in the city, their early release should now take effect. In any case, if their detention is to be prolonged, they should be given chances to represent their case to the Advisory Committee set up under the Emergency Regulation.'[21] British intelligence regarded the committee as only a minor threat – its formation was perceived as a mere 'face-saving manoeuvre' to appease the Muslim public and a platform to offer legal advice in accordance with the laws of the colony.[22] Another committee that attracted official scrutiny was the Nadra Appeal Committee. Formed by the Singapore Muslim League, its chief objective was to centralise and distribute monetary aid from Muslims locally and globally. More than $20,000 was raised by the end of 1950. A large amount of the money came from Muslims within the rank and file of the Malay Regiment, the Special Constabulary and various departments of the Civil Service in Malaya.[23]

Members of the Singapore Muslim League went beyond the mere collection of funds. Manifesting their unceasing opposition to British arrests of respected Muslim leaders, Karim Ghani was elected as the organisation's Patron at an Annual General Meeting which was held on 28 January 1951. Attended by 65 persons, a majority of whom were of South Indian Muslim origin, the meeting was delayed for some few hours due to the absence of a substantial number of members who neither supported nor opposed the election of Karim Ghani. A possible explanation for their non-attendance was the fear of being placed under detention by the British. The election of Karim Ghani was proposed by Hussain Mohammed Khan of the Muslim Publishing House and seconded by Mohammed Sulaiman, who was working as a broker. 'Extremist elements', as a British intelligence report put it, 'dominated the meeting. They rebuked the previous committee for its cowardly approaches in agitating for the release of Karim Ghani and five others who had been detained.' Although he disagreed with the criticisms launched by the 'extremists', M. J. Namazie did not explicitly express his opinions during the meeting, for that would have led to his defeat in the struggle for the presidency of the organisation.[24]

Namazie's strategy turned out to be successful, and he was eventually elected as the new President. During a secret meeting with Special Branch officers, Namazie explained that the election of Karim Ghani as the patron was not representative of the views of the majority. Three key personalities, Sardon Jubir, J. M Jumabhoy and Adam Haji Ibrahim were elected as Executive Committee members, yet were absent during the meeting. Furthermore, the position that had been created was a symbolic gesture in view of Karim Ghani's role as a founding member of the League. Although the British were relieved that Muslims whom they regarded as 'moderate' had prevailed during the elections, the incorporation

of new members such as Mansoor Adabi and the resolutions that were passed to assist the Melayu Raya Press in regaining its printing licence were bound to have political implications.[25]

A year of high drama

The year 1951 was a year of high drama for the British intelligence services as well as the Colonial and Foreign Offices. They were on the alert for potentially dangerous developments in Singapore, which the Australian High Commissioner described as having 'an atmosphere of tension.'[26] Adverse statements were expected from state authorities and Muslim organisations in Cairo that would bring about hostile reactions from other Muslim-majority countries. Much to the relief of the British, the leaders of the Arab countries refrained from expressing any views related to the Maria Hertogh case.[27] The reactions of Muslims in South and Southeast Asia were quite different, and posed threats to Singapore's security.

In Kelantan, the voices that appealed for moderation were drowned out by a rapid escalation of anti-British feelings. Such sentiments were amplified by two radical groups. The first was a band of 20 young men in Kota Bahru who adopted the title *Nikat* (a Malay word which means 'to engage in acts regardless of expected consequences'). Commanded by Ismail bin Mohamed Salleh, a clerk at a local hospital, the group's objective was to kill selected Europeans who were involved in the Maria Hertogh case. Its supporters and sympathisers numbered 80 in all, one of the most prominent being Mustapha bin Mahmood, who was the brother-in-law of the Chief Minister of Kelantan. Another radical group originated from a small school outside Kota Bahru. Consisting largely of religious teachers and students who were financed by influential families within the state hierarchy, the main aim of this collective was to indoctrinate Malays in the nearby villages against all British persons whom they regarded as hostile to Islam. Although none of these groups actually initiated any violent acts, their aggressive potential was not to be underestimated. The same degree of hostility towards the British was observed in Johore, and it was anticipated that such resentments would spill over into Singapore.[28]

Embroiled with such impending perils was the conversion of two Malay children to the Christian faith in Penang. A precautionary note was sent by Dato Onn alerting the British High Commissioner for Malaya, Sir Henry Gurney, that the incident could precipitate dissensions and popular protests far greater in scale than even the Maria Hertogh riots. However, departing from the radicals in other parts of Malaya, Muslims in Penang came to the aid of the British in allaying suspicions and unhappiness among those who had been informed of the conversions of the two children. In a widely publicised declaration, Muslim elites in Penang appealed to their brethren in Malaya and Singapore to work towards the re-establishment of peace and harmony with other races. At the same time, they registered their despair over the arrest of Karim Ghani, and contributed large amounts of money to the Singapore Muslim League for legal expenses during the appeal trial.[29]

Public statements and protests by Muslims from other countries in Southeast Asia also stirred emotions in Singapore in 1951. During his meeting with the

British ambassador in Jakarta, President Sukarno referred to the Maria Hertogh case 'as another serious political blunder of the West.' Muslims all over the world, the President maintained,

> regarded the marriage as a valid Moslem marriage which civil law could not in their conviction invalidate. The Court's riding roughshod over deep religious convictions had spread resentment throughout the Moslem world. This could not be dispelled by purely legalistic explanation and he feared that there might be unfortunate and far-reaching political consequences for Britain. He (Sukarno) greatly regretted that this should be so.[30]

A number of non-governmental organisations and newspapers in Indonesia expressed strong and indignant views on the legal case and the riots. The Moslem Propagandist Front in Jakarta alleged that the Maria Hertogh legal controversy had brought about a widening gulf between Europe and Asia, and urged Muslims to be mindful of the urgent need to defend their religion. This stance was supported by radical youth movements which were bent upon forwarding their grievances about Britain's suppression of nationalist movements to the United Nations. Another committee was formed to pursue an appeal in an international court of law. *Indonesia Raya*, an influential newspaper which was circulated in several Indonesian provinces, severely criticised the arrests of Muslims in Singapore and advocated their immediate release. Other Muslim activists staged several anti-colonial protests in public places.[31]

Similarly, the President of the All-Malaya Students Association in Mecca wrote a letter of protest against the British handling of the legal case and their repressive measures against Muslims. The letter was published in Malay newspapers in Singapore, and several hundred copies were reported to have been sent to the Secretary of State for the Colonies and selected religious and political leaders in Indonesia, the Middle East and South Asia. Malay students in London established a 'Bertha Hertogh Committee' to win support for the appeal case in April and to agitate for an inquiry into conflicts between Islamic and secular laws. In Pakistan, all attempts by the government to mitigate the manufacturing of false news by the press proved to be counter-productive. A populist organisation in the country, Motamer-e-Alem-e-Elami, launched a protest against the British handling of the legal proceedings and the arrest of Karim Ghani, who was to have led the Singapore delegation to the World Muslim Conference in Karachi. The organisation depicted British policies as yet another example of the negative predisposition of Europeans towards Asian customs and religious beliefs.[32]

The Singapore Governor initially held that the World Muslim Conference lacked the support of the Pakistani government, and, therefore, should not be regarded as a major threat. The event would provide an opportunity for the British Home Government to obtain the cooperation of the Pakistani authorities in clarifying the proper facts of the Maria Hertogh legal case. Arguing otherwise, Malcolm MacDonald perceived the conference as a diplomatic threat, seeing that Muslim leaders who were vehemently anti-European had been invited to the event. As a

proactive measure, he suggested that representatives from the Colonial Office be despatched to the conference in order to provide full details on the Maria Hertogh case and the events that ensued. This would prevent inadvertent remarks from being passed by Muslim attendees who had learned about the controversy from factions that were hostile to the British. Plans were thus crafted for an Information Secretary, Mr Crichton, to be in Karachi for a few days before and during the conference. He was to be briefed about all facts and misperceptions among Muslims in Singapore. His duties included sending daily reports on the proceedings of the conference and other discussions that were conducted informally.[33]

It was a disquieting period for British officials in Singapore and in Britain. Prospective World Muslim Conference representatives from Singapore were closely watched. Towards the end of January, British intelligence services received information about two nominees, the first being Mohammed Khan (the President of the Young Men's Muslim Association) who was described as a writer of 'an inflammatory article' in a banned newspaper, *Melayu Raya*. The other nominee identified was Syed Abdullah bin Yahya (President of the Singapore Arab Union) who had made prior arrangements to leave Singapore by plane on 7 February 1951. Fully aware of the Special Branch's heightened role within the realm of Muslim affairs in Singapore, Bashir Mallal (the Secretary of the Muslim League) assured the British government that the two men would abstain from initiating any discussions that were deemed to be controversial by the colonial government. All opinions expressed by both men were based on their personal views, rather than the official views of any Muslim organisation in Singapore. Syed Ibrahim Alsagoff and a Chinese Muslim, Haji Ibrahim, were also expected to be in Karachi to attend the Conference.[34]

Franklin Gimson, having had many past dealings with Syed Ibrahim Alsagoff, was troubled by the latter's pro-Muslim stance in the course of the Maria Hertogh controversy. The son of wealthy parents, whose business, familial and political networks spanned across Southeast Asia, South Asia and the Middle East, Syed Ibrahim Alsagoff was reputed to have maintained intimate connections with personalities who sought to revitalise Pan-Islamism. He was the President of both *Jamiyah* and the Muslim Advisory Board and had, on several occasions, highlighted the poor management of ethnic relations in Singapore and Malaya which had resulted in the rapid spread of communism. A promoter of the formalisation of Malay indigenous rights, Syed Ibrahim Alsagoff also urged the colonial government to attend to the depressed state of the non-Malay communities in order to extinguish the appeal of radicalism. While admonishing Muslims to avoid violent confrontation in the contest for the custody of Maria Hertogh, Syed Ibrahim protested against the British court's decision to nullify the marriage between Maria and Mansoor Adabi. He asserted that peaceful relations between Christians and Muslims in Malaya would be jeopardised by such legal pronouncements.[35]

From 9 to 12 February 1951, the Muslim World Conference proceeded as planned, with informal sessions held by Muslim leaders of varied nationalities and affiliations. News agencies from European and non-European countries covered the event and published day-by-day commentaries that were provided by the attendees.

Even Ahmadi and Shi'ite delegates, who were regarded by the Sunni majority as heterodox, were given the opportunity to air their views on the creation of a united Muslim front. A consensus was reached at the end of the conference that the Muslim world should be a third and unified coalition in the face of the dominance of the Communist and Capitalist blocs. Several resolutions were passed:

> (1) That an act of aggression against one Muslim Country should be considered an act of aggression against all. (2) That Muslim peoples and Governments should unite to defend their tenets, peoples, holy places, and lands. (3) That Arabic be made lingua franca of Muslim countries, without prejudice to local languages. (4) That support be given to the stand taken by Muslims on Palestine for safeguarding their rights and launching a full struggle to meet the aggressor. (5) That Muslim governments be urged to direct their representatives at the United Nations to support the cause of the people of Kashmir, whose ties with the people of Pakistan no power on earth can break. (6) That the Security Council should take action over India's aggression, looting, and genocide in Hyderabad and Junagadh, and take steps to permit the holding of plebiscites in those territories. (7) That support be given to the demand of the people of the Nile Valley for the unity of the Valley and the withdrawal of the British troops of Sudan and the Suez Canal. (8) That the sufferings of the Muslims in Yugoslavia represent a violation of the principles of freedom and humanity.[36]

British officials in Singapore and London were informed that no reference to the Maria Hertogh riots or the legal case was made during the Muslim World Conference. The Foreign Office, the Colonial Office and the Singapore authorities were relieved but puzzled by the apparently deliberate omission of the Maria Hertogh case from the conference's resolutions. The following report describes vividly the views of the British Foreign Office:

> The Conference surprisingly, avoided another controversial subject, the Bertha Hertogh case, which might have aroused the spirit of Islamic fanaticism if it had been ventilated. It has been expected that the subject would be debated, especially as one of the prospective delegates from Malaya, Karim Ghani, had appointed the girl's "husband" as his private secretary for the Conference. The reason for the omission is not known, but the fact that Karim Ghani was unable to attend the Conference owing to his detention in Singapore following the riots of December 1950, may have affected the matter. The omission of the Bertha Hertogh case is more surprising in view of the anti-Western tendencies of some of the participants of the Conference.[37]

In an interview upon landing at the Singapore airport, Syed Ibrahim Alsagoff disclosed that although many delegates to the Muslim World Conference expressed their sympathies regarding Muslims who had been arrested and organisations which were relentlessly agitating for justice to be upheld, they did not see the need

to discuss the Maria Hertogh case in a formal setting.[38] The unexpected outcome of the conference was followed by yet another positive development for the British, when Sultan Abu Bakar of Pahang revealed his plans to organise visits and discussions with several influential Muslims in Singapore. He hoped to enjoin patience and self-restraint, as well as to advocate that the Maria Hertogh legal controversy should not be viewed as a religious issue.[39]

The appeal court case

In concert with its monitoring of the World Muslim Conference in Karachi, British intelligence was closely following the developments leading to the appeal court case in April 1951. The appeal was lodged by Mansoor Adabi against the decision of Justice Brown on 2 December 1950, which had infuriated and provoked Muslims in Singapore to engage in street demonstrations. The appellants contended that the lower court had no jurisdiction to declare the marriage between Mansoor Adabi and Maria to be illegal and void. It was argued that Maria Hertogh had accepted Islam out of personal choice and conviction. Seen in that light, her marriage to Mansoor Adabi was to be deemed valid.[40]

Anxious about a recurrence of mass violence in the event of the appellants' defeat in the trial, the British sought the help of pro-British Muslim leaders. Surreptitious meetings with Mansoor Adabi were organised to induce him to dissolve his marriage with Maria Hertogh in accordance with the provisions of the *Syariah*. Evidently, the British had ceased to be a neutral party between the Dutch and the Muslims in the whole fiasco. Still, Mansoor Adabi was not deterred from pursuing the appeal in the Singapore High Court. The Special Branch tracked him during his visit to Kelantan, fearing that he would seek the support of Muslim elites in that state. Their suspicions proved to be unfounded, since he was merely escorting Che Aminah who had familial ties with the Sultan of Kelantan. Mansoor Adabi himself was not unaware that he was the subject of British intelligence operations.[41] He was, however, determined to secure mass support and apply political pressure upon the British government during the appeal case. Nomination Day for new members of the Singapore Legislative Council on 8 March 1951 provided him with an excellent opportunity to pursue his aims.

The inclusion of additional non-European members in the second Singapore Legislative Council in 1951 was, in part, a subtle and planned strategy by the British to orchestrate the movement towards providing the local population with the responsibilities of managing the state. Nevertheless, a majority of those entitled to vote were sceptical about what they saw as hypocritical gestures by the colonial state. 'Apathy, rather than violence,' wrote an Australian official who was based in Singapore, was 'the prevailing atmosphere of the elections'.[42] Contrary to British expectations, the texture of political parties in Singapore was non-communal. The Progressive Party and the Labour Front were notable examples of parties that sought to gain the popular vote by embracing a multiracial outlook. Although the Indians were one of the smallest ethnic groupings on the island, they constituted more than half the total number of candidates. No candidate from the Malay

community took part in the elections, and such deliberate non-participation could be read as a form of passive and everyday resistance against the colonial regime. The Muslim population in Singapore was, to a limited extent, represented by prominent Muslim (but non-Malay) personalities, such as Nazir Mallal and M. J. Namazie.[43]

Moments before the registration of candidates was closed, Mansoor Adabi enrolled himself as an Independent. The Special Branch was caught unawares, thus demonstrating that comprehensive measures by any intelligence services are never fool-proof. '[I]ntelligence failures', Richard K. Betts argues, 'are not only inevitable, they are natural'.[44] Muslim leaders, probably through the last minute plea of British officials, urged Mansoor Adabi to withdraw his candidature. After much persuasion, Mansoor Adabi relented and withdrew his name a mere five minutes before the list of candidates for the elections was formalised. When asked by bewildered reporters about his sudden change of heart, Mansoor Adabi explained that it was due to several difficulties which he was unwilling to divulge. A British political report noted that Mansoor Adabi's 'blood-stained "cause celebre" would not have made for a peaceful election with his Appeal case pending'.[45]

Another personality that came under the close scrutiny of British intelligence for his participation as an Independent in the Legislative Council Election was M. A. Majid, the President of The Muslim Welfare Association. A union activist and a co-founder of the Labour Party, Majid was a well-respected figure within the Muslim community due to his involvement in ensuring legal assistance for Che Aminah. He was later responsible for arranging the marriage between Mansoor Adabi and Maria Hertogh. In the weeks leading up to the Nomination Day, Majid appealed for Muslims in the colony to vote for him as part of the ongoing struggle for Maria Hertogh. But the tactic proved ineffective. He received a meagre ninety-five votes, which constituted only 4 per cent of his constituency. Upon the forfeiture of his deposit, the British were convinced that Majid was no longer influential. The Singapore Governor nominated Ahmad Ibrahim, the legal representative for Mansoor Adabi, as an unofficial member of the Legislative Council to ensure that Malays in Singapore were not left unrepresented.[46]

As the appeal court case drew near, key Muslim elites, who were concerned with the growing antipathy towards the colonial administration, requested Muslims in Singapore and the Federation of Malaya to maintain a calm attitude and to trust their leaders with the duty of ensuring that a fair judgement would be obtained. Radical elements within the Muslim community were, nonetheless, opposed to all attempts to bring about a rapprochement. They viewed the appeal proceedings as a means to mobilise the masses towards a resort to violence. There was also a growing suspicion among politically inclined Muslims that the government was progressively asserting its influence upon the legislative process.[47]

Sir Roland Braddell, a famous British lawyer in Malaya, along with Nazir Mallal and Ahmad Ibrahim, represented the appellants. Towards the end of March, Braddell informed the other legal representatives of his inability to depart from England due to ill-health. The earliest possible date of his arrival in Singapore was in early May. Reluctant to be deprived of his services, the appellants sought an

adjournment of the appeal, but the Dutch solicitors for the respondents categorically opposed the request. Members of the quasi-governmental Muslim Advisory Board were manifestly distressed. Things came to a head when M. J. Namazie crafted a press release accusing the Dutch and the British of harbouring prejudices against Muslims. The letter was subsequently sent to numerous newspapers in the colony, but was intercepted by the Special Branch following a tip-off. The Singapore Governor regarded the contents of the letter as a source of friction, which could precipitate social tensions and Muslim attacks on the Dutch and other Europeans in the colony. Acting upon the advice of the Attorney General, the Public Relations Secretary warned newspaper editors in Singapore that any publication of the press release, or even a slight reference to the document, would lead to their prosecution for contempt of court.

The Colonial Office in London was taken aback by Namazie's radical streak, as he had been working closely with the British in providing crucial information on developments within the Muslim community. Charming, learned, sociable yet impatient with mediocrity, the 43-year-old Namazie belonged to a family of Persian businessmen which had amassed considerable wealth and established strong connections with the British in India. He had maintained a reasonable demeanour throughout the Maria Hertogh legal proceedings and had acted in his own capacity to encourage non-violence in the aftermath of the riots. It is intriguing to note that the British did not consider the detention of Namazie for his outright show of resistance towards the Dutch and the British. As a member of the Singapore Progressive Party and other community organisations, Namazie's leading position within the Singapore Muslim community was secure. The British were cognisant of the fact that the arrest of a person of his social standing would provide a convenient pretext for radical dissenters to incite Muslims to action. Alarmed by the sudden turn of events, a copy of the press release was sent to selected politicians in the Netherlands by way of reminding them that an uncompromising stance on their part would lead to disastrous consequences in Singapore.[48] The short episode was also a clear indication that no prominent Muslim elite on the island was to be left unmonitored.

In the interim, Nazir Mallal had become convinced that the Dutch were determined to proceed with the appeal in the absence of Braddell. A deceitful but logical method to buy time was for Mallal to absent himself on the day of the appeal, claiming to be in poor health.[49] The Singapore Governor was enraged. In his long telegram to the Colonial Office, Gimson expressed his annoyance with Mallal's devious stratagem. A close reading of the telegram clearly points towards the probable defeat of the appellants.

> On the same day a letter went to you saying that Mr Mallal, Counsel for the appellant, might prove difficult in Court. I never anticipated, however, that he would descend to the low level of obtaining a medical certificate in order to have the case postponed. I don't think that I should be distorting the truth if I suggested that the Judges of the Court of Appeal entertain doubts as to the accuracy of the facts stated in the (Medical) Certificate.

> The Judges have some difficulty now, in fixing a suitable date to hear the Appeal and are naturally not prepared to undergo any inconvenience themselves in fixing any date. June, or even more likely, September, are mentioned as possible dates for the future hearing of the Appeal. I hope Counsel for the appellant realizes that *the interests of their clients are likely to be prejudiced* owing to the fact that, at the time the Appeal is now heard, Maria Hertogh will have been in Holland in the company of her parents and her sisters and brothers, since December last [Italics mine].[50]

'Singapore', as an American observer noted, 'was twittering like a nervous bird over the possibility of a renewed outbreak of disorders among local Malays'.[51] The British reacted by publicising reports on the extensive preparations and readiness of the police and army troops. The newly appointed Commissioner of Police, John P. Pennefather-Evans, told reporters that, although no planned attacks had been uncovered, the police and the Special Branch were still taking all necessary precautions. In Malaya, public interest in the Maria Hertogh case had substantially decreased. Likewise, there was a decline in fanatical agitation in Indonesia. Yet a majority of Muslims in South and Southeast Asia maintained that the lower court's decision in December 1950 should be publicly condemned. The Communists, on the other hand, sustained the policy of exploiting the legal controversy for the purpose of anti-Western propaganda.[52]

At the same time, the British had to muddle through rapid developments in the Netherlands, which had implications for Singapore's security. On 27 March 1951, the Breda Court declared that Maria Hertogh was a Dutch citizen and, therefore, under Article 86 of the Dutch Civil Code, she was to be considered as a child and her marriage was invalid. Neither Maria Hertogh nor Mansoor Adabi were present or represented during the proceedings. Following a request from the Dutch Public Prosecutor, who was acting upon the instructions given by Baron van Ittersum at the Ministry of Foreign Affairs, the case was adjourned in view of the appeal case which had yet to be heard at the High Court in Singapore. In his updates to the Foreign Office, Peter Garran at the British Embassy in The Hague expressed his hopes that the judgement of the appeal in Singapore would be in favour of Maria Hertogh's natural parents. 'Otherwise there may be tiresome complications.'[53] The reaction of a British official in London reflects the Home Government's worries about the outcome of the legal case. Replying to Garran's telegram, John D. Murray wrote that if the appeal was delayed further, it would most probably provoke another riot in Singapore. To safeguard their position and their already tarnished image, the British Home Government should emphasise in its propaganda

> that the decision of the Dutch Court only relates to the decision under the Dutch law. It might also be possible to make play with the fact that the case would not have preceded the hearing of the appeal in Singapore if the latter had not been adjourned at the request of the appellants.

In addition to that, Murray's telegram provides us with deeper insights into British indirect influence upon the judicial process despite their rhetoric of neutrality. Murray

wrote that it was 'more than probable that the Court on May 8th *will admit the Government's application* and declare the marriage null and void' [Italics mine].[54]

Dozens of Roman Catholic organisations in the Netherlands demonstrated in protest of the adjournment of the court proceedings. The Dutch High Court was issued with warnings to categorically invalidate Maria Hertogh's marriage to Mansoor Adabi. Failing that, Catholic support for the government would be called into question. In view of such fervent political debate, the term of office of Jacob van der Gaag (the Acting Consul-General of the Netherlands in Singapore) was extended until the end of the appeal trial, as he was deemed to be acceptable to the Catholics in the Netherlands. The Breda Court resumed its proceedings on 8 May 1951. A week later, the marriage between Maria Hertogh and Mansoor Adabi was annulled.[55]

Much to the astonishment of the British, no mass demonstrations were staged by Muslims in Singapore. Rather, Muslim leaders verbally resented the high-handedness by which legal decisions had been imposed by the Dutch Court. The Chief *Kathi* of Singapore made a solemn avowal that persons who were responsible for the annulment of the marriage of Maria Hertogh and Mansoor Adabi would soon be punished by God. In Malaya, Muslims were relieved by the delay of the appeal case. A majority were said to have tenaciously held on to the notion that the judiciary was subservient to the demands of the British government. There was also a pervasive impression that the British were siding with the Dutch against Muslims in the interest of maintaining diplomatic relations with their European counterpart.[56]

In Indonesia, it was observed that public interest in the Maria Hertogh case had slowly subsided, yet the Special Branch kept track of organisations that were capable of instigating Malays in Singapore to launch another series of riots. A British intelligence report noted that the start of the fasting season in early June would further weaken public interest in the Maria Hertogh case. Describing the religious practise in a rather derogatory way, fasting was said to have brought 'its usual lassitude to the Malays. The Maria Hertogh case was forgotten, but interest in it may well be revived when the Appeal comes on for hearing in Singapore on 25th July.'[57]

Uniformed police doubled the number of onlookers at the Singapore High Court on the first day of the appeal hearing. Special Branch officers in plain clothes mingled with a crowd of bewildered Malay men and women, and at the same time, the Singapore Governor ensured that extra troops were brought in from Malaya and put on standby in the city to quell possible disturbances should the appeal be dismissed. By the second day of the proceedings, the number of spectators had decreased to the extent that the public gallery in the courtroom was almost empty. Although most Malays who were present felt that the appeal was bound to fail, Indian Muslims maintained that Mansoor Adabi would emerge triumphant at the end of the legal battle. The hearing lasted for five days. Public interest in the case declined sharply in the weeks that followed because Muslims in Singapore and Malaya were preoccupied with the appeal for clemency for those who had been sentenced to death for committing murder during the riots.[58]

Judges of the Singapore High Court handed down their verdict on 30 August 1951. They contended that the court had the jurisdiction to consider the validity of the marriage in order to determine whether the appellant had established a prior right to the custody of Maria Hertogh. The judges did not, however, see the necessity of

deciding whether Maria was a Christian or a Muslim. They readily conceded that Maria Hertogh was a Muslim rather than a Christian by faith at the time of the marriage. It is enticing to suggest that such a discursive strategy was subtly employed to bring to a close an arena of contestation which might enliven the hostility that Muslims had shown towards the colonial government. The judges further noted that under both the English and Dutch legal systems, the capacity of a woman to be married was governed by her *Lex Domicili* (the law of the place of a person's domicile). Maria Hertogh's father was Dutch and hence she was subject to the laws of the Netherlands, which held that she was below the legal age of marriage. In sum, Mansoor Adabi's appeal had been rejected.[59]

British intelligence observed that the Muslim public perceived the judges' verdict as prejudicial but saw no reason to pursue the case further. However, the Special Branch remained vigilant of many who subscribed to the assumption that the government had it all planned from the onset – a conspiracy *par excellence*. With the exception of several instances of non-violent resistance, conspiracy theories did not bring about aggressive behaviour on the part of Muslims in Singapore. A notable example of non-violent resistance was that of a Malay Special Constable who was on duty at the rear gate of Government House in the days after the decision of the appeal was made known. Evidently unhappy with the verdict, the Malay Special Constable expressed his opposition towards the British by shouting in English, 'We want Mariah back as a Muslim, if not….'[60] Concomitantly, the British Foreign Office was informed that Muslims in Singapore had sought the help of a renowned Pakistani lawyer, Syed Ahmad Rafiq, who was studying the case so as to pursue another appeal, this time to the Privy Council in October. The British predicted that such plans would be abandoned, since the economically depressed minority could not, by any means, meet the steep expense of such an appeal. They were wrong.[61]

Residues of Muslim resistance

At a meeting held in November 1951, the Nadra Action Committee arrived at a consensus that an appeal would be brought to the Privy Council in England. The main intent of the appeal was legal rather than political. Although the Committee accepted the fact that the personal case of Mansoor Adabi and Maria Hertogh was closed, their overriding and long-term concern was to seek clarifications on legal issues related to marriages between Muslims and potential converts. A clear judgement on this issue could only be obtained from the highest echelons of the British judicial system, which would thereby set the precedent for other Commonwealth nations.[62] The colonial administration in Singapore was perplexed as to whether such manifest objectives were free from latent gambits. There was also the ominous possibility that the appeal would accentuate adverse reactions from other Muslim countries and, in effect, be perceived as yet another example of the lack of respect for Muslim customs and laws. The Special Branch was tasked to unravel the underlying agendas. Meetings with key Muslim leaders were arranged to extract crucial information.

On 31 December 1951, the Foreign Office was informed that the Nadra Action Committee would contend that the Singapore High Court had no jurisdiction to consider the validity of the marriage as a preliminary issue to the question of

custody. The committee alleged that the court had misinterpreted the provisions of Islamic law relevant to the question of what law should govern the capacity of a child to be lawfully married. In view of this, officials in the Colonial Office and Singapore were instructed to combat the propaganda of 'Muslim extremists' by giving widespread publicity to the verdicts passed by the Singapore High Court. They were required to emphasise, among other things, that the Maria Hertogh case was legal rather than discretionary, and that the validity of the appeal to the Privy Council would be decided based on the provisions of law.[63]

Along with the appeal to the Privy Council, the Security Liaison Officer in Singapore listed three other issues that could rekindle ill-feelings towards the government in the midst of a progressive dismantling of radical movements in the colony. The first was that of the fate of Othman Ghani, whose appeal for clemency had been rejected by the Judicial Committee of the Privy Council. Malay activists were of the opinion that the passing of death sentences upon Othman Ghani and several others were colonialist attempts to avenge the brutal murders of their servicemen. A Malay political party was reported to have planned a major disturbance in the event of the court's refusal to reduce the death sentences to imprisonment. Prominent Indian Muslims maintained that the laws of the country had been violated, as Othman Ghani had merely provided food to Muslims who were arrested for rioting. The Special Branch was also informed of an Indian Muslim's visit to Pakistan in an attempt to influence government officials in Karachi to protest against the draconian laws used by the British to intimidate their subjects.[64]

Muslim resentment at the continued detention of Karim Ghani, purportedly the chief agitator behind the December 1950 riots, was the second item in the list of issues affecting the security of the colony. On top of that, the British were confronted with protests that were launched against the screening of a film entitled *David and Bathsheba*. The dynamics of this incident will be revisited in greater depth in Chapter 5 of this book. Suffice it to state at this juncture that the British intelligence services maintained that Muslims in Singapore were exploiting 'every incident such as the Hertogh case, the case of those convicted in the subsequent riots and the showing of the film *David and Bathsheba* to move major Muslim pressure upon Government policy'.[65] Due to such negative developments, the Singapore Governor was advised to further strengthen the Malay-Indonesian Section of the Special Branch.[66]

By February 1952, the danger of Muslim extremism related to the Maria Hertogh controversy had abated. The texture of intelligence reports on Muslim Affairs was generally positive, and it was even reported that Muslims in Singapore no longer saw violence as a means to achieve their political objectives. Attended by about one hundred Indians, Pakistanis and Malays, the annual general meeting of the Singapore Muslim League came under the control of 'moderate' leaders who were able to surmount the pressures of 'extremist' elements. M. J. Namazie was re-elected as the President of the organisation and Karim Ghani was reinstated as one of the Patrons. Although Che Sidek, the President of the Singapore Malay Union and a Justice of the Peace, was voted in as one of the Vice-Presidents, he announced publicly that he would not accept the appointment. The British were astonished by Namazie's ability to control several

committed supporters of Karim Ghani who were pushing for several resolutions to be passed, including a demand for the immediate release of the organisation's patron. The meeting concluded with a lengthy discussion of Karim Ghani's application to go to India. No approval was received from the Indian authorities.[67]

Mansoor Adabi's application for leave to appeal was yet again dismissed on 22 February 1952. Justice Rogers of the Supreme Court maintained that there were no valid reasons for the appeal to be brought to Her Majesty in the Privy Council. As a follow-up to this verdict, the Secretary of the Malay Students Organisation in Karachi sought the assistance of three of the largest Islamic organisations in Pakistan to review the rejection of the appeal. The World Muslim Organisation in Pakistan went a step further to debate the issue on 14 and 15 March 1952.[68] Nonetheless, Muslim activism related to the Maria Hertogh controversy was centred mainly upon peaceful dialogue rather than militant action. In Singapore, *Jamiyah* had begun extensive preparations for another Southeast Asia Missionary Conference towards the end of 1952. It was expected that the Maria Hertogh case would receive little or no mention.[69]

At this juncture in the aftermath of the Maria Hertogh riots, a change in the perception and portrayal of Muslims in Singapore was developing within British intelligence circles. Though the strict racial formula of 'Malay', 'Indian' and 'Arab' prevailed, a lucid report on Muslim communities in the post-war period that will be quoted at length below could also be read as a nuanced attempt by the intelligence services to uncover the underlying factors which had resulted in the varied forms of resistance which they had encountered thus far. The key objective of the document was to make a once-neglected community 'legible'.[70] Also, the report exhibited a departure from the assumption that Islam in Singapore was entirely non-violent and apolitical. If left unchecked and improperly managed, Islam could be used as a rallying tool to mobilise the masses against the colonial state. According to this report:

> The Malay Community of Singapore is depressed and lacks leaders. The atmosphere of Singapore is not the best milieu for the Malay 'adat' (way of life) and both the local Malay and the Indonesian immigrant suffer from the destabilising influences of mercantile cosmopolitanism. In these circumstances Indonesian radical influences have penetrated and may develop the political potential in these people. As Muslims, they fall to some extent under the influence of the religiously more fanatical and politically more active Indian/Pakistani elements.
>
> *Islam is the most potent religious force in the region*. In Singapore it assumes a political character in that South Indian Muslim elements seek to influence policy by playing upon Muslim susceptibilities but are held in check by Arab and Malay moderation and orthodoxy.
>
> The Indian sub-continent has a long tradition of connection with the region. The local community resulting there from is the most politically conscious group in Singapore. The partition of their homeland following religious division and the present political situation there enhances the possibility of local communal disturbances but generally the political assertiveness of the Indo-Pakistani character find expression in local politics which it aspires to take the lead [Italics mine].[71]

New threats and old enemies

By the beginning of 1953, spectres of the Maria Hertogh case had slowly yet painfully faded from the Singapore Muslim community's collective psyche. By contrast, the British were still haunted by vivid memories of the incident, as seen in their reactions to the news of the conversion of a 16-year-old Chinese Roman Catholic girl to Islam and her subsequent marriage to a Malay man in late August. It was feared that press publicity of a reincarnation of the Maria Hertogh case would reawaken Muslim–Christian ill-feeling and 'develop into a security danger'.[72] Such apprehension proved to be unwarranted because the Muslim public paid no particular attention to this incident.

In the months that ensued, the focus of British intelligence activities gradually shifted towards other developments within the local Muslim community. Espionage was conducted to obtain information on subversive elements within UMNO, the Peninsula Malay Union and other Malay organisations, which promoted independence by radical means. These developments were suspected to have a strong influence upon Muslim military and police officers in Singapore, who had maintained strong networks with political activists in the Malayan Federation. Beyond the politics of independence, the British were also aware of a revival and upsurge of interest in the ideology of Pan-Islamism that was enmeshed with the ideals of nationalism. Muslim students who returned from their studies and sojourns in Cairo and Mecca were active in spreading anti-British and Pan-Islamic ideas in Malaya. Although numerically insignificant, such persons were deemed to be potential threats to security in Singapore. The British intelligence services also monitored numerous visits by Inamullah Khan (President of the Pakistani Youth Movement), which were hosted by prominent Muslims in Singapore. Whilst no signs of anti-colonialist feelings had arisen from these visits, the British did not discount the possibility that speeches made by such personalities could bring forth sentiments which 'may be latent and could easily be touched off, as was shown in the Hertogh case'.[73]

Students who had returned from their studies in major Muslim countries, as well as radical *ulama* who converged in Singapore *en route* to Mecca during the pilgrimage season, were kept under close surveillance to ensure that any negative influences on the part of these personalities could be swiftly dealt with. Yet, no untoward incidents related to the Maria Hertogh case were reported towards the close of 1953. Indeed, through a combination of 'proscription' and 'surveillance', the British had anticipated and successfully obliterated all forms of violent and radical opposition arising from the Maria Hertogh riots, which had previously fuelled racial and religious dissension. The next chapter of this book will discuss the process of 'self-criticism' as the third strategy which the British employed to expose the failures of key officials during the outbreak of the riots. It will be shown that self-criticism, an embedded trait of the British Empire, was channelled towards insulating the higher echelons of the colonial administration from suffering a severe loss of legitimacy.

5 Self-criticism

One of the most distinctive features of the British Empire was the ability of its proponents and defenders to incessantly engage in self-criticism. So pronounced was this trait that even Donald Rumsfeld, the former American Defence Secretary, observed that Britain had 'an amazing capacity for self-criticism, even when the Empire was at its height'.[1] While endeavouring to prolong Britain's hold over its overseas territories, colonial officials from all political leanings unceasingly reproached themselves – above all others – in times of crisis and upheaval. Certainly, there were examples of persons who resisted the self-criticising trait and, in the process, governed despotically. Such dissenters were often vehemently challenged by radical critics and anti-colonial activists, both within Britain and in the colonised societies themselves.[2]

Nowhere was the strategy of 'self-criticism' more apparent than during the establishment and proceedings of the Commission of Enquiry and in the disciplinary measures meted out to colonial officials accused of mishandling the Maria Hertogh riots. Acutely aware that the riots were caused by the machinations of Muslims compounded by the failure of the colonial administration, the British knew that any attempt to mute the voices of dissent and to neutralise popular discontent would be an exercise in futility. It is my contention, however, that while the British were self-critical and were generally receptive of criticisms launched against them, they were unflinching in their resolve to ensure that the higher echelons of the state machinery were insulated from a severe collapse in legitimacy. This limited process of self-criticism, which has generally been glossed over by historians who have tended to portray the empire in purely liberalist and/or idealist terms, forms the basis of the following narrative.[3]

A winter of discontent

Public discontent began to mount following the quelling of the riots, to the extent that the American Consul-General predicted that several high-ranking British officials in Singapore would fall from favour.[4] Meanwhile, in Britain, newspaper editorials questioned the causes and factors that led to the death of British civilians and servicemen during the riots, while opposition parties seized the opportunity to condemn the Home and Singapore governments for the breakdown in governance during the riots and the subsequent delays in appointing a Commission of Enquiry.

It is pertinent to note here that, aside from providing updates on the progress of the Malayan Emergency, the British media seldom gave extensive coverage of incidents of violence in Malaya during the immediate post-war period. The aftermath of the Maria Hertogh riots was exceptional in the sense that it became a topic of debate for several leading newspapers in Britain.[5] *The Daily Express* and *The Daily Telegraph* featured the riots as a symptom of the Labour government's growing ineptness in managing racial and religious differences in the colonies. The *Manchester Guardian* went so far as to aver that the colonial administration in Singapore would never secure Malay support and that the post-war governments in both Britain and the colonies were rife with defects. A *Singapore Standard* editorial declared that the whole episode was a 'blunder' that revealed an apparent lack of ability on the part of the colonial government to identify and address the outstanding socio-political grievances in the colony.[6] To be sure, such popular criticism of British administrative failures in the colonies was characteristic of the years following the Second World War. Frederick Cooper observes that colonial regimes 'in the 1950s were moving targets for criticism, for they sought to reposition themselves in a progress-oriented world'.[7]

In an effort to shore up the growing mood of discontent, the Singapore Governor publicly declared on 16 December 1950 that a full enquiry into the circumstances that had led to the riots would be held upon the approval of the Home Government. To the extent that the outbreak of the Maria Hertogh riots was only one among many outbreaks of mass violence with which the Britain had dealt during the post-war period, colonial officials in London were more than convinced that a 'full-dress Enquiry' needed to be carried out in order to unravel the defects of colonial policing in one of its most strategic outposts. Still, it was the local administrators rather than the metropolitan officials and politicians who took on much of the task of engaging in self-criticism and responding to critics of the colonial regime.

Speaking at a Legislative Council meeting, the Singapore Governor asserted that 'as servants of the public, the government gladly accept the responsibilities of their public position in the days of bad fortune as well as of good and welcome responsible judgment on their administration.' Gimson further conceded that it was more than appropriate for the government to accept criticism levelled against the police force, for they had been caught off guard by the sudden occurrence of mass violence that claimed the lives and property of innocent persons. Anger, disenchantment and revulsion towards this essential agency of the colonial administration were unsurprising, as the duty of the police force was essentially on the 'front line'. The Governor commended the military for restoring order in the colony and expressed his eagerness to obtain a comprehensive report of the events that transpired during the two days of disorder. He highlighted that rumours and distortion of facts would further threaten the volatile relationship between the colonial state and the general public.

Having invoked the Inquiries Commission Ordinance of 1941, it was announced that a Commission of Enquiry would be duly appointed. Close communication had been established with the Secretary of State for the Colonies on the composition of the Commission, as well as its terms of reference, but some time would elapse to allow for a proper selection of the members and for their

arrival in Singapore. Reiterating Britain's role as a 'Gentlemanly Imperialist' (as Gerold Krozewski aptly put it),[8] Gimson ended his speech by stating that the 'prime responsibility lies with the government, and, learning from the past and from whatever judgment is passed on us, the government will see the tools are apt to the job and the job is done.'[9] This was all well said, but what was left to be done was more complex than it seemed to be. The time lag in establishing the Commission of Enquiry was one of the most trying periods for the British colonial officials in London and Singapore, given that self-criticism on the part of the government did not necessarily appease the outraged and exasperated public.

The first source of criticism emerged from among the members of the Singapore Legislative Council. Nazir Mallal reproached the colonial government for its poor conduct and inefficiency in the wake of the violence in the colony, and blamed the 'miles of red tape' that had brought about the rapid spread of the riots. Questions were posed as to whether the Singapore Colonial Secretary and the Commissioner of Police had attended a cocktail party in Johore Bahru during the riots, which implied that the two colonial officials had failed to appreciate the seriousness of the violence. Almost immediately, the Singapore Colonial Secretary, Wilfred Blythe, denied all accusations made against him and his subordinate, insisting that they were not in Johore Bahru. Pursuing his line of censure, Nazir Mallal insisted that although Muslims were peaceful and law-abiding citizens, they would unflinchingly sacrifice their lives and property in defence of their religious customs and beliefs. 'Could anything', Nazir Mallal contended,

> be more offensive to Muslim feelings than placing the young lady, who, according to the Muslims, was a *Muslimah* (Muslim lady) and will always remain so in their eyes, in a Christian Home? . . . What is the use of having Advisory Boards if you do not consult them or pay heed to the advice they may give you? . . . The confidence of the public in our Police Force has been completely shattered, and I do not think that this public confidence in the police force as at present can ever be restored.[10]

A Eurasian member of the Legislative Council, P. F. de Souza, highlighted that the general public was still baffled by the placement of Maria Hertogh in a Catholic Convent. The Dutch Acting Consul-General should be made to testify as a key witness during the course of the enquiry in order to clear up the misunderstandings that had arisen. Other members of the Legislative Council, such as Tan Chye Cheng, stressed that the Commission of Enquiry should consist of individuals who were independent of the government. The candidates should also possess credentials that would engender the trust of all communities in Singapore. Tan also hoped that members of the Commission of Enquiry would be placed under heavy protection to ensure that they were safe from harm. By way of concluding the proceedings, the Singapore Colonial Secretary thanked the Council members for their assistance in assuaging the conflicts that had surfaced since the riots. The Public Relations Office had been tasked with the responsibility for allaying negative perceptions of the government and its agencies. Blythe acknowledged the call by several members of the Council for all Muslims and non-Muslims to work together towards alleviating

misperceptions and a culture of suspicion. The riots would be the last of their kind in the colony. All forms of violence directed against the colonial state would be met with severe punishments. No statements of opposition were noticeable at this point. Even Malay newspapers, such as *Utusan Melayu* and *Melayu Raya*, which were active in fuelling anti-colonial feelings in the midst of the legal tussle, refrained from commenting on the proceedings of the Legislative Council.[11]

The situation was very different in England. One of the most scathing criticisms that came to the attention of the Colonial and Foreign Offices was entitled 'Angry Singapore', which was written by an investigative journalist and published in the *Yorkshire Post*. Claiming to represent the prevailing perceptions, J. W. Goodwin wrote that the delay in investigating the causes of the riots was, in part, a deliberate attempt by the government to whitewash officials in Whitehall and in Singapore. He maintained that the passive attitude of Malay policemen, as well as isolated cases of their desertion during the riots, was more the result of poor leadership than it was due to them having been influenced by radical Islamic ideas. It followed then that the Commission of Enquiry ought to explain why the relevant governmental agencies were not warned about the rising emotions of Muslims many days before the riots. A clear account should also be made of the failure of the police to disperse the rioters outside the Supreme Court, and the total collapse of police morale unbeknown to the senior officers of the force – a breakdown related to poor recruitment and training procedures and corrupt practices in the police force. The civil administration in Singapore was intrinsically weak, while key officials at Whitehall were incompetent.

Goodwin demanded an explanation for the delay in sending reinforcements from the military, which had offered its services twice during the riots. The government had also deprived the media of its right of access to vital sources of information. Army officers were threatened with court-martial if they disobeyed strict orders to avoid communicating with the press. The police force, in turn, was silenced through the agency of the Public Relations Office. Goodwin ended his derisive commentary by stating that colonial administrators in Singapore should count themselves fortunate to have been appointed in a non-democratic government, since they would have been sacked if the riots had taken place in Britain.[12] While keeping themselves abreast of several important issues arising from the abundant commentaries and critiques published in England, British officials refrained from publishing their rejoinders. Much energy was, however, directed towards hastening the selection of the members of the Commission of Enquiry.

The politics of enquiry

The process of selecting the appropriate candidates for the Commission of Enquiry was inherently problematic. Michael Keith has pointed out that Commissions of Enquiry 'exist in a political environment and are implicated in a political strategy from the moment at which they are appointed and their personnel selected to the moment in which they report, right on the manner in which they are remembered'.[13] Communicating his views to the Secretary of State for the Colonies, the Singapore Governor stressed that members of the Commission of Enquiry should

be fully aware of the Islamic factor embedded within the Maria Hertogh controversy. They should be acquainted with the reality that the riots had received widespread publicity and reactions from Muslims in Malaya, Indonesia, Pakistan and the Middle East. The Commission of Enquiry should also be sensitive to the pervasive perceptions among Muslims that the judiciary had been made subservient to the demands of the Executive, and that the British court had insulted the laws of Islam when it annulled a marriage performed by a Muslim *kathi*. Restating the views of Tan Chye Cheng, Gimson mentioned that the members of the Commission of Enquiry should be free from prior contacts or familial relations with any government officials in Singapore. This was to avoid unnecessary accusations regarding the independence of the enquiry. The Chairman of the Commission should be a Legal Officer of high standing, with credentials that would command the respect of elites in Singapore, Malaya and other colonies.

Several prominent persons were proposed to chair the Commission. James Griffiths recommended Sir Harry Trusted, who had had prior experience as the Chairman of the Salaries Commission. John D. Higham of the Colonial Office suggested Sir Charles Geraghty, a renowned judicial officer based in India. Gimson was unimpressed. To him, Trusted was a man who lacked vision and was not well-received in Malaya. Geraghty had the advantage of an image of impartiality due to his long absence from Malaya. But the general public was looking forward to the appointment of a person with greater legal eminence. Gimson added that the remaining seats on the Commission should be filled by persons with strong credentials and prior experience in British colonies.[14]

Tensions between the Governor, the Secretary of State for the Colonies and officials at the Colonial Office began to develop at this juncture. James Griffiths held that it was politically expedient for the British government to ensure that an impartial and authoritative investigation into the riots was carried out in view of the rising resentment towards Western colonialism. Higham was in full support of Griffiths' notions but was bothered by Gimson's irresoluteness in selecting the proposed candidates for the Commission. Confiding in a fellow official, Higham privately expressed his displeasure with the Governor, and wondered whether Gimson had in mind a Chief Justice who was not at all known to the people of Singapore and whose impartiality was beyond suspicion.[15] In truth, the 60-year-old Gimson was deeply anxious of being publicly criticised for poor choices in the selection of the members of the Commission of Enquiry. His term as the Singapore Governor had been plagued with successive crises that resulted in a rapid loss of public reverence for his office. In April 1950, Gimson narrowly escaped an assassination attempt when a grenade struck his leg and rolled about 6 feet away, where it exploded.[16] This incident was followed by the Maria Hertogh riots, which exposed serious defects in his leadership. The deliberate attempt to influence the selection of candidates could thus be seen as part of an effort by Gimson to avoid further public vilification as the date of his retirement drew near.

After much wrangling, on 16 January 1951, the press was provided with the terms of reference for the Commission of Enquiry: 'To inquire into and report on the recent disorders in Singapore on 11th December, and subsequent days, with

special reference to the causes of those disorders, and to the measures taken to protect life and property and to restore law and order'. The Governor emphasised that persons of high credentials and experience had been selected, in accordance with the demands of the Singapore populace. The committee for the Commission of Enquiry had been given the right to summon any person to come before it and to investigate all matters relevant to the enquiry. Its key function would be the collection and reporting of facts. The onus was placed upon the Executive and Legislative Councils to translate the Commission's recommendations into viable policies. A week later, an announcement was made in London in the House of Commons that the committee for the Commission of Enquiry into the Maria Hertogh riots would be led by Sir Lionel Leach, who was a member of the Judicial Committee of the Privy Council and a former Chief Justice of Madras. He was to be assisted by Captain H. Studdy (the Chief Constable of the West Riding) and J. H. Wenham from the Surrey County Council, who was the Chairman of the Police Standing Joint Committee for that county. J. R. Williams was appointed Secretary of the Commission.[17]

In an endeavour to impress the public with his commitment to governmental impartiality, Gimson emphasised that no one was above the scrutiny of the Commission, with the exception of himself due to the British legal concept of sovereign immunity.[18] Friends and respected colleagues thus joined the list of suspects and scapegoats to be interviewed by the Commission of Enquiry. Even Robert E. Foulger, the 52-year-old Streatham-born Singapore Commissioner of Police, who had retired in November 1950, was made to testify before the Commission. Justifying such a contentious move, Gimson explained to James Griffiths that Foulger should be flown in from England and provide evidence before the Commission to safeguard his image and fulfil the expectations of the Singapore populace. That same week, Foulger's impending appointment as the Deputy Inspector-General for the Colonial Police was abruptly postponed due to the Home government's fear of negative repercussions arising from the report of the enquiry.[19]

Gimson's treatment of Foulger is a vivid example of how colonial officials could turn against even their closest subordinates when the need arose. Barely a month prior to the riots, Gimson had written to Foulger, praising him lavishly:

> [The] arduous task which you undertook when you re-established the Police Force which had been severely disorganised as a result of the Japanese Occupation and which had deteriorated almost beyond recognition from the fine Force which the people of Singapore remembered in the pre-war days . . . . Your name will be remembered with affection and with admiration not only among the Police Force of Singapore but among all law-abiding citizens of this Colony as one who by his vigour and promptness and considerable initiative made the Singapore Police Force second to none in the Colonial Empire. . . . It is through your guidance and encouragement that such progressive innovations as the use of radio cars, the introduction of Women Police, the advancement and promotion of Asian officers to higher ranks and to courses in the United Kingdom, and more important still, the introduction of a policy of assimilating Chinese into the Police Force have been successfully adopted.[20]

Even Major General Dunlop, the 'celebrated hero' who had commanded the troops which quelled the riots, acknowledged Foulger's abilities and admitted that the former police commissioner was a worthy and admired colleague. Yet the pertinent issue at stake transcended past friendships. A high-ranking British official would have to shoulder much of the blame for mishandling the two dreadful days in December. The question that lingered at the back of everyone's mind then was, 'Who?'

In the meantime, newspaper editorials, both in Singapore and in Britain, continued their censure of the government. In Singapore, *The Straits Budget* expressed its scepticism of the Commission's ability to comprehensively reconstruct the causes and events that led to the riots. The failure of the government before and during the riots, which should be the core subject of investigation, would most certainly be neglected, if not blanked out. The government could now use the Commission as a tool to evade crucial questions from the public as it could abstain from issuing any statement that would interfere in the enquiry process. In England, *The Times* stated that the formalisation of the Commission of Enquiry had not alleviated the sense of danger and fear among Europeans and Eurasians living in Singapore. Close and continued cooperation with Malays and other Muslim communities had been shattered, and the enquiry could not undo this.[21]

The Commission of Enquiry held its opening session on 14 February 1951. The first witness was G. R. Livett, the Deputy Commissioner of Police who, in his testimony, acknowledged the embedded weaknesses of the police force. Livett was of the view that the riots would not have spread beyond the vicinity of the Sultan Mosque if a policy of patience and restraint had been implemented. He blamed the military forces for attacking the crowd, inducing widespread acts of violence. Greatly disturbed by the self-defeating effects of Livett's testimony, the newly appointed Commissioner of Police, John P. Pennefather-Evans, arranged for an informal meeting with members of the Commission. It was proposed that police officers be represented by civilian lawyers during the course of the enquiry. Gimson was taken aback. 'I fear however,' he remarked in a telegram to John Higham, 'that a private lawyer would not have that sense of restraint and regard for the general interests of the public which are necessary in this very delicate investigation'. To counter Pennefather-Evans' proposition, the Attorney General was asked to arrange for an urgent meeting with members of the Commission. A suggestion was mooted that the Crown Counsel, rather than a private lawyer, should be employed for the purposes of protecting the interests of police officers testifying before the Commission. The Singapore Governor's strategy gained the upper hand. Gimson later admitted in a follow-up telegram that he would have asked the Colonial Office to interfere in the matter had the ploy failed.[22] The politics of the Commission of Enquiry had gained full momentum.

Livett's testimony and that of several other officers reinforced the established notion that the Malay policemen, who constituted the majority of the policemen in the Singapore Police Force, had failed in their task to ensure the enforcement of law and order during the riots. The chief underlying reason for the ineffectiveness of the Malay policemen was their deep sympathy towards the resentment felt by their

co-religionists. Another plausible reason was the lack of coordination between police officers who were deployed in crisis-stricken areas with those stationed at the Police Headquarters. The police were also faced with overwhelming difficulties in handling the rioters they encountered in various parts of the city.[23] On 19 February 1951, Nigel Morris, the Deputy Commissioner of Police in charge of the CID, delivered the first wrenching blow to the integrity and image of selected civilian officials. Morris testified before the Commission that he had insisted on the transfer of Maria Hertogh to a Social Welfare Home several days before the riots. This was based upon feedback received from Special Branch officers who had observed the growing Muslim hostility arising from Maria Hertogh's placement in the Catholic Convent of the Good Shepherd. His advice was consistently rejected by Wilfred L. Blythe, the Singapore Colonial Secretary, which led Morris to seek the cooperation of other high-ranking civilian officials, but all to no avail.[24] Morris' account was supported by the testimony of A. E. G. Blades (the Assistant Commissioner of the Special Branch) and retired Assistant Superintendent Mahmood bin Abdul Wahab, who repeatedly emphasised their role in urging the removal of Maria Hertogh from the Catholic Convent, with the sole intent of mollifying the opinion of Muslims in the colony. Blythe rejected their recommendations, insisting that placing Maria in the convent was the most appropriate course of action given the circumstances, and that he did not see the need to consult Muslim leaders on the matter.[25]

The second exposure of the failure of civilian officials in the performance of their duties came from the former Acting Commissioner of Police, R. C. B. Wiltshire, who took the stand to testify on 23 February 1951. Wiltshire had submitted his letter of resignation several days before the commencement of the Commission of Enquiry to enable himself to testify without being bound by the code of ethics of a police officer and a servant of the colonial state. The Singapore Governor saw through Wiltshire's cleverly crafted scheme and bluntly rejected the resignation.[26] At some point during two days of intense questioning, Wiltshire confessed that, during the worst days of the riots, he was acting under the direct orders of the Singapore Colonial Secretary, who had been tasked to manage the violence that had erupted in Singapore from the time when the Governor was at the Commissioner General's residence in Johor Bahru. No reasons were given for the delay on the part of the Governor in returning to Singapore on the second day of the riots. The Chairman of the Commission then asked whether such a procedure was appropriate in the circumstances. Wiltshire replied in the affirmative, and later divulged that he had also refused the military assistance that was offered on two occasions by Major General Dunlop.[27] More damaging testimony came from Foulger, who shed light on the corruption that was rampant in the police force due to low pay and long working hours. These problems, along with internal rivalry and poor coordination between the higher echelons of the police force, had been brought to the attention of the Singapore Colonial Secretary prior to Foulger's departure from the force. Although several reforms had been proposed and initiated, the process was severely hampered by a lack of support from civilian officials.[28]

The Commission then proceeded to St. John's Island to obtain the testimony of six Muslim detainees who were alleged to have inflamed Muslim feelings before

and during the riots. All except for Karim Ghani agreed to testify. Their statements were recorded on camera and none admitted to the charge that they were proponents of violence and disorder. Foreign observers in the colony were bewildered by the Commission's attempt at obtaining crucial information from detainees who had not been given a fair trial by a British court.

> Did this action in any way imply a criticism of the authorities for detaining these persons so long without trial? Or did it merely mean that the Commission desired the testimony of these important witnesses in order to complete their picture of the events which led to the disorders in December?[29]

These pertinent questions were never answered.

In England, newspaper coverage of the testimony of leading officials in Singapore provided politicians from the Conservative Party with the pretext to find fault with the Labour government's management of the colonies. Having won the general elections in the previous year by a narrow margin, the Labour Party was tinged with political divisions, personal rivalries and a spate of resignations. The Conservatives, on the other hand, were progressively regaining public support through a re-organisation of party organs, by embracing the notion of the Welfare State, forging close ties with trade unions and promoting government-led development schemes. During a House of Commons debate, Frederick Burden questioned the late deployment of military troops to quell the riots in their early stages. Burden demanded an assurance from the Secretary of State for the Colonies that military forces would be promptly activated in the event of another major riot. Another Conservative Member of Parliament, Arthur Harvey, asked for the earliest date by which the investigation of the Commission of Enquiry would be completed. James Griffiths explained that the causes and factors that led to the riots had yet to be fully uncovered. The government would not commit itself to Burden's proposition. In response to Harvey, Griffiths wryly noted that the 'gallant Gentleman will have seen from Press reports, the Commission have begun their work and are taking evidence.'[30]

The Commission of Enquiry held its last session on 9 March 1951. A total of 136 police officers, government servants, Muslim elites and members of the public had been interviewed. Investigative tours were conducted in the areas where the riots had taken place, and several films of riot incidents and an anti-riot drill were also assessed. Members of the Commission arrived in England on 6 April and completed their report in the first week of May. Several Anglophone elites in Singapore noted that the enquiry was a clear testimony of the colonial regime's commitment to protect the civil liberties of its subjects and its willingness to rectify its inadequacies. The American Consul General thought otherwise. From his vantage point, the Commission had failed to obtain fundamental facts from the Singapore Governor who, as the most prominent figure in the colony, could not be placed under oath because of the legal principle that 'the King can do no wrong.'[31] The same line of reasoning was advanced by the Acting Australian Commissioner for Malaya, L. R. McIntyre, who remarked that the Commission had concentrated mainly on its second term of reference, that is, 'the measures taken to protect life and property and restore law and order'. It was

more than certain that the failure of the police force would constitute a large portion of the final report. Much blame for the riots, in McIntyre's view, should have been attributed to the inefficiency and political oversight of the civilian officials in Singapore. Not a single one of those officials had considered seeking the help of Muslim leaders to defuse Muslim ill-feelings towards the government, which had developed many months before the riots. The government had also not planned for contingencies in the event of an outbreak of mass violence.[32]

Concerned about the likely texture of the report, Griffiths, Higham and Gimson maintained regular correspondence with members of the Commission as the writing proceeded. When advance copies of the document were sent to the Colonial Office, a number of officials were in agreement that the reputation and future of Blythe was on the line. On 17 May 1951, the report was flown to Singapore. Gimson received prior information that he was free from blame, but he remained apprehensive of indirect references to his poor leadership during the riots. None were to be found. Confident of the fact that he had now been absolved of blame for the riots, the Governor sought to challenge various parts of the report which exposed the ineffectiveness of those under his charge. Selected personalities whom he had hoped to protect were thus provided with copies of the report for the purposes of exposing misinformation in the document, and to offer alternative viewpoints. Two copies of the document were delivered to Malcolm MacDonald and Henry Gurney for their perusal.[33] A battle of words and wits within colonial officialdom had begun.

The battle of words and wits

The most vitriolic critique of the report came from Wiltshire, who sent a long memorandum to officials in Singapore and Britain in defence of the measures that he and senior officers in the police force had undertaken during the riots. Wiltshire asserted that the members of the Commission were not perceptive of the manifold dilemmas faced by police officers when confronted with unruly mobs. Their main aim was to limit the scale of collateral damage, and the police force had performed to their fullest abilities towards that end. Concluding his long and emotional account of the police contribution to the security of the colony, Wiltshire recommended that public access to the defective enquiry report be restricted. It did not take Higham too long to state that the memorandum would contribute nothing to the more urgent process of refining the Commission's report. 'I think it is only charitable to consider some passages of it as a product of an overwrought mind!'[34]

From June 1951 onwards, a series of amendments were made arising from comments and criticisms within governmental circles. Representatives from the military, for example, requested that the words 'General Headquarters is not in Federation,' an expression that would have made them appear unprofessional, be changed to 'He telephoned to General Headquarters and asked Headquarters Malaya District, in the Federation, to send et seq.'[35] The Commission acquiesced to the proposed amendment. Although he had anticipated criticisms from the press should the publication of the report be delayed, the Singapore Governor was unable to accept more than twenty points which, he felt, would further diminish public confidence in a number of civilian and uniformed officials. Gimson rejected the suggestion that the

Singapore Colonial Secretary be publicly censured for having failed to take heed of the advice given by the police force. The removal of Maria Hertogh from the Convent of the Good Shepherd would have required the authorisation of the civil court and such power was not conferred upon the Singapore Colonial Secretary.

The second line of contention pertained to what was purported to be an ineffective deployment of the Gurkha contingent by K. L. Johnson, the Acting Vice-Commissioner of Police. Johnson had, to the contrary, ensured that the Gurkhas were deployed at crucial points adjacent to the Sultan Mosque, which was the best course of action under the circumstances. Gimson disputed the assertion that the CID 'erred in failing to make an early search of the Mosque which was the focal point of the rioting throughout'. The task of clearing the streets of rioters was the duty of uniformed policemen, not the CID. The CID had, however, taken a more logical move by seeking the support and co-operation of Muslim leaders to disperse the crowds. The Commission was also wrong to assert that the Sultan Mosque was the focal point of the riots. The throwing of bottles and other small-scale violence at the mosque on the evening of 12 December was insignificant when compared with attacks on civilians and damage to property in other parts of the island. A notable case in point was the outbreak of riots in Geylang which were more deadly than those in other areas. It was spurious, Gimson argued, to posit that the Japanese Occupation had had an adverse effect on governmental officials, resulting in their inability to effectively manage cases of mass violence.[36] Reforms at all levels had been implemented since the liberation of Singapore in 1945, which had brought about the restoration of efficiency and discipline within the Civil Service. To drive home his points, Gimson requested that his disassociation from selected contents of the report be published simultaneously with the final version of the document. Having studied these contentions, coupled with the Maria Hertogh appeal case pending in the months that followed, the Colonial Office postponed the publication of the report.[37]

The announcement of the delay in publication led to tangled debates and wild speculations over the report's contents and reliability. Reporters from leading newspapers in Singapore tried to obtain inside information on the contents of the report but were frustrated by the colonial state's effective measures in limiting all discussion of the report to closed circles. It was predicted that the report would emerge as a 'best seller'. Worsening the state of affairs was the spread of rumours that the failings of some prominent British officials would be exposed. One uninformed observer suggested that the Governor had been severely reviled and, hence, was manipulating parts of the report which exposed his poor leadership.[38] In a meeting that was attended by community leaders in Singapore, Dr C. H. Withers-Payne, the President of the Singapore Association, called for the immediate publication of the report. Withers-Payne remarked that the 'tardiness in placing the Commission's findings before the public is not in the public interest.'[39] Even the members of the House of Commons in Britain were oblivious to the internal debates pertaining to the findings of the Commission of Enquiry. When asked by Niall Macpherson from the Conservative Party when was the earliest date on which the report would be published, James Griffiths responded that the onus was placed upon the Singapore Governor to examine the report and decide on the appropriate date for publication.[40]

Meanwhile, tensions between British officials in Britain and the Singapore Governor became more intense, due to the latter's agitation for further amendments to be made to the report. Thomas Lloyd (the Permanent Under-Secretary of State at the Colonial Office) went to the extent of reminding Gimson that, whilst he was aware that the Governor was the best judge of the anticipated public reaction to the report, Gimson should also take into consideration that reports of a quasi-judicial nature were usually accepted by ministers in Britain without comment. Any departures from the findings of the Commission should be limited to matters that were pertinent and trivialities, such as the use of certain terminologies and sentence structures, should be avoided. Sir Lionel Leach, the Chairman of the Commission, who was evidently upset with the scores of criticisms levelled thus far, defended the report in its entirety. He stressed that there was more than enough evidence to support every point that was highlighted in the report. The Commission had also fulfilled its stated terms of reference.[41]

Gimson was not deterred from pursuing his line of attack. He admonished the Secretary of State for the Colonies:

> [T]he public generally will, I feel sure, be as disappointed as I am with the Report. My immediate advisers agree with me that the Report discloses that the enquiry was superficial in character, that no real attempt was made to investigate deficiencies of the police force or emergency organisation, and that too much attention was paid to almost irrelevant issues. Nor has it brought to light anything of which the Government was not aware before the Commission began its enquiries.[42]

In a follow-up telegram to Thomas Lloyd, Gimson strove to refute what he saw as the erroneous claims made by Foulger in a letter sent to the Colonial Office. According to Gimson, the former Commissioner of Police had wrongly assumed that the riots were the product of a shortage of well-trained senior officers and constables. The number of officers in the police force was more than sufficient for the management of law and order in the colony, and Foulger was imagining a situation that existed only in his mind. Gimson repeated his request to make further alterations in the report, so as to insulate several men under his charge from public censure. After a heated debate between Higham, Griffiths, Lloyd, Leach and Gimson, the report was reworded and distilled, though the core conclusions remained intact. The Singapore Governor was permitted to publish his personal disagreements as appendices to the report.[43]

The Report of the Commission of Enquiry, popularly known as the 'Leach Report', was published on 7 August 1951. Having been modified in accordance with the politics and anxieties of the time, it is unsurprising that the Leach Report failed to provide a balanced or definitive account of the causes and events that led to the outbreak of the Maria Hertogh riots. The central purpose of the Leach Report, Mary Kilcline Cody suggests, 'seems more didactic than investigatory and it may be seen as a lesson for colonial governments rather than an attempt to establish the causes of the riots'.[44] Going beyond this, I would argue that the Commission of Enquiry had failed to pose a basic and crucial question: Why did the riots occur in some localities, yet not in others? Due to this oversight, the Leach Report made no reference to the socio-economic marginalisation, deprivation,

alienation and grievances of Malays and other communities, which could well have explained the mass participation and rapid spread of the riots in the villages, ghettos and other suburban parts of Singapore.

It is noteworthy to highlight that such social problems had been made apparent by an influential Malay newspaper, the *Utusan Melayu*, some few months before the commencement of the Commission of Enquiry. According to a newspaper editorial, a large number of youths who participated in the riots originated from slums and dilapidated kampongs, which revealed that the outbreak of violence was closely linked to the social conditions of Malays and the inadequacy of governmental policies towards them.[45] Indeed, the British were oblivious of the correlation between mass violence and the socio-economic marginalisation of the local community. They had only become aware of the predicament during a Governors' Conference which was held in the following year, when issues pertaining to Muslims in Singapore were deliberated at length.[46] Corroborating the analysis of *Utusan Melayu*, Stanley Lieberson and Arnold Silverman stated that riots were prevalent in major cities of the post-war period, especially 'when social institutions function inadequately, or when grievances are not resolved under the existing institutional arrangements. Populations are predisposed or prone to riot; they are not simply neutral aggregates transformed into a violent mob by the agitation or charisma of individuals. Indeed, the immediate precipitant simply ignites prior community tensions revolving around basic institutional difficulties.'[47]

The Leach Report attributed the outbreak of the riots to a few key factors. Foremost among them was the intense feeling which developed within the Muslim community in Singapore, arising from the verdict regarding the custody of Maria Hertogh. Another aggravating factor was Maria Hertogh's stay at a Roman Catholic Convent, which heightened suspicions that there had been prior plans to forcibly convert the girl to Christianity. The third cause was the publicity given by the press to the legal case and Maria Hertogh's life at the convent. Muslim hatred of Europeans and Eurasians in the colony was further intensified by public statements and speeches made by the 'Nadra Action Committee', whose chief members were Karim Ghani, Dr Burhanuddin, Mohammed Taha bin Kalu, Syed Ali Al-Attas, Darus Shariff and Mohammed Mustaza. A large portion of the document was devoted to providing intimate details on the role of the police force. The report ascribed the riots to the failure of the Malay police in particular and to the police force as a whole for having failed to anticipate the possibility of an outbreak of mass violence and to employ necessary force at an early stage. This revealed the vulnerability of the security agencies to the rioters, which resulted in the spread of mass violence from the area just outside the Supreme Court to other parts of the city. Comprehensive reforms were recommended to remedy the problems of weak leadership, corruption, poor discipline, disorganisation and low morale within the police force.[48]

Villains and scapegoats

Crucial parts of the Leach Report were published verbatim by newspapers in Singapore. Along with headlines such as '4 Top Officers Blamed' were pictures of R. C. B. Wiltshire, G. R. Livett, K. L. Johnson and W. J. Parks. In contrast to these

negative portrayals, Major General Dunlop was praised for his foresight and command of the military during the riots.Two leading Chinese newspapers, *Nanyang Siang Pao* and *Sin Chew Jit Poh*, both commended the report for its impartiality while the *Utusan Melayu* refrained from issuing any comments, aside from reporting the essential findings of the Commission.[49] In Britain, articles on the Leach Report were published on the front pages of the *Manchester Guardian*, the *News Chronicle*, the *Daily Mail* and the *Daily Herald*. Replicating the views of most newspapers in the country, the *Manchester Guardian* depicted the document as 'devastating' and 'extraordinary' because 'there was hardly a branch of the administration in which the Commission had not unearthed failures.'

When viewed from the perspective of the senior police officers, the summer of 1951 coincided with the beginnings of their struggle for self-preservation. Having risked their lives in the line of duty and, on many occasions, been decorated with medals attesting to their bravery and good conduct, their heroic status had now been called into question; they were suddenly portrayed as 'villains' for having failed to perform the duties expected of them in the course of the riots. Foulger was the first victim of the colonial administration's endeavour to preserve the legitimacy of its higher command. His anticipated promotion to the post of Deputy Inspector General of the Colonial Police was denied. The Secretary of State for the Colonies maintained that Foulger's leadership would be doubted by senior officers in the organisation in view of his failure to satisfactorily fulfil the task of a commissioner in the colonies. Faithful to his oath to the British Empire and determined to redeem his honour, Foulger requested re-appointment as the Commissioner of Police in Singapore.[50]

Gimson was unwilling to accept what seemed to him an outlandish and impractical proposition. Although he acknowledged Foulger's past contribution in re-establishing the Singapore Police Force following the Japanese Occupation, Gimson maintained that Foulger's re-appointment would stifle the rapid progress of reforms arising from the plans that had been laid by Pennefather-Evans. Moreover, Pennefather-Evans had regained the respect and trust of the Malay rank and file, which had deteriorated upon the outbreak of the riots. 'Whether Foulger could possibly rejoin the police after the departure of Pennefather-Evans must depend to a large extent on public reception of the conclusions of the Riot Enquiry Commission.'[51] Public response to the report was in the negative. Foulger was barred from holding any position in the Singapore Police Force by order of the Colonial Office. Instead, he was offered a minor post in Tanganyika in token of his services. Gimson subsequently took it upon himself to publicly criticise the former Acting Commissioner of Police, alleging that Wiltshire had failed to relay crucial information needed in order for the Singapore Colonial Secretary to come to a firm decision on the first day of the riots.

This marked the start of the mêlée between uniformed and non- uniformed officials of the colonial administration, a clash which involved members of the general public as well. In an interview with a *Straits Times* correspondent in London, Wiltshire commented sarcastically that:

> [n]inety-eight pages and a mention of Wiltshire on nearly every one. . . . I only wish I could state my case at the same time as this report – I know places where they will be lapping it all up – but I am still in the Force and cannot say a thing.[52]

Pennefather-Evans joined in the debacle by stating that any actions by police officers in the event of riots and other acts of violence were bound to be censured. It was impossible for the men on the ground to gauge the amount of force that would be tolerable to the public and the civilian government. In the same week, several notable elites from the European and Eurasian communities in Singapore stressed that the report had wrongfully blamed police officers who were placed in near-death circumstances when confronted by armed rioters. Prominent Chinese leaders also expressed their unhappiness at the report's censure of Wiltshire, contending that the former Acting Commissioner of Police had been made 'a scapegoat' to cover up the misdeeds of higher-ranking British officials in the colony. Members of the public penned their own criticisms of the government for failing to take the lead during the early stages of the riots.[53]

Against all odds, Gimson remained adamant in defending Wilfred Blythe by stating explicitly his disagreement with the Leach Report's censure of the civilian official under his charge. Blythe's responsibility for the mishandling of the riots was still contentious. The Singapore Colonial Secretary in turn provided the Home Government with his version of the episode, alleging that newspaper reports on his role in placing Maria Hertogh in the Catholic Convent were nothing less than false. Rather, it was the Dutch Acting Consul General, Jacob van der Gaag, who declined his appeal to remove Maria Hertogh from the convent. Van der Gaag had also refused the application for an interview with the Commission of Enquiry, giving the excuse that representatives 'of a foreign government would act correctly by not meddling with any domestic affairs unless he would receive an explicit and formal request to do so'.[54]

On 21 August 1951, the Legislative Council discussed the contents of the Leach Report and the subsequent disciplinary measures meted out to four senior police officers. Although Gimson anticipated dissent, this did not materialise. It was probably one of the most sober sessions since the Council was re-instituted in 1948. The Singapore Governor proposed four motions:

(1) That this Council having read and considered the Report of the Singapore Riots Inquiry Commission 1951 accepts the findings of fact made by the Commission except in cases where evidence was not available to or was not placed before the Commission and now requests the Government to take such further action against the Government Officers and servants inculpated by the said Report as may be necessary and proper.
(2) That this Council, as representing the people of the Colony of Singapore, tenders to Major General Dunlop and to the officers and men under his command its heartiest thanks for restoring law and order in Singapore on the 11th and 12th December 1950, during the partial breakdown of the Civil Government.
(3) That this Council deeply deplores the incidents referred to in Part XXI of the Singapore Riots Inquiry Commission Report and particularly in sections 173, 174 and 175 which are calculated to diminish almost to vanishing point the public confidence in the Singapore Police Force and especially its senior ranks.
(4) That this Council disassociates itself from the contents of the dispatch of His Excellency the Governor of Singapore dated the 13th of July, 1951 printed on pages 97 and 98 of the Singapore Riots Enquiry Commission Report.[55]

The first motion received the unanimous approval of the Council. The second motion was accepted by all without any division. Several lines commending the role of the Volunteer Special Constabulary were added and the words 'partial breakdown of the Civil Government' was removed. The third motion was reworded as follows:

> That this Council takes note that the Government intends, in view of the serious nature of the comments on the conduct of all senior officers of the Police Force contained in Part XXI of the Singapore Riots Enquiry Commission Report and particularly, to take action to investigate the said comments with a view to taking such disciplinary action, if any, under Colonial Regulations as may be necessary and proper.

The last motion was rejected by all members of the Council. Gimson was pleasantly surprised that the overall result was in favour of the government. He attributed such affirmative reactions to the Council's appreciation of the various difficulties faced by the government and its agencies in the days before and during the riots. Members of the Legislative Council were also aware of their shared responsibility in facing up to the difficulties and problems posed by the riots, and they all agreed that the Leach Report was defective.[56]

On the other hand, newspapers in Singapore and Britain reacted negatively to the Legislative Council proceedings. *The Straits Times*, the *Manchester Guardian* and *The Times* described the session as unsatisfactory and 'a sordid victory' on the part of the government for avoiding an explanation for the absence of the Singapore Governor on the first day of the riots. The Leach Report was caricatured as a skilled attempt at concealing the truth of the Maria Hertogh controversy. Celebrated for its lucid criticisms of the government's policies, the *Singapore Standard* startlingly shared the views of the Chinese press that the government should not be faulted for the riots. The editorials of these newspapers further emphasised that there were many lessons to be learnt from the incident, one of which was the pertinent need for British officials and other elites in the colony to maintain closer rapport with the common people. *Utusan Melayu* stressed the need to improve the living conditions and salaries of the police officers.[57] Responding to several misleading comments by the local press and by newspapers in the United Kingdom, Gimson announced over the radio his assurance that all discussions on the Leach Report had been carried out in a liberal way. He warned the press of the danger of partisan and one-sided comments which could threaten democracy in the colony.[58]

British officials and local elites in the Malay Peninsula maintained that the riots had placed the Singapore Governor and the Colonial Secretary in jeopardy. At a tea session with General Harold Briggs (the Director of Operations in Malaya), a British colonial officer based in Penang commented, 'It seems to me there are two "very frightened men" in Singapore and they are busy looking for scapegoats.' Briggs' response was swift and telling: 'Well, any intelligent person reading the newspapers could only come to that conclusion.'[59] The President of the Malayan Chinese Association, Tan Cheng Lock, felt that the Singapore

Governor and the Colonial Secretary had demonstrated a lack of initiative and competence in the face of an outbreak of mass violence.[60]

The political blunders and poor management of the enquiry also provoked much displeasure among the higher echelons of the colonial administration. Informed of Gimson's unpopularity among a large portion of the Singapore community, the Secretary of State for the Colonies maintained that the Singapore Governor should be relieved of his post. Malcolm MacDonald concurred with Griffiths's observation. He was greatly disturbed by the stream of critiques hurled by local elites at the aloofness and arrogance of British officials in Singapore. A Muslim member of the Legislative Council, for example, had commented that such a poor disposition would result in a deterioration of Muslim support towards the British government. The Commissioner General found it appalling that, even though the Leach Report had insulated the Singapore government from a complete collapse of legitimacy, Gimson's relationship with the local elites in the colony had still not improved. The local Muslim leaders were not the only critics of Gimson's performance; there was also a serious level of distrust in his governorship among European expatriates in the colony. To Malcolm MacDonald, Gimson had

> retained (unwittingly I think) too much of the superiority complex of the old Colonial type of Governor. . . . Over and over again Europeans and Asians alike have expressed to me their regret that, though they liked and admired Gimson a lot, they could never get on to terms of social equality and close personal friendliness with him.

There was, at the same time, the problem of Blythe's ineptness in fulfilling the role of Acting Governor should Gimson be retired too soon. It was decided that a formal handover was to take place in March 1952. John Fearns Nicoll was proposed as the new Governor of Singapore.[61]

The controversies surrounding the Leach Report soon became a topic of debate within the British Cabinet. In his report to the Labour Prime Minister, the British Minister of Defence, Emmanuel Shinwell, observed that the riots were more symptomatic of latent inefficiencies in the civil administration than of problems in the uniformed services. Comprehensive reforms needed to be implemented in order to arrest such problems. The Secretary of State for the Colonies disagreed with Shinwell's views and defended the Leach Report's findings that the major part of the blame for the riots should be placed upon the police force. The debate between the two officials, according to Anthony Stockwell, ended in a 'draw'.[62] Upon considering all contending viewpoints, Clement Attlee concluded that 'errors had been made but that much had arisen from the initial mistake of placing the Hertogh girl in a Convent.'[63]

In September 1951, a Tribunal Committee was established under Colonial Regulation 68(ii) to deliberate upon disciplinary actions against six senior police officers. T. A. Brown (a Justice of the Supreme Court), A. W. Frisby (the Director of Education) and Sir Han Hoe Lim (a Member of the Executive Council) were nominated as members of the tribunal whose main task was to read out the charges laid against the officers concerned and to obtain further evidence of their roles

during the riots. R. C. B. Wiltshire (former Acting Commissioner of Police), K. L. Johnson (a Senior Police Officer) and W. J. Parks (another Senior Police Officer) were charged with 'gross negligence' in the performance of their duties. Six other sub-charges were laid against Wiltshire, which is revealing of the government's persistent attempt to shift most, if not all, of the blame upon him. In one of the sub-charges, Wiltshire was held responsible for failing 'to give to the Colonial Secretary full and frank reports of the situation.' Three other officers, N. G. Morris (the Deputy Commissioner of Police, CID), W. G. Watson (a Senior Police Officer), and A. H. Frew (another Senior Police Officer) were charged with perjury, manipulation of evidence and attempting to mislead the Commission of Enquiry. Morris faced three other sub-charges, one of which was the failure 'to make an early search for weapons in the Mosque in North Bridge Road which was known to you to be the focal point of these disturbances'. The officers were allowed to engage their personal lawyers, yet none accepted this concession. All of the officers cited their inability to pay the steep legal expenses, but the key underlying reason was a conscious realisation that their fates were already sealed and their careers as police officers had come to a close.[64]

Not unexpectedly, Gimson was troubled with the conduct and the eventual outcome of the tribunal's deliberations, especially on whether to allow public access to tribunal sessions or to limit it to governmental circles. James Griffiths argued that the defendants should be given the prerogative to decide on this point and that all sessions should be filmed. The Singapore Governor contended that a public enquiry would re-ignite the public discontent that was slowly coming to pass. Press coverage of the tribunal could also further weaken the morale of the police force. It was recommended that the tribunal report should be published at a much later date, and this had invited protests from prominent personalities and newspaper editorials.

Unequivocal in its defence of the police officers, *The Straits Budget* highlighted that new evidence on the riots would emerge from an open and impartial trial. It was thus crucial that access to the tribunal report be made public to provide a fuller account of the events in December 1950.[65] The former Director of the Special Branch, Rene Onraet, criticised the government for absolving the civilian officials of their errors. As he saw it, the Leach Report was written by men who were unacquainted with the danger at hand. The riots would have become even worse if the police had not resorted to the use of force against the crowd. Onraet reasoned that the low morale of the police had been over-emphasised in such a way as to make it seem that the organisation had been of little use. Moreover, the police force was part of the larger governmental mechanism. To focus solely upon the weaknesses of the police force meant that other, deeper problems in the administration of Singapore were conveniently concealed. 'The Commission', Onraet remarked cynically, 'did little to enhance our Civil prestige. It did much to kill it.'[66] At the end of the same month, Gordon Smith (the Chairman of the Public Services Commission) accused the government and *The Straits Times* of suppressing facts and manufacturing false accounts in order to ward off criticisms launched against them. In registering his protest along the lines of Onraet's critique, Smith acted as a 'whistleblower' whose actions and

discourses tended to expose the internal contradictions of colonialism and its legitimating rhetoric. Upon witnessing the objections expressed by the press and other civil servants, the Secretary of State for the Colonies decided to allow public access to the proceedings of the tribunal and to publish the report at a later date, subject to the approval of the new Governor and the new Secretary of State for the Colonies.[67]

Shifting fates, shattered lives

The tribunal completed its investigations in November and a report was sent to Whitehall on 11 December 1951. Having deliberated on the disciplinary measures to be meted out to the six senior police officers, the Singapore Executive Council concurred with the tribunal that there was no strong evidence to prove that Morris, Parks, Frew and Watson had failed to perform their duties or sought to conceal vital information on the circumstances that led to the mishandling of the riots. It was recommended that the four police officers be acquitted of all charges laid against them, and that all legal expenses incurred by Morris be fully refunded. Johnson was to be publicly censured for his poor conduct during the riots. He was to be granted retirement with full pension, and all legal costs incurred by him would be refunded by the government. Likewise, it was proposed that Wiltshire be removed from his post and retired with a full pension. Living up to its slow-moving and pedantic bureaucratic legacy, the Home Government announced that all recommendations would be studied in full and that no firm decisions could be made for several months.[68]

In the interim, the newly elected Conservative Prime Minister, Winston Churchill, sought the counsel of his advisers in London in regard to the reshuffling of key British officials in Malaya. Field Marshal Bernard Law Montgomery agitated for the removal of several individuals. To the bold, brazen and supercilious Army General, Malcolm MacDonald was a man 'who talks too much', and who was driven by emotions with no concrete plans. Gimson 'has now "had it", and he admits it'. The Singapore Colonial Secretary was unfit for the job as shown by his indecisiveness during the riots. Inferring from his knowledge of Wiltshire via the events that had unfolded since the December riots, it was clear to Montgomery that the former Commissioner of Police 'cannot be much good'. He concluded by stating that the 'personalities paint a sorry picture in Malaya and Singapore. A complete clean out is wanted.'[69]

Not all of the Field Marshal's recommendations were taken on board by Churchill. Malcolm MacDonald retained his post as the Commissioner General till 1955. Three months after the tribunal completed its investigations, the new Secretary of State for the Colonies, Oliver Lyttelton, who shared Montgomery's views on an immediate replacement of key officials in Singapore and Malaya, announced Gimson's forthcoming departure as Governor and paid tribute to his contributions. The incoming Governor of Singapore was John Fearns Nicoll, and he was to assume office on 1 April 1952. Previously Chief Secretary of Fiji and Colonial Secretary of Hong Kong, Nicoll had maintained strong links with Indian

merchants and businessmen. He was also a popular figure among the Chinese community, due to his friendly disposition and his ability to converse in several Chinese dialects.[70] Upon receiving the news of Nicoll's appointment, the spokesman for the Singapore Overseas Importers and Exporters Association mentioned that 'Singapore has a predominantly Chinese population and it is far better to have a Governor who has lived among the Chinese.'[71]

By the end of January 1952, the six police officers whose livelihood was now dependent upon the outcome of the tribunal were reported to have expressed their anxiety regarding the sluggish decision-making process. Pennefather-Evans articulated his concern to Gimson on the need for the government to issue a public statement that four of the six officers had been found innocent of all charges. *The Straits Budget* editorial described the delay as 'shameful':

> If the fault lies with the Colonial Office, which appears to have the right to the last word, as usual, then it should realize that its procrastination is bringing the Singapore Government into contempt. If publication is delayed much longer it will be reasonable to suspect that somebody is writing yet another, and still different, verdict.[72]

Psychologically disturbed by events that had transpired since the riots, Wiltshire wrote a long and heartrending letter to Onraet, a former colleague and confidant who stood by him in the worst of times. The former Acting Commissioner of Police recollected how colonial administrators in Singapore and Malaya had perpetually ignored numerous warnings by the police of an impending upheaval which had its roots in the radical elements within Malay society. Yet, when such admonitions proved to be far more than mere speculation, the police force ironically became the scapegoat of the system which it sought to protect. Onraet was in full agreement but realised that nothing could reverse Wiltshire's shattered destiny.[73]

In London, Lyttelton went to some length to advise Lionel Leach and members of the Commission of Enquiry to withhold their strong opposition towards the 'undue leniency' of the tribunal. In the main, British officials in Whitehall approved all recommendations brought forth by the Singapore Executive Council. They went a step further to veto the public censure of Johnson. Towards the end of March, the tribunal report was published and featured in almost all major newspapers in Singapore and the United Kingdom. During an exclusive interview at his residence in England, Wiltshire declared that his career in the Colonial Service was over and he 'will get down to the work of growing cabbages.'[74] Nine years later, he was re-appointed as the Commissioner of Police in Aden. Two Singapore Legislative Councillors, Lim Yew Hock and Charles Joseph Paglar, expressed their grievances concerning the government's victimisation of Wiltshire. The *Singapore Standard* and *Utusan Melayu* wrote that the justifications used by the government to relieve Wiltshire from his post should be applied equally to other colonial officials in Singapore and urged that the Singapore Colonial Secretary be subjected to further inquiry.[75] However, such resistance from the press and prominent personalities in Singapore and England dimmed towards the second half of the year.



Figure 5.1 Members of the Inter-Religious Organisation. Seated fourth from left is Malcolm MacDonald. Standing second from left is M. J. Namazie

Source: Author's Family Collection

To a great extent, the strategy of self-criticism which the British employed proved to be vital in ensuring that the higher echelons of the colonial state were insulated from a severe collapse of legitimacy in the aftermath of the Maria Hertogh riots. The Singapore Governor was left generally unscathed throughout the ordeal. The Singapore Colonial Secretary retired honourably from the Malayan Civil Service towards the end of 1953, and went on to become a renowned writer of books about Chinese labour and secret societies in Malaya.[76] This was in stark contrast to the fates of lower-ranking colonial officials, such as Wiltshire and Johnson, as well as the Malay policemen who were made to shoulder much of the blame for the riots. Although it has to be admitted that the British were self-critical and generally receptive of criticisms launched against them, this distinctive feature that characterised the Empire must be seen in the light of actual practices that were determined by the realities and politics of the day. Indeed, self-criticism in the aftermath of the Maria Hertogh riots was no less than a complex process of restoring the essential integrity and, more importantly, the legitimacy of the high command of the colonial administration.

6 Reconciliation

In the foregoing pages, I have discussed the strategies of proscription, surveillance and self-criticism which led to the detection, arrest and censure of persons and institutions held responsible for the outbreak of the Maria Hertogh riots. Yet, to fully comprehend the dynamics and intricacies of British colonialism in post-war Southeast Asia, particularly in the event of mass violence, one must also appreciate the interplay and manipulation of strategies that sought not only to discipline the colonised subjects, but also to reconcile them to continued colonial rule. Frank Heinlein pointedly observes that the global environment of the post-Second World War period posed an array of serious challenges to the relevance of the British Empire. The employment of brute force alone in the management of colonies was no longer viable 'at least if Britain wanted to retain the support of its allies.'[1] The waning of British power in an era of decolonisation also meant that the threats posed by 'extremists' had to be counteracted by the maintenance of relationships of close collaboration with the 'moderates' within the colonised society. With these considerations in mind, the remaining parts of this book will examine British strategies of reconciliation and reforms which were integral to their efforts to restore their tarnished image and regain their agency. 'Reconciliation', which was conceivably a more arduous and convoluted undertaking, is the main subject of this chapter.

I argue that the British colonial administration in Singapore and the Colonial Office in Britain were faced with the daunting challenge of reconciling the interests of multiple parties in the local and international arenas. Three interconnected approaches were employed to diffuse the tense atmosphere. First, the policy of repression was counterbalanced with the facade that the British were not by any means insensitive towards Islam and the immediate concerns of Muslims in Singapore. Second, the British sought to re-establish cordial relations with politicians and administrators in the Netherlands, yet at the same time, attempted to allay the established perception among Muslims that they were pro-Dutch. Third, intensive measures were undertaken to regain the confidence of the European, Eurasian and other communities in Singapore who had been traumatised by the spectre of violence and the ineffectiveness of the police force. Indeed, a great number of people from various beliefs, ethnicities and classes in the colony were plagued by grief and suffering resulting from the loss of human life, as well as financial losses incurred due to damaged and stolen property.

In other words, the British were confronted with the difficult and precarious task of ensuring that no individual, group or institution implicated in the Maria Hertogh controversy was given preferential treatment over others. To balance and rule, more than to divide and rule, was the colonial state's approach to the politics of restoring its tarnished image and regaining its agency in the aftermath of the riots. It is important to point out that, although the colonial state played a key role in the complex and intensive process of reconciliation, it did not possess a sole monopoly of initiative. A broad range of individuals and organisations from within the colonised society actively contributed to the mending of inter-racial and inter-religious relations that had been severely shaken by the riots, and providing relief to those who had suffered during the ordeal.

Restoring public confidence

One of the earliest attempts by the Singapore Colonial Secretary to be reconciled with the distressed members of the public was to make it known that law and order had been reinstated two days after the outbreak of violence. During a radio broadcast, Wilfred Blythe announced that government offices would resume their daily operations, and that all other businesses and institutions should emulate this move. Put simply, life had returned to normal. The Singapore public was also furnished with emergency procedures that had been established after the riots. A coordinated communication network between the Public Relations Office, the Executive Council and the police force had been instituted to ensure a swift deployment of military and police officers in the face of all forms of widespread disturbances. At about the same time, extensive publicity was given to a diplomatic visit by two American Senators. Theodore F. Green and Homer Ferguson were reported to have walked along North Bridge Road – a site where Europeans had been attacked – without police escorts. When interviewed by a reporter from the *Straits Times*, the Senators remarked that they were overawed by the peace and security which the British had provided for the colony's success.[2]

Such shallow propaganda met with a mixed response in newspaper editorials in Singapore and England. As the unofficial voice of the UMNO party in Malaya, the *Majlis* newspaper expressed its scepticism towards the Singapore Colonial Secretary's optimistic forecast. The editorial remarked in a satirical way that, *Belanda makan nangka, British dapat getah*, which implied that, although the Dutch had been the instigators, it was the British who were left to shoulder the long-term consequences of the riots. The editorial highlighted the fact that a large number of shops in the riot-stricken areas were still closed, and attendance at work had dropped substantially as many workers were apparently injured or arrested, or refused to leave their homes in fear of their lives. Such fear was compounded by a growing animosity towards Muslims, who were perceived as the main culprits behind the riots.[3]

The *Manchester Guardian* highlighted the possibility of a major outbreak of violence between Malays and Chinese in Singapore. It was claimed that the riots were rooted in the entrenched bitterness of Malays towards the political and economic dominance of the British and the Chinese in the colony. Race and class differences

rather than religion were the driving forces behind the riots and many skirmishes to come. These politically charged comments were widely publicised in the pages of the *Singapore Standard*. Denouncing what it deemed as the erroneous and shallow analyses of the *Manchester Guardian*, the Malay daily *Utusan Melayu* maintained that most Malays in Singapore regarded the Chinese as their co-citizens, and that there had never been a deliberate campaign to uproot the Chinese from Malaya.[4]

Such seemingly negative portrayals by the press of developments in Singapore prompted representatives from various states and organisations in mainland Malaya to publish their appeals for Muslims to remain calm. They expressed the hope that non-violence and the ideology of peace would be upheld by all parties. Under the chairmanship of Dato Onn bin Jaafar, Muslim elites in Singapore in turn encouraged their co-religionists to work towards mending inter-religious ties that had been severely disrupted by the riots. Among those who signed a public statement that was published in all major newspapers in the colony were Maulana Abdul Aleem Siddiqui, Tuan Haji Ali bin Haji Salleh (the Chief Kathi of Singapore) and M. J. Namazie.[5] The Singapore Colonial Secretary also issued a public statement which stressed the importance of the media in the reconciliation process. Editors of newspapers were prompted to seriously

> reflect upon the incidents of the last few weeks, for there is a lesson to be learned here too – the lesson that if we are to maintain that harmony for which Singapore has, since its foundation, been famed, care must be taken in the presentation of news not to offend religious susceptibilities and exacerbate communal differences.[6]

Blythe's tactic of what has been termed 'blame displacement'[7] for the outbreak of the riots was not left unchallenged. *The Straits Budget* countered the Singapore Colonial Secretary's remarks by publishing several opinion pieces which portrayed the British as the chief culprits behind the tensions that had developed. A European commented that although the British colonial administration in Singapore professed their profound respect for the religion of Islam, events that had unfolded in the months prior to the riots revealed that the government had failed to live up to its own rhetoric. The outbreak of mass violence was a product of British insensitivity and indifference to the demands of Muslims. *The Straits Times,* the *Singapore Free Press* and the *Singapore Standard* reasoned that the blame placed upon the press was based on hindsight rather than foresight. No governmental agency had attempted to play down what was alleged to be sensational press coverage of the Maria Hertogh legal case.[8]

Reflecting on the debate that ensued, John Leslie Micheal Gorrie (the Private Secretary to the Singapore Governor) espoused the view that the British government should have shouldered much of the blame for the riots. The newly established Civil Service was unacquainted with the socio-religious challenges and anxieties faced by the Muslim minority community in the immediate post-war years and this was made worse by the outright mishandling of various issues that were deemed sacred to Muslims. The government – rather than the press

per se – was responsible for the attacks launched against Europeans during the riots. Such observations lent credence to the assertions made by the President of UMNO a month prior to the outbreak of riots that Malaya had been made 'a dumping ground' for British officials of inferior quality.[9]

Standing between these opposing viewpoints, William Langdon, the American Consul General who was based in Singapore during the same period, observed that the press had exacerbated racial and religious antagonisms which, in part, precipitated the riots. English-language and vernacular-language newspapers in Singapore were sold out in the weeks prior to the riots, due to the extensive and lurid coverage of the Maria Hertogh legal case. On several days, even the updates on the Korean War were pushed from the front pages by the news of the case. Nevertheless, the newspapers had 'acquitted themselves well after the outbreak of the rioting with good news coverage of the event and restrained criticism of the authorities. They must have realized, but they would not think of admitting it; that they unwittingly contributed to the outbreak of violence; they subsequently cooperated in every way, however, to dissuade rioters from further violence.'[10]

The Chinese community in Singapore also played an important role in promoting dialogue, assuaging tensions and assisting the British in the maintenance of public order. The largest Chinese daily newspaper, the *Nanyang Siang Pao*, urged the British to 'think thrice' before committing to a legal decision in the upcoming appeal trial. The move to restore Maria Hertogh to her foster mother and husband would be of no great loss to the Dutch. On the other hand, Malays were an important and integral part of the British Empire. The British should, therefore, ensure the repatriation of Maria Hertogh back to Singapore to avoid the violation of the religious rights of Muslims, which could pave the way for further bloodshed and violence. The Guomindang newspaper, *Sin Chew Jit Poh*, called upon the British, the Dutch and Muslims to allow Maria Hertogh to decide for herself on whether to reside in the Netherlands or Malaya. The paper stressed that the Netherlands' diplomatic relations with other Muslim countries, such as Indonesia and Pakistan, would most certainly be jeopardised if the custody of Maria Hertogh was awarded to her natural parents. A Straits Chinese observer expressed his regrets that the image of Malays and Muslims as the most law-abiding community in the colony had been tarnished by the riots. In tandem with these commentaries, several well-known Chinese personalities exerted their influence over the community by discouraging youths in the villages from committing acts of violence.[11]

Admittedly, such a proactive move by Chinese elites in the colony was not entirely motivated by altruism. It was, in some measure, a latent strategy to regain the trust of the British which had been blemished by the growing assumption that most Chinese supported the communists. The Chinese elites in Singapore were said to be filled with hope and optimism by the quelling of the riots. Although they were sympathetic towards the European and Eurasian victims of the rioters, Chinese elites were glad that the British had begun to realise the flaws embedded within their pro-Malay policy. They hoped that friendship and trust would swing back in their favour. Beyond the public show of support, the prevailing view

among the Anglophone Chinese was that the riots 'served them (the British) bloody well right.'[12] Rumours with regards to Malcolm MacDonald's ineffectiveness during the riots were also circulating like wildfire within Chinese circles. The Commissioner General was alleged to have been seen at an antique shop with Harold Stassen (the President of the University of Pennsylvania) during the riots. They were heavily guarded by several police officers and troops who could have been deployed elsewhere.[13]

Despite the appeals of community leaders and concerned citizens, hatred, hostility and distrust remained deep seated and virulent. Muslims in Singapore were committed to the perception that the British would not cease to deny their religious rights. Those of a radical bent were prepared for another violent confrontation in the event of any sign of Western prejudice towards Islam and Muslims. In the same way, Europeans and Eurasians expressed their lack of confidence in the colonial state's ability to ease the tense situation. On 17 December, an anonymous writer who signed off as 'A European' criticised the police force for its failure to protect the people during the riots.

> It is indeed news to learn that the police are issued with firearms only to save their own lives. Surely their primary purpose is to protect the public whom they serve and to quell riots and other dangerous threats to public security? Is it not for this purpose that they are issued with weapons?

On the same day, a satirical cartoon portrayed a man shaking his fist at a British judge with the caption, 'Thank God for the Army, but what we want to know is why they were called in so late!'[14] Such alarmist and negative reactions were unsurprising, as the two communities were the main victims of the riots. Europeans were particularly stunned by their unprecedented experience of being the primary targets of mass aggression. Women and children from the largely expatriate community were haunted by vivid recollections of assaults upon their families and friends. Feelings of ambivalence and suspicions towards Malay servants and drivers governed the minds of European and Eurasian employers. There was also a sense of sympathy for Muslims who were innocent of any involvement in the riots but had been arrested because of their race.[15]

Unbeknownst to the general public, government officials had organised several meetings with Europeans and Eurasians to address their anxieties and to provide updates on the security measures that had been taken to protect them. A suggestion was made in one of the meetings that Europeans and Eurasians residing in areas where fatal attacks had taken place should be provided with revolvers for self-defence. But the idea was shelved, as it proved to be problematic at a practical level. Not only was it difficult for the colonial regime to justify such a privilege, it was feared that the carrying of firearms would precipitate unintended conflict and violence. Moreover, the Eurasians were mindful that Henry L. Velge, the Volunteer Special Constable who fired the first shots during the riots which injured two Malays, was a well-respected member of the Eurasian community. Hence, one of the safe courses adopted by Europeans and

Eurasians in the aftermath of the riots was to stay indoors. They were also advised by the police to refrain from visiting areas where their safety would likely be compromised. Although an exception to the general rule, several Eurasian families migrated to Europe and Australia in order to remain safe from Muslim aggression. A similar policy was adopted by some American expatriates in Singapore who, as a precautionary measure, sent their wives and children back to the United States.[16]

Meanwhile, members of the Muslim Advisory Board stepped up their campaign to restore Maria Hertogh to her husband and to agitate for the release of detainees who had not participated in the riots. A dialogue session between prominent Muslims such as Dato Onn bin Jaafar, M. J. Namazie, Haji Ali, Syed Ahmed Alsagoff, Sardon Jubir, Nazir Mallal, Fadlullah Suhaimi, Haji Abu Bakar and Maulana Abdul Aleem Siddiqui and the Singapore Governor was held, at which three pertinent demands were put forward. The Muslim leaders sought an assurance from the British that the Dutch would be informed of the appointment of a Muslim who was tasked by the Muslim Advisory Board to ascertain 'the wishes of the said Nadra binte Ma'aroof (Maria Hertogh) as to whether she desires to remain in Holland or to be returned to Singapore'. The second demand pertained to Maria Hertogh's return to Singapore during the appeal court hearing. The Muslim deputation hoped that the British would ensure the full cooperation of the Dutch in that respect. Finally, a request was made that those in police custody be treated properly, so as to avoid subjecting innocent people to unnecessary suffering. Sardon Jubir, a Malay lawyer who later became Malaysia's Health Minister, highlighted the need for relief grants to the dependents of those who had been arrested during the riots.[17]

At a personal level, however, Gimson was apparently shaken by the meeting, as it reflected the heightened activism and assertiveness of the Muslim elites. He was certain that the failure to respond effectively to Muslim demands would further inflame animosities locally and in other parts of the Muslim world. The Singapore Governor stressed that the British Government viewed the Maria Hertogh case purely from a judicial angle and that all decisions would be left to the court's discretion. He added that full respect for the religion of Islam would be maintained and that the government would safeguard the religious liberties of Muslims. Having assured the Muslim elites that the first and second demands would be brought to the attention of the Home Government, Gimson gave his word that the Social Welfare Department would commit its resources towards alleviating all difficulties faced by the families of those who were injured and the many others who had been arrested. The Governor added that the screening of detainees would be hastened to weed out innocent persons. The meeting went on to discuss various measures to promote the welfare of the Muslim community and the protection of Islamic customs in such emotionally intense times. Acting upon the advice of the Colonial Office, the Governor later acceded to the first demand and said that the government would assist to the fullest extent in obtaining the cooperation of the Dutch authorities in returning Maria Hertogh to Singapore so that she would be present for the appeal.[18]

Correspondingly, the Singapore Colonial Secretary issued another press release which stated that 45 armed vehicles, 15 armoured cars and 600 soldiers and policemen had been deployed throughout Singapore. It was reported that crowds were seen cheering as the troops passed by their homes. This was a clear testimony that a majority of the citizens of Singapore respected the laws of the colony and were sanguine that the military would protect their lives and property. The Singapore Colonial Secretary also paid tribute to the Volunteer Special Constables for their commitment and vigilance in aiding the regular policemen.[19]

In London, colonial officials sought the cooperation of Dutch politicians to mitigate excessive press coverage of Maria Hertogh's arrival at the airport in the Netherlands. Muslims in Singapore and mainland Malaya were attuned to developments in the Netherlands and would react violently to the jubilant celebrations which had been planned by Catholic activists. Writing to the Colonial Office, Philip Nichols (the British Ambassador at The Hague) reported that a strict warning had been issued to all Dutch newspapers to avoid sensationalism and misreporting. Dozens of Christian organisations and parties were also advised to practise moderation in cheering for the Hertoghs upon their arrival at the Schiphol airport. Though the Dutch authorities were unsuccessful in preventing the cheers of large crowds at the airport, pre-emptive measures prevailed on other occasions. At Bergen-op-Zoom, where the Hertoghs resided, no extensive celebrations were observed. Newspapers in the country covered the story in great detail, yet none highlighted the political and religious aspects rooted within the legal case

> except to say that the riots were significant of the present tension between the East and the West. Comment in the responsible newspapers were on the lines that unhealthy interest was being shown in this little girl and that the sooner the whole story was forgotten the better it would be for all concerned. In short, I think the Government has not done badly, though for some reason or other something seems to have gone wrong at Schipol itself.[20]

Pacifying the Muslims

Mention has been made earlier about the Southeast Asia Muslim Missionary Conference, which was held in Singapore on 24 and 25 December 1950. Whilst the British intelligence services were concerned with attempts by Muslim leaders to harvest support for the Maria Hertogh case, for Malcolm MacDonald, the event provided an excellent opportunity to repair the damaged ties with influential Muslim leaders in Southeast Asia. Although Malcolm MacDonald was unable to deliver the inaugural address at the conference, he ensured that a carefully crafted speech was sent to the organisers to be read on his behalf. *Jamiyah* was commended for taking the lead in strengthening the religious commitment of Muslims in Southeast Asia in the midst of an unending battle against secular ideologies which promoted violence. He enjoined the representatives from different territories to establish a close working relationship so as to bring about a climate of religious freedom and mutual tolerance.[21]

The Commissioner General's critical role in the promotion of religious dialogue and understanding did not end there. On his own initiative, he called for a meeting with members of the Inter-Religious Organisation (IRO). Formed only a year prior to the riots, the IRO was the brainchild of Maulana Abdul Aleem Siddiqui, whose main intent was to form a religious front against the corrupting influence of Communism in Singapore and Malaya. Aside from fostering friendship and goodwill between leaders and representatives of major world religions, the IRO aimed at promoting a spirit of mutual tolerance, understanding and appreciation of different faiths. Informal activities, regular discussions and annual conferences were organised to fortify a common set of values between its members and the general public towards the common good of humanity.[22] As the patron of the IRO, Malcolm MacDonald was instrumental in garnering mass support for the organisation from its inception. One major setback was the failure to obtain the participation of Roman Catholics, who were instructed by higher orders at the Vatican to play no part in the activities of the organisation. They were, however, provided with updates on the IRO's resolutions and activities.

Three weeks after the outbreak of the riots, Malcolm MacDonald called for an informal tea session with the executive members of the IRO. Distrust and disappointment were manifested by those present. Christians were embittered by the lack of compassion shown by Muslim leaders towards Christian members of the IRO who had been attacked by rioters. One of the worst casualties was a Presbyterian Minister, Robert Greer, who had been beaten nearly to death. Muslim members of the IRO explained that they were unable to reach out to the non-Muslim victims of the riots because of the urgent task in dissuading their co-religionists from engaging in violent acts. As the tea session proceeded, Malcolm MacDonald mooted the idea of issuing a public statement on the maintenance of religious harmony in Singapore. Several members expressed their reservations, but a consensus was reached that the declaration would be a 'simple, sincere and in its way noble statement of the unity upon this issue of the leaders of all the religions represented in Singapore and Johore. As such, it will have a certain amount of influence on large numbers of local followers of all the faiths.' The statement was subsequently publicised by the media, which described it as a notable effort by religious leaders in the colony to reach out to those who were directly or indirectly affected by the riots (see Appendix 1).[23] Soon after, visits to hospitals were organised and necessary aid was provided to numerous persons who had been injured during the riots. It was indeed a crucial juncture in the history of the organisation, as it rose to greater prominence in the midst of the reconciliation process. Although Catholics maintained a guarded distance from the organisation, the IRO played a major role in bridging religious boundaries and dispelling misconceptions, both in Singapore and in Malaya, up to the advent of the Labour Front government in 1955.[24]

Towards the end of January 1951, the Muslim Advisory Board conducted goodwill sessions in rural areas of Singapore to dispel rumours, provide the true facts of the Maria Hertogh case, and admonish Muslims to maintain cordial relations with non-Muslims. Although most Muslims were progressively pacified by such initiatives, remnants of dissatisfaction within the community persisted.

A case in point was the demand for places of religious instruction by Malay firemen at the Geylang Fire Station. Even though the fire station was located adjacent to a mosque, the firemen reasoned that no classes could be conducted therein as the mosque was built solely for the purposes of prayer and worship. The British saw the issue as one that could potentially re-ignite Muslim discontent towards the colonial state. Of particular concern was the fact that acquiescing to Muslim demands would set a precedent for civil servants of other religious faiths to agitate for similar facilities. The Singapore Municipal Commission was tasked to conduct extensive investigations, and discussions were held with the firemen. After a lengthy debate, the request was rejected.[25]

Muslim writers and newspaper editorials heaped criticism on the British and their collaborators in response to the rejection of the firemen's appeal and other issues pertaining to Muslim rights. Chief among these was Ahmad Lutfi, whose real name was Syed Abdullah bin Abdul Hamid Al-Edrus. Born in 1911 to a rich Hadrami family based at Banjarmasin in what is now Indonesia, Ahmad Lutfi gained fame through publishing and writing novels, children's fiction, language textbooks and political commentaries. His popularity peaked towards the end of December 1950, upon the publication of a fictional depiction of the Maria Hertogh controversy. The book emerged as a bestseller throughout Malaya.[26] In one of his political commentaries published in the January 1951 issue of the *Qalam* magazine, Ahmad Lutfi highlighted that Muslims were ready to sacrifice their lives in the event of any encroachment upon Islamic laws. He urged the British to display more respect towards Islamic beliefs and legal injunctions, especially in the realm of personal laws. This would prevent a recurrence of religious riots in Singapore.[27]

Ahmad Lutfi's critique of the British was accentuated by coverage given by the *Melayu Raya* newspaper to the difficulties faced by the wives of six Muslim leaders who were still under detention. Bereft of financial support from their husbands, the women were said to be suffering from mental depression. The *Melayu Raya* editorials went on to chide Muslim elites in Singapore for their negligence towards Muslims who had suffered during the riots. Thus far, only Mansoor Adabi, Bashir Mallal and Sardon Jubir had paid visits and provided necessary aid to the families of those who had been detained. Another personality who was eulogised for her philanthropic efforts was Che Zaharah, who, along with the members of the Singapore Malay Women's Welfare Association, distributed food and other basic necessities to twenty families.[28]

The response from Muslim leaders towards *Melayu Raya*'s accusations was swift. On 8 January, Sardon Jubir exhorted members of the public to inform him of specific incidences of abuse by the police during the riots and in their aftermath. The Singapore Malay Union established the 'Muslim Welfare Committee' four days later, to assist Muslim and non-Muslim families in dire straits. A voluntary contribution of $1,173 was collected from sympathisers and donors within and outside of Singapore. The committee also distributed $20 worth of aid each to more than 70 families, most of whom were Malays, Indian Muslims and Eurasians. The number of families in crisis as a result of the riots rose rapidly to 145 some few months later. To further alleviate the extent of suffering experienced

by Muslims, the Singapore Muslim League distributed bags of rice and packets of meat to the families of detainees. Another relief committee, which was presided over by Syed Abdullah bin Yahya, informed the press that $200 had been raised and that only thirty-seven pieces of clothing had been distributed. An appeal was made for members of the public to contribute generously. The Muslim Advisory Board reacted to *Melayu Raya*'s reports by stepping up its visits to the homes of crisis-stricken families.[29]

Not unexpectedly, the Singapore Governor built upon the efforts to pacify Muslims in Singapore and, at his own discretion, reiterated the benevolent nature of Britain's rule of the colony. During a tea party at the Raffles Hotel attended by representatives of religious faiths, Gimson spoke about the impartiality and independence of British courts. He stressed that the maintenance of law and order was fundamental in a multi-religious and multi-racial setting such as Singapore, and appealed for members of all religions to work hand in hand with the government to prevent disorder and chaos. The Governor said,

> Muslim subjects of the King have always held a high place in His Majesty's regard and have always been considered as among his most loyal supporters. The Muslim community in Singapore has, therefore, a high reputation to maintain and I hope that they will do nothing to besmirch this reputation and so to bring themselves and their religion into disrepute.[30]

It is worthwhile to restate that Gimson's discourse on governmental non-interference in judicial processes in Singapore was far from truthful. The Governor had taken the proactive move to conduct secret negotiations with the aim of inducing Mansoor Adabi to dissolve his marriage with Maria Hertogh in accordance with the laws of Islam. Several well-respected Muslims in the colony also supported the plan, but all in vain.[31] Mansoor Adabi was resolute in his determination to pursue his appeal in the Singapore High Court.

Efforts at reconciliation were also directed towards compensating those who had suffered during the riots. An announcement was made pertaining to the disbursement of claims to be considered on an ex-gratia basis. Compensation would be given to persons who had sustained injuries as well as damage, thefts or destruction of property during the riots. All claims were to be directed to the Colonial Secretary before the end of February and anyone who was suspected or accused of a crime committed during the riots would not be compensated. Expressions of both sarcasm and praise from various community leaders in the colony ensued upon the government's announcement of the compensation scheme. Nazir Mallal told *The Straits Times* that the compensation scheme did not come as a surprise to many, given that the British had already revealed their plans to implement it at an earlier date. Thio Chan Bee, a nominated member of the Legislative Council, remarked that '[u]sually Government machinery works slowly, but in this instance it has worked fast.'[32] There was, however, the problem of determining the appropriate amount of compensation to be disbursed. A segment within the Singapore populace argued that they should be compensated

for 'pain' and 'suffering'. There were others who contended that inflationary rates should be factored into the compensation scheme, as the price of cars had risen rapidly since the riots. To address such ambiguities, a tribunal was established to consider all cases. In the meantime, the Social Welfare Department obtained updates and rendered financial assistance to more than 140 riot victims. The Singapore Municipal Commission followed suit by paying for the damages to property incurred by civil servants. One of the cases that had been brought to light was that of a European officer whose car had been damaged by rioters. He was compensated in accordance with guidelines provided by the government.[33]

A British political report observed that the British were slowly regaining the trust of Muslims in Singapore, partly due to the influence of Syed Ibrahim bin Omar Alsagoff and Dato Onn. Even so, Muslim elites demanded that victims of rioting, as well as Muslim women who had been widowed or whose husbands had been detained, be provided with monetary and other forms of aid by the government. The release of those innocent of the charges of rioting should also be expedited to dispel allegations of abuses of justice. Gimson and the Singapore Colonial Secretary assured the public that the government would protect the rights of the innocent.[34]

Challenges in reconciliation

The months that followed were devoted to contending with three key challenges which could either redeem or disrupt the colonial administration's efforts to reconcile different parties in both the local and the international arenas. The first ordeal was the establishment of an impartial tribunal to compensate various parties who had suffered from the loss of kin and property during the riots. To avoid mismanagement in that regard, the Colonial Office instructed Gimson to obtain and study several reports of tribunals that were conducted in the Gold Coast, Aden and Uganda.[35] Three distinguished persons, Sir Han Hoe Lim (a Medical Practitioner and a Member of the Executive Council), S. C. Leech (the General Manager of Boustead & Company) and L. Cresson (a local businessman who was well-known for his public service) were selected as members of the Tribunal Committee upon the invitation of the Singapore Colonial Secretary. The Tribunal was provided with the following terms of reference:

1 To inquire into any claims received from any person, other than a person who was a party or accessory to rioting, for compensation for injury (including in the case of fatal injury claims by dependants for compensation), damage, theft, or destruction of property arising directly out of riots in Singapore on the 11th and 12th December, 1950;
2 To assess in the case of damage to property the financial loss suffered in each case on the basis of value at the time of the loss and in the case of personal injuries appropriate compensation; and
3 To recommend to Government, in cases where the claimant shows that he or she has suffered or will suffer hardship, an amount to be paid ex-gratia from Government funds.[36]

Such terms of reference seemed ideal and achievable in theory, but they would prove altogether different in practice.

Recalling his role in considering hundreds of appeals for compensation, Richard Middleton-Smith asserted that the tribunal was unprejudiced in its disbursement of funds.[37] Such a claim exposes the problems of validity and reliability of oral sources. Perks and Thompson posit in their oft-cited essay on historical methodology that oral sources are particularly useful as they can assist in recovering 'neglected or silenced accounts of past experience, and as a way of challenging dominant histories, which underpin repressive attitudes and policy.' Yet, like all historical sources, oral histories are inevitably coloured by various factors, such as social class backgrounds, political affiliations, gender and the age of the interviewees. The time, place and techniques of interviewing pose another set of complexities that moulds the ways in which past events are reconstructed. Fraught with omissions, myths and inconsistencies, the purported facts derived from oral testimonies do not always correspond to historical realities.[38] That being the case, the task of an historian is thus to interrogate and expose mistaken representations of the past embedded in oral accounts by cross-examining them with alternative sources in order to arrive, as close as possible, at historical truths.

A close examination of the documents relating to the inner mechanics of the tribunal demystifies the rhetoric of impartiality which Middleton-Smith had asserted. In actual fact, the eventual ex-gratia payments were governed by political considerations and bias on the part of the Tribunal Committee. For example, full payment was made for all claims that had been submitted by the Dutch Consulate. The tribunal reported that, although the application in respect to the damages incurred by the Dutch Consulate was not supported by sufficient evidence, 'in this case, *diplomatic courtesy would apply* [italics mine].' Similar applications by other foreign government agencies were, however, rejected on the grounds that they had presented their claims simultaneously to insurance agencies.[39] Partiality was also displayed towards relatives of Europeans and Eurasians who were injured or killed during the riots. All applications for compensation from civilians belonging to these two ethnic groups were approved and widows of servicemen were endowed with pension and monetary awards ranging from $10,000 to $20,000.

It was different in the case of Asians. Only the dependents of 27-year-old Indian Police Inspector A. Ratnasingham, who was killed near the Joo Chiat police station during an attempt to save the life of a Dutch girl, were compensated with a sum of $2,280 and a pension.[40] The claims of the dependents of five Chinese men who died during the riots were categorically rejected. This was contended by a member of the Tribunal Committee. He was overruled by two other members, who were provided with evidence from coroner's reports that the five deceased men had died of bullet wounds. It was thus assumed that the five men were rioters who confronted the military. The tribunal report was also silent about applications from dependents of Malays who were killed during the riots, as they were generally perceived as perpetrators of violence and thus undeserving of compensation. An amount of $93,000 was handed out to the dependents of seven

persons who were killed, $28,491.50 for 29 persons who were injured, $16,774 for damage to personal property and $71,995.57 for the 116 vehicles which were wrecked by the rioters. The total amount of money disbursed was $210,261.07.[41] Fully aware of biases inherent within the compensation process, the government ensured that the full details of the tribunal report were never made public. The Singapore Colonial Secretary proclaimed that it was 'not considered to be in the public interest' for the report to be published verbatim.[42]

The second diplomatic challenge with which the British were confronted was that of Maria Hertogh's domicile. British officials in the Colonial and Foreign Offices were particularly anxious that poor supervision of the domicile issue would further destabilise ties with the Netherlands and the wider Muslim world. Concurring with the advice of the Muslim Advisory Board, Gimson admonished officials in Whitehall to leave the final decision to Maria Hertogh, that is, to either reside with her family in the Netherlands or to be repatriated to Singapore in the custody of Che Aminah. Public opinion in Singapore, according to Gimson, 'would be very strongly opposed to any attempt to force the child back to Singapore against her will whatever the Courts might decide on the point of law'.[43] Whitehall officials were unsure of the implications arising from Gimson's suggestion. A British diplomat was dispatched to convince politicians in the Netherlands to support the proposition that Maria Hertogh be given the prerogative to decide on her preferred domicile pending the appeal case in the Singapore High Court. The strategy failed. Having signed a bond of $7,500 on the undertaking that Maria Hertogh would be promptly sent back to Singapore during the appeal hearing in March, the Dutch authorities displayed much reluctance, as the Roman Catholic lobby in the country would not agree to any form of friendly negotiations with Muslims.[44]

It is pertinent to note that such deep-seated animosities did not reflect the overall views of Dutch society. In fact, several Dutch personalities had gone to the extent of advocating Maria Hertogh's repatriation to Malaya. Three Dutch-Muslim organisations, namely, the Association of Islamic Students, the Moslem Mission in Holland and the Islam Union, made a public declaration that Maria Hertogh's repatriation to Malaya would remedy the distrust that had developed among Muslim leaders towards the Netherlands. Several other newspapers in the Netherlands reported on the difficulties encountered by the girl in adjusting to the European way of life.[45]

The problem of language further complicated the already complex state of affairs. Nurtured and cared for by Che Aminah from an early age, Maria Hertogh was only fluent in the Malay language. The Muslim Advisory Board sought to address such linguistic barriers by nominating a senior member of the organisation to conduct the interview with Maria Hertogh. The British, however, foresaw the danger of being accused of siding with Muslims. It was anticipated that the Dutch in turn would request that a Roman Catholic representative be present during the interview, and this would provide the basis for protests by Muslims throughout Malaya. After much deliberation, a well-respected Pakistani Chargé d'Affaires who was conversant in both the English and Malay languages was

selected to conduct the interview with Maria Hertogh. He would be accompanied by a Dutch interpreter. An unofficial Catholic representative was allowed to attend and the press was to be denied access to the interview. Yet by August 1951, the Singapore Supreme Court rejected Mansoor Adabi's appeal against the annulment of his marriage, and granted Maria Hertogh's parents full custody of their child. The scheduled interview with Maria Hertogh was called off. In a blatant attempt to cushion the impact of the legal verdict upon Muslim public opinion, Gimson suggested that a study scholarship be awarded to Mansoor Adabi. Higham argued against this suggestion for it would be perceived by Muslims as 'hush money'.[46] The idea was subsequently dropped.

The third challenge to the colonial state's attempt at reconciliation was to be found in the residual grievances arising from comments made by several local Anglophone and European leaders. Malays in Malaya were offended by Dato Onn's critique of their innate tendency to act in a rash manner, as seen from the riots. 'Not only the administration', Dato Onn remarked, 'but 80 per cent of Singapore residents lost confidence in us because of the action of a comparative few.' UMNO members were also advised to steer clear of destructive acts, which would disrupt the notable efforts of Malays in governmental agencies. The peace and freedom of the country must be upheld.[47] Reflecting upon the incident, Tengku Abdul Rahman highlighted that it marked one of his open disagreements with Dato Onn. Muslim and non-Muslim elites in Singapore and Malaya voiced their fundamental dissent with Dato Onn's negative portrayal of Malays. A joint statement by the Singapore Muslim League, the Hindu Board, the Malayan Chinese Association (MCA) and the Straits Chinese British Association (SCBA) stated that it was erroneous to place the entire blame upon all members of the Malay community for the wrongdoings of opportunists and irresponsible persons in the course of the riots. In actuality, a majority of Malays in Singapore had displayed courage in sheltering Europeans and Eurasians who may otherwise have been mauled by the rioters.[48]

Almost a month later, another disturbing comment was made by the Chairman of the Singapore Chamber of Commerce. A. F. Taylor told *The Straits Times* that the British should act swiftly and ruthlessly in dealing with those who sought to take the law into their own hands. Only then could the possibility of another outbreak of violence be prevented. The British abstained from siding with either of the contending parties. This policy of inaction provided non-state organisations with crucial space for activism and social change. The Hindu Association, for example, formed an inter-communal body to consider aid to innocent persons tried after the December riots. The body also aided in the process of fostering harmony and goodwill between Muslims and non-Muslims in Singapore, whose relations had been undermined by the riots.[49]

In an attempt to further rectify the relationship between Muslims and the colonial state, the British acquiesced to their religious demands and paid tribute to the contribution of the Muslim community in the development of Singapore and Malaya. The Municipal Commission assented to various requests by both Muslim and non-Muslim civil servants to be relieved from performing tasks that were

contrary to their religious beliefs. Such a shift in policy stemmed from the demands of a nurse who applied for an exemption from family planning campaigns. The nurse argued that the campaigns were in opposition to her religious beliefs. This period also saw the expansion of the 18-member Muslim Advisory Board through the incorporation of three prominent personalities: Mahmood bin Abdul Wahab (a former Police Inspector), Syed Abdullah bin Yahya (the President of the Singapore Arab Union) and Haji Jubir Haji Amin (a committee member of *Jamiyah*).[50]

During the launch of the first comprehensive Malay Arts and Crafts Exhibition, Malcolm MacDonald capitalised upon the opportune moment to argue against the 'completely mistaken theory that Malays were an inferior people who needed special protection in their own country'. Rather, Malays had been as successful as the Indians and the Chinese in the economic and artistic spheres. Another area in which Malays had excelled was in the field of politics and governance. Malcolm MacDonald cited the names of several Malay politicians who had gained the respect of all communities in Malaya.[51] To a great extent, Malcolm MacDonald's portrayal of Malays destabilises Edward Said's essentialist notions that the British and the West in general had consistently upheld denigrating representations of the Orient in the post-war era.[52] Conversely, in an age of decolonisation, the Orient had in many instances been depicted as an equal – if not the dominant – partner in an East–West relationship.

The martyr and the prophet of Islam

The date 16 October 1951 was a day of tragedy for Pakistanis and Muslims around the world. The Prime Minister of Pakistan, Liaquat Ali Khan, was shot twice by a gunman whilst addressing a crowd at Rawalpindi. The murder of a man who held the title of *Quaid-i Millat* (the Leader of the Nation) was viewed by Muslims in Southeast Asia, especially those of Indian origins, as a tragic and shattering event. Liaquat had played a crucial role in the Maria Hertogh controversy through his public declaration that the marriage of a 13-year-old girl was valid from the perspective of Islam, with or without the consent of her non-Muslim parents.[53] His sudden demise was followed by the closing of all shops and offices in Singapore that were owned by Indian Muslims. A mass rally, attended by more than 800 persons, was held at the *Jamiyah* building, with speeches denouncing the assassin. Letters from several Muslim organisations in Singapore were also sent to Karachi expressing a deep sense of sorrow and condolences for Liaquat, who was regarded as a *shahid* (or martyr) for having died in the war against extremism. At the Sultan Mosque, prayers for the deceased were read for three days on end, and food was distributed to the poor and orphans. As many would have thought, the assassination of the 56-year-old Prime Minister provided a pretext for a public show of British commitment to the protection of, and concern for, the Muslims of Singapore. The Union Jack was flown at half-mast at Government House as a symbol of public mourning. Gimson seized upon the catastrophic incident to be reconciled with Muslims in the colony, by attending a mass meeting at the

Geylang Stadium, which was attended by 1,200 Muslim representatives from local organisations. During his speech, the Singapore Governor expressed his commiseration on the loss of a great Muslim leader. 'The cause of freedom and of liberty has lost one of its staunchest supporters, and the British Commonwealth of Nations a strong supporter of the tradition for which it stands.'[54]

Muslim leaders in Singapore were generally appeased by the Governor's increasing sensitivity towards issues involving the Muslim community. Their positive feelings towards the colonial regime were cemented by the lifting of restrictions on the celebration of the *Maulidul Rasul* (Prophet Muhammad's Birthday) despite the ongoing Malayan Emergency. On 12 and 13 December, shops and business firms owned by Muslims were closed as many had spent their days in the mosques reciting the Quran and giving alms to the needy. A mass meeting led by Ahmad Ibrahim was held at the *Madrasah* Aljunied Islamic School. Attended by more than 500 children from 18 religious schools, the event saw the presence of Christian priests and members of the IRO, such as Dr H. B. Amstutz, who were invited to deliver goodwill speeches. Amstutz stressed that the citizens of Singapore were 'facing a new way of life; an ideology which does not know God. We must come closer together to establish in the hearts of our people the worship of God.'[55] Less than two weeks later, the ideology of ungodliness which Amstutz had shunned emerged in the form of a film entitled *David and Bathsheba* which triggered another cycle of protest.

Opening in Singapore on Christmas Day, *David and Bathsheba* was based on the Old Testament depiction of King David, laced with fictional elements. It was screened at all local cinemas, one of which was the famous Alhambra Theatre at Beach Road. Some 40,000 tickets were sold in just the first week after its release, setting a new record for the highest ticket sales since the end of Second World War. Although controversial, the film had been scrutinised and approved by the Federation Cinematographic Appeal Committee, which consisted of representatives from the Muslim, Christian and other major religious faiths in the colony. But Muslims in Singapore were displeased by selected scenes in the film. They contended that a prophet of Islam had been wrongly portrayed as hedonistic and susceptible to sexual overtures. Three days after the screening of the film, Ahmad Ibrahim told the *Melayu Raya* newspaper that a beloved prophet of Islam had been depicted as a tyrant. This was in opposition to the teachings of the Quran which states 'that the Prophet Daud (David) is a man of justice and there were in him all forms of goodness till the traits of arrogance in oneself would be cleansed through repentance and the seeking of forgiveness'. He called for the film to be banned because it was nothing less than an insult to Islam and Muslims.[56] The Muslim Advisory Board and *Jamiyah* sided with Ahmad Ibrahim by sending a petition demanding the immediate withdrawal of the film. Several other Muslim leaders and organisations threatened to boycott businesses and organise protest meetings. The main line of objection voiced by all dissenters was that it was against Quranic precepts to make visual representations of David and to claim that he had committed adultery.[57] British intelligence observed that a small yet politically oriented group of South Indian Muslims were the chief instigators of the protest. They were

described as being 'guided by the heart not the head' and had planned to use the film as a catalyst to re-ignite Muslim interest in the Maria Hertogh case.[58]

Europeans, Eurasians and adherents of the Christian faith in Singapore and Malaya displayed diverse reactions towards the protests. A Christian priest in Malacca disapproved of the screening of the film and all posters which sought to promote it because so much emphasis had been placed upon David's failings. This was a divergence from the true spirit of Christianity. Catholics in Singapore took on a less aggressive stance and recommended that some parts of the film be censored to avoid further controversies. Although the atmosphere of fear and suspicion was gradually subsiding, Europeans and Eurasians in Singapore were reported to be perturbed by Muslim protests against the film. In an initial response to the protests and statements made by Christian leaders, the Cathay Organisation stated that the film had prior approval from the Censorship Board and that none of its Malay viewers have expressed disapproval since its release.[59]

The British were thus caught in a dilemma over whether to uphold their liberal policies relating to films or to submit to the conservative demands of their Muslim subjects. Muslim leaders in the Federation were called upon by the British to endorse the continued screening of the film and to persuade Muslims to abandon their protests. Quite the contrary, the *Qalam* magazine singled out Dato Onn as a 'lackey' in cahoots with the British in regard to the film and other issues concerning Islam. The President of UMNO was described as '*mengutamakan maslahat dirinya sahaja* (concerned with his own well-being).' *Qalam* went on to highlight British tactlessness at a time when they needed the help of Muslims in the fight against the spread of Communism.[60]

To circumvent an escalation of emotions surrounding the issue, Jack Evans of the Singapore Film Censorship Board announced that the film had been withdrawn from all cinemas. According to the manager of the Alhambra Theatre, the film would have been featured for another week had it not been for the withdrawal imposed by the government. *David and Bathsheba* was subsequently sent for review by the Film Appeals Board.[61] Rajabali Jumabhoy and Ahmad Ibrahim were nominated to represent the Muslims of Singapore. In Malaya, a well-respected nationalist and literary figure, Zainal Abidin bin Ahmad (Za'ba), was appointed to the review committee. Za'ba too was troubled by the negative ways in which the Prophet David had been portrayed in the film.[62] By mid-January, the film, along with all forms of advertising related to it, was banned in Singapore. Such developments within the Malay-Muslim community in Singapore dominated the Governors' Conference in Malaya which was held in the same month. Along with other pertinent issues, the Singapore Governor mentioned that:

> During the last year, the susceptibilities of the Muslim population in Singapore have shown to be very easily aroused. Representation have been made in the local press on a number of incidents, perhaps some of them minor in themselves but which have definitely shown that the Muslim community is very sensitive to its position in Singapore. The latest agitation about the 'David and Bathsheba' film is a case in point and I am sure that the

> wise counsels of the more responsible members of the Muslim Advisory Board would have been followed if there had not been below the surface this readiness to take offence at any imagined slight to Islam. I think the position must be carefully watched and it is imperative to have someone like Che Abu Bakar who can exercise an important influence both in any position in the Public Relations Dept and as Secretary of the Muslim Advisory Board. . . . There appears to be necessity therefore to restore the confidence of the Malay community in Singapore and in approaching Muslim problems this attitude must be borne in mind.[63]

British officials who were present at the meeting were convinced that the roots of Muslim rage lay in the fact that they were a socially marginalised and economically depressed community. A resolution was passed to the effect that a Secretariat of Malay Affairs consisting of three officials – two Britons and one Malay – would be formed. The Secretariat's main task was to provide more well-grounded insights and solutions to the challenges faced by Malays.[64]

As the ire of Singapore Muslims subsided, the Sultan of Kedah decided to ban the screening and sale of *David and Bathsheba* on the grounds that it would ferment a religious controversy in his state. In May 1952, Muslims in Singapore launched another minor protest over the publication of a picture of Prophet Muhammad in the May issue of *Newsweek*. Fully aware that Muslims were opposed to all pictorial representations of Muhammad, the British ensured that the magazine was kept out of circulation in the colony. Another pre-emptive measure that was undertaken was to delimit the activities of Roman Catholic missionaries on the island. Selected pastors and priests who came to Malaya after having been deported from China were advised to concentrate their energies on converting the Chinese. This was to 'avoid offending Muslim susceptibilities among Malay, Indian and Indonesian elements in Singapore. We (the British) have had experience in the Hertogh riots in the inflammatory possibilities which exist between Muslim and Roman Catholics and therefore Muslim religious leaders must be given no cause to allege that proselytising of Muslims is being given.'[65] The Muslim community was also pleased by the release of six prominent leaders who had been arrested for the parts they played in the riots of December 1950, and the commuting of those sentenced to death. Trust and respect for the colonial leadership was further enhanced when Muslims were permitted to organise island-wide celebrations of the Prophet Muhammad's birthday in November 1952.[66]

The return to normalcy

In conclusion, the *David and Bathsheba* episode was the final hurdle which the British had to overcome in their efforts to reconcile the colonial state with various parties in the aftermath of the Maria Hertogh riots. By the end of 1952, a shift in attitudes among Muslims in Singapore was palpable, yet it would be an exaggeration to assert that the entrenched negative feelings against the British as

rulers had been fully assuaged. Realising the futility of engaging in violent acts to achieve their objectives, Muslim trade union activists, journalists, teachers, writers and middle-class professionals became deeply involved in party politics to advance their religious and social interests. At a meeting held within *Jamiyah*'s premises, Singapore UMNO (or SUMNO) was formalised as a section of UMNO's branch in Johore. More than fifty Malays and Arabs registered themselves as members of the new political party. Syed Ahmad bin Mohammed Alsagoff was elected its first President. Ahmad Ibrahim and Darus Shariff, two personalities who had played crucial roles and had gained widespread popularity in the midst of the Maria Hertogh controversy, were elected Vice-President and Secretary respectively. The party's membership increased steadily in the months that followed, with a strong following among Malay servicemen in the Navy, the Army and the Police Force.

In July 1953, a motion was passed by the UMNO Central Branch in Kuala Lumpur for SUMNO to participate in the Singapore elections in alliance with the Singapore branch of the Malayan Chinese Association (MCA).[67] Three months later, SUMNO members publicised an appeal for unity between Malays and Indonesians in Singapore and declared 'that the time has arrived for the two races to expel the imperialists'.[68] Similarly in Malaya, religious leaders and *ulama* convened country-wide meetings to discuss the implications of the Maria Hertogh controversy on Islamic laws and the rights of Muslims as colonial subjects. A resolution was passed calling for the formation of a Muslim political organisation to be led by those who shared the aspiration of establishing an independent Muslim government. These sessions culminated in the creation of *Persatuan Islam Sa-Malaya* (the Pan-Malayan Islamic Association) which, from the 1970s onwards, became commonly known as *Parti Islam Se-Malaysia* (PAS).

Having won the custody of Maria Hertogh to her parents and been awarded full compensation for losses incurred during the riots, the Dutch saw themselves as victors in the entire controversy. Friendly interactions between Europeans and Eurasians and Malays in particular and Muslims in general returned to normal towards the end of 1953. In his highly acclaimed book, *Voices of Asia*, the famous American novelist and travel-writer, James A. Michener, wrote about a Eurasian man who, although beaten nearly to death during the riots, had subsequently decided 'to turn my back upon Christianity, confess my sins and become a complete Malay Muslim. I believe now that my future lies with the Malays.'[69] This is a somewhat embellished account of Muslim–Christian relations in Singapore, but there is a grain of truth in it. Although marriages between Catholics and Muslims were regarded as socially taboo, such nuptial ties were not uncommon in the ensuing years.[70]

7 Reform

Having identified the structural weaknesses of the colonial state during the riots, the British were set firmly upon the path of reform. New policies relating to the police, education, marriage and adoption were enacted, as the preceding schemes and institutional arrangements were seen as having contributed to the recourse to protest and violence by some Muslims in Singapore. Beyond making some major changes in the existing legal and administrative structures, the underlying goal was to ensure a tighter grip on the colonised people while enhancing the political control of the colonial bureaucracy. Still, the colonial state's ability to initiate reforms was not left unchallenged, for it was faced with indifference, disdain and the counter-propositions of local elites in Singapore. Tensions and anxieties, as well as resistance, were manifested by all parties involved. The British maintained their ascendancy at several crucial junctures, but there were occasions when compromises had to be made in favour of the views and social activism of the elites and resistance from the masses.

The police force

David M. Anderson and David Killingray aptly argue that 'as the most visible symbol of colonial rule, in daily contact with the population and enforcing codes of law that upheld colonial authority, the colonial policeman – be he a European officer or a local native recruit – stood at the cutting edge of colonial rule.'[1] It is of no surprise, therefore, that the colonial administration's reformist strategy was focused largely upon the police force, which had proved ineffective during the Maria Hertogh riots. In the realm of manpower, improvements were instituted within the existing leadership structure, the esprit de corps within the rank and file, the training of existing staff, the revision of salary scales and the introduction of new welfare benefits. Intensive recruitment programmes were also devised to attract young men from different ethnic and educational backgrounds into the police force. The second area of reform was focused on the decentralisation of the organisation to ensure a smooth internal and external coordination between the police and other sectors of the colonial administration. Whilst the British introduced new weaponry and other forms of technologies to deal more swiftly with riots and disturbances in the colony, significant strides were concurrently

made in re-establishing the trust between the police and the public by reshaping the repressive image of the organisation into one that was more accommodative and friendly.

The first step undertaken by the British was to assign Duncan W. Macintosh, the Hong Kong Commissioner of Police, to conduct a preliminary study of the Singapore police force. His main tasks were to identify the fault lines and suggest ways to develop a more robust police force, so as to ensure stricter enforcement of the colony's laws. Proposals that were regarded as 'urgent' in nature would be promptly implemented whilst awaiting the findings of the Commission of Enquiry. At the same time, feedback was solicited from experienced Police Chiefs, such as Stanley Grisewood Taylor, an ex-Inspector General of Police in Bengal. This was followed by the re-appointment of sixty Harbour Board Auxiliary Police lieutenants, who had been scheduled for discharge at the end of the year. Appointed for a period of six months, the police lieutenants were to come to the aid of the regular police pending the recruitment of new constables into the force.[2]

One of the predicaments faced by the colonial state was the overwhelming number of Malay constables in the Singapore police force. Highlighting this issue in a report submitted on 27 December 1950, Macintosh argued that the organisation had placed itself in a precarious position by having relied upon the services of Malays, who were a minority ethnic group within a predominantly Chinese colony. This was compounded by the fact that the Malay police officers had shown much reluctance in dissuading and arresting their co-religionists during the Maria Hertogh riots. A three-pronged solution was proposed to overcome this quandary. The first step was to entice able-bodied men from the Chinese, Eurasian, European and Indian communities in Singapore into becoming integral components of the force through modified terms of employment. The Gurkha contingent should be expanded, and salary scales as well as other welfare benefits should be radically revised. Such changes, according to Macintosh, would lure the Chinese in particular to consider the police force as a lifetime career.[3]

Campaigning in parallel to these proposed reforms, members of the Singapore Chinese Chamber of Commerce appealed to the Chinese in Malaya to consider the police force as a viable employment option. An announcement was also made in regard to the formation of a Volunteer Special Constabulary Emergency Squad. No age limit was imposed, though all appointments were temporary. Selected candidates would undergo basic police training to assist the Singapore Police Force in the course of its ongoing reforms. The Straits Chinese British Association (or SCBA), in turn, nominated Ong Tiang Wee (the President of the SCBA) and Goh Hood Kiat (a Municipal Commissioner and a member of the SCBA) to serve on the newly established Police Advisory Committee. Consisting of six members from the various ethnic groups of Singapore, the committee's essential task was to provide in-depth advice on recruitment matters and strategies to mend the declining public confidence in the police force.[4] According to the *Annual Report of the Singapore Police Force, 1951*, the advice given by members of the Police Advisory Committee proved to be 'of great assistance to the Commissioner'.[5] Nonetheless, the drive to entice Chinese in Singapore to join

the police force was a resounding failure, as many were unreceptive to the recruitment campaigns.

A chief underlying cause of such apathetic attitudes is to be found in the stereotypical assumptions about the Chinese which determined British policies towards them. Perceiving the Chinese as a people who were motivated by personal greed and financial gain, the British erroneously assumed that the Chinese could be easily enticed into the police fraternity by improvements in terms of wages and other financial benefits. Meanwhile, the culture of fear that prevailed during the communist insurgency provided the crucial reason why the Chinese refused to join the police force. The Chinese feared that, if they openly collaborated with the British, their relatives and friends in Malaya and China could be attacked by the communists.[6] There was also the practical consideration that, should the communists emerge victorious in their protracted battle with the British, anyone who had sided with the colonial regime would be placed in a difficult position. The fourth reason was a result of Chinese history. The painful experiences of wars, rebellions and corrupt policing in China gave rise to a tradition of detesting all forms of soldiering and policing among the Chinese in Singapore and Malaya.[7]

At the close of the year 1950, the CID declared its move to decentralise investigatory operations by establishing sub-branches in the Northern and Southern areas of Singapore. In allaying public suspicions of the government, a CID spokesman emphasised that decentralisation was not a consequence of the Maria Hertogh riots; plans had been laid out several months prior to the riots in line with developments in England.[8] This was not the whole truth of the matter. The plans for decentralisation, as shown in Chapters 3 and 4, corresponded with the rigorous surveillance, the mobilisation of extra troops in Malaya and the arrests of suspected protagonists in the aftermath of the riots. The Gurkha contingent also gained thirty highly trained new constables. This was the first of several batches of Gurkha officers to arrive in Singapore in the months that followed, and it was projected that the number of constables in the Gurkha contingent was to reach a grand total of 500 men. Riot drills involving the Gurkha troops, as well as Malay policemen and the military, were staged in public for three days as part of the police force's efforts to regain the confidence of the masses and to demonstrate the formidable nature of the newly reformed force. Termed 'Operation Popper', the drills exhibited the use of tear gas and improved communications in the event of mass violence.[9]

A paramount issue facing the Singapore Governor and the Secretary of State for the Colonies during this period was the appointment of a competent successor to R. C. B. Wiltshire. The new Commissioner of Police, Gimson wrote in a telegram to James Griffiths, should manifest a commanding personality. He should also demonstrate an ability to restore the shattered morale of the police force. Another important trait would be the ability to put an end to the factionalism which had resulted in the breakdown of internal coordination during the riots. Gimson opined that the most suitable person for such a Herculean task was John P. Pennefather-Evans. Born in 1894, Pennefather-Evans served in the Malayan Police for more than 27 years. He was appointed Commissioner of Police in Hong Kong in 1941

and was instrumental in drafting plans for the re-organisation of the force there. Spending much of the period of Japanese occupation in the Stanley Internment Camp, upon the Allied victory he returned to Britain for early retirement due to poor health. For Gimson, Pennefather-Evans had the advantage of being able to speak the Chinese and Malay dialects which would enable him not only to communicate with the men within the rank and file, but also to enhance the effectiveness of the police in assessing the threats arising from communist propaganda.[10] Pennefather-Evans was thus appointed Commissioner of Police on a one-year contract which began in February 1951.

The new Commissioner's first initiative upon assuming his post was to visit every police division in Singapore. Discussions were held with inspectors and staff sergeants in the force to uncover their grievances and restore morale, which was then at its lowest ebb. Similar sessions with lower-ranking constables were organised – with members of the Muslim Advisory Board present – to assuage widespread perceptions among the Muslim policemen that they had transgressed religious limits by arresting fellow Muslims during and in the aftermath of the riots. Aside from emphasising that justice was above colour, race or religion, Pennefather-Evans stressed that the substandard performance of the police during the riots was a thing of the past.[11]

In spite of such efforts to raise the morale of the police force, the testimony of senior police officers before the Commission of Enquiry had revived the public's lack of confidence in the police. After assessing the ability of the police to deal with civil disorders, insurance companies doubled their premiums.[12] The situation was made worse by press cynicism concerning the reforms made within the police force. The *Singapore Free Press*, for example, highlighted the need for 'a gentler Police' to counter-balance the 'tough' image which had been propounded for many decades. Not only had public confidence in the police declined since the outbreak of the riots, ignorance with regards to the organisation and functions of the police force pervaded the psyche of the masses. According to the *Singapore Free Press*, the man in the street had an image of police officers who accepted bribes and performed poorly during the riots. 'The ordinary man must realize that to hold important information concerning peace-breakers indirectly jeopardizes his own safety. On the other hand, the police should make an effort to establish more cordial relations with the people whose servants they are.'[13] Several other newspapers highlighted the pervasive public opinion that Malay policemen would not be effective in dealing with criminal activities within a Chinese-dominated colony. The police force was deemed to be fraught with defectors who supported the rioters, a 'Sissy Force' worthy of ridicule.[14]

Morale within the police force in Singapore was said to have 'improved superficially at any rate' due to such criticisms. Hearing rumours of the imminent desertion and radicalisation of Malay policemen, leaders of the UMNO party called for the institutionalisation of religious classes to inculcate Islamic values such as loyalty and commitment within the police force. The colonial administration was ambivalent about the idea, fearing accusations of outright favouritism towards a particular religious group in the force, and the suggestion was shelved.

Nor did the British respond to the plethora of critiques launched by the press. Much energy and resources were, however, devoted towards enhancing the image of the police, improving coordination and providing equipment needed to quell any future riots.[15]

At a meeting with the British Cabinet, General John Harding noted that even though the establishment of Joint Operations Rooms at Fort Canning and other districts in Singapore had improved communication and coordination between the Military, the Police and the Civil Administration, there was still much to be done to augment the low morale of military and police officers who had been prisoners of war during the Japanese Occupation.[16] New anti-riot technologies were thus introduced to offset the problems of morale and recruitment and to enhance the efficiency of the Singapore police force. Most potent among these was the 'triple-chaser'. As the name suggests, these enhanced special tear gas grenades were designed to split open in mid-air and spread gas over a wide area with the sole purpose of inflicting terror and confusion upon rioters. Thirty-six gas guns, 800 tear gas shells, 200 smoke bombs and 250 smoke grenades for training purposes were purchased with the approval of the Singapore Legislative Council. The total cost of all equipment purchases since the outbreak of the Maria Hertogh riots amounted to $76,000. The frequency of anti-riot drills was increased to a bi-monthly basis with the joint cooperation of the military.[17]

Substantial improvements in salaries, accommodation and promotional prospects were announced in July 1951 as a tribute to the sacrifices and dedication shown by serving police officers. Writing in the *Qalam* magazine, a retired Malay Police Superintendent highlighted the continued importance of the Malay police in curbing the rise of criminal activities in the colony. He explained that the Malay policemen should maintain their fullest loyalty to the colonial state, on the condition that they must not be coerced into complying with tasks that were contrary to their religious beliefs. Abdul Wahab contended that the Maria Hertogh riots were a clear case in which the Malay policemen had to deal with acts of violence by hooligans who were not defenders of Islam.[18] Publicity was also given to several officers who were awarded medals for their bravery during the riots. One of the recipients was Corporal Wan Ishak bin Abdullah from the Army Depot Police who was presented with a King's Commission for courage shown during the first day of the riots. Wan Ishak had rescued Mrs Crowley, Mrs Taylor and her small son from a mob that was attacking them. He escorted the three Europeans to a safe place and, with aid of the military, transported the injured persons to a police station.[19]

Mention has been made of the Leach Report's diagnoses of the factors that led to the riots, the censure of several senior police offices and the reforms that were proposed. To the extent that the report had exposed the failure of the Malay police officers in the fulfilment of their duties, it was stated that 'this failure should not be given a significance beyond the context of the specific situation in which it occurred. They (the Malay police) possess sterling qualities and are capable of fulfilling their duty in an emergency, provided that they are contented and are properly led, as their brothers in the Army have shown.'[20] During an interview

two days after the publication of the Leach Report, Pennefather-Evans stressed that the police force would soon put its crisis-stricken past behind it, provided that the plans which he had laid down were implemented thoroughly. 'I want to make my organisation more of a police force and less of a military one – a force for the ordinary policing of the city. I want to get an educated police force – that is a force of men to look after and protect the public in the same way as the police in other democratic countries.' The Commissioner also hoped to train his men along the standards that had been defined in England, that is, to be capable of handling dangerous situations without resorting to violence.[21] A new cohort of Malay Assistant Superintendents would also be recruited to ensure the development of a more co-ordinated and cohesive organisation. The lack of educational qualifications among Malays was a major challenge, both within the rank and file in particular, and in the colony in general. As a short-term measure, several serving officers would be promoted to the required positions and were expected to perform their duties in accordance with the standards demanded of them.[22]

A final judgement on the Maria Hertogh Appeal case was delivered on 30 August 1951, in an atmosphere of unexpected calmness. With the exception of several incidents of verbal criticisms of the court's decision, there were no other signs of protest from the Malay police officers. The morale of the police rank and file was said to have progressed, albeit at a very slow pace.[23] A number of reforms that had been set in motion were continually publicised to enhance public confidence in the police force. The Commissioner of Police was provided with a secretary from the Inspectorate to assist him in the realm of coordination and management. A Deputy Commissioner was appointed, along with several other Assistant Commissioners who were stationed at major branches around the island. They were endowed with authority over one or two police stations and were tasked to conduct regular meetings with the men under their charge, in order to ensure closer cooperation. Direct telephone lines were installed to correct the problems of poor radio communications and poor coordination of road blocks, as seen during the December riots. The riot drill manual was revised and complemented by an intensive training programme for all officers on the island. A Riot Squad similar to that of the Shanghai Riot Unit which quelled more than 1,000 riots without firing a shot was established in mid-September. The founder of the Shanghai Riot Unit, Lieutenant Colonel W. E. Fairbairn, was seconded to Singapore for three months to train the squad.[24]

Police officers were made to patrol on foot at all times to counter-balance policing through the use of force with that of consent. Wired fences at police stations were also kept open at night so as to convey a more 'open' and less 'self-protective' outlook. The use of police cars was restricted to emergency operations, and light armoured cars would only be deployed in the face of widespread riots. Obsolete equipment, which had resulted in high numbers of police and civilian casualties during the riots, were replaced with enhanced technologies, such as police helmets 'one and a half pounds lighter than the Standard Army steel helmets' and D. N. Smoke Shells, more commonly known as 'vomit gas'.[25] The police developed closer links with the Public Relations

Department to ensure an immediate enlistment of the services of highly qualified civil government officials, trained in methods of restoring public confidence in times of crisis.[26]

Reforms in the area of welfare and personnel management included changes in working hours, as the gruelling 12-hour shift was reduced to 8 hours and a weekly rest day became compulsory for all police officers. Educational programmes, refresher and post-training courses were provided for officers up for promotion. Selected senior officers were sent to the joint Federation/Singapore Police College in Malaya to pursue advanced training courses. Pensions and gratuities were swiftly disbursed to dependents of officers who were killed during the riots and in other acts of violence thereafter. Bonuses were also paid out to officers who displayed especially good performance and courage in the line of duty. The 200-man Volunteer Special Constabulary, which proved crucial in aiding the police force, saw a dramatic increase in personnel. According to Victor Seah, who was a Lieutenant in the Volunteer Special Constabulary during that period, recruits 'came from all walks of life – fishermen, taxi drivers, shopkeepers, salesmen, white-collar workers, technicians, teachers, corporate managers and professionals from private as well as the public sectors.'[27] It was forecasted that the strength of the Constabulary would reach a grand total of 1,500 personnel by the end of the year.

Police effectiveness in the clearing of small-scale riots and other forms of unlawful assemblies improved significantly, due in part to the reforms that had been implemented. 'I don't wish to say by any means that all is well,' Gimson wrote in a letter to John Higham, 'but the prospects are brighter, possibly, than they have been for some time.'[28] The prospects for recruiting Chinese and members of other ethnic groups into the force were, however, not at all bright. Thus far, recruitment strategies had been focused upon attracting Chinese recruits who were residing in Singapore and the neighbouring islands, and not those in mainland Malaya. Hence, only six Chinese, two Indians and two Eurasians were selected out of a small number who responded to the allure of higher wages and other benefits.[29]

Pennefather-Evans' contract with the Singapore Police Force was coming to a close at the end of February 1952. Although he had served in the colony for merely a year, the Commissioner's popularity was growing rapidly among members of the police fraternity. Personal charm, the ability to foster a sense of camaraderie and the will to implement radical reforms within the once fragmented organisation were the key factors which could well have accounted for his popularity. Even so, the civil administration was apprehensive about lengthening Pennefather-Evans' contract with the police force. The implicit reasons for such a contradiction in policy are shrouded in mystery due to the paucity of historical sources. One possible reason might be that there was a need to appoint a new Commissioner in conjunction with the arrival of the new Governor, John F. Nicoll. The other possible explanation lay in the politics of the Commission of Enquiry. There was too much of a typical policeman's attitude in Pennefather-Evans to the extent that he had defended men under his charge who were accused by civil officials of an

outright failure in the performance of their basic duties. Such an outlook on the part of Pennefather-Evans may have been objectionable to Gimson and other higher-ranking officials within the civil administration.

The selection of a credible successor was far more complex than expected. Two candidates – Nigel Morris and W. D. Robinson – were considered. General Gerald Templer, the successor to Henry Gurney as High Commissioner of Malaya, had a low opinion of Robinson, whom he labelled as 'uncooperative'. Similarly, Wilfred Blythe was not particularly impressed with Robinson's disposition as a would-be Commissioner. The newly appointed Singapore Governor, John Nicoll, expressed his reservations towards 'stop-gap appointments', preferring instead a long-term appointment for the prospective Commissioner. In Nicoll's view, Morris had an edge over Robinson, due to the respect and trust which he had established with senior officers in the police force. Although Morris was 'still under a cloud' due to the riots and the findings of the Leach report, Nicoll's personal discussions with influential personalities from Singapore and Malaya revealed that a majority were either neutral or in support of Morris's appointment as Commissioner.[30] Dato Tan Cheng Lock, the President of the Malayan Chinese Association, went so far as to send a telegram to the Secretary of State for the Colonies in London in support of Morris' appointment. Tan Cheng Lock wrote that Morris was the

> right person for the post being well liked and respected by all in Singapore and [the] Federation. Besides he is one of the few remaining experienced officers who understand problems of this country particularly the Chinese. Singapore has fared well under his direction during the Emergency. Consider [the] continuity of leadership highly desirable at this crucial stage. I am expressing [the] considered opinion of [the] majority here.[31]

Upon the formal declaration of Morris' appointment, the Colonial Office dispatched an official to investigate the reactions of the Malayan police officers who were then attending a course at Ryton-on-Dunsmore in Warwickshire. A majority expressed their strong support for Nigel Morris.[32]

In the interim, more plans were devised to recruit non-English-speaking Chinese into the police force. The intensive efforts to entice English-educated Chinese into the organisation had failed tremendously to the point that, by the end of 1952, there were only 294 Chinese out of a force of 3,350 policemen. By virtue of their higher educational background, Chinese officers were mostly inspectors, with only a handful in the lower ranks. For that reason, existing staff were trained in the Chinese, Malay and English languages to avoid alienation, miscommunication and lack of coordination within the police force upon the entry of a new batch of non-English-speaking officers. A representative of the Singapore Police Force was sent to Hong Kong to study the conduct of courses and the establishment of a training unit for Chinese recruits.[33]

After two years of active campaigning, Muslim police officers were elated when the Police Muslim Benevolent Association saw the light of day in 1953. Established as an independent body, the Association's funds amounted to $17,923

due to a whole array of charitable efforts that had been carried out in previous years. Its sole objective was to advance the religious and cultural interests of the Muslim members of the police force. Another positive development was the appointment of two Muslim religious teachers who conducted classes to deter policemen from the lure of vice. Lectures were conducted twice daily in two police divisions.[34]

While the Maria Hertogh riots had tarnished the image of the police force, reforms in the aftermath proved crucial in the restoration and enhancement of its ability to handle the routine violence which characterised the colony. The budget allocation for the Police Force escalated rapidly from $9.3 million in 1950 to $25.5 million in 1952, the highest total budget when compared with other British colonies in the same period.[35] The Anti-Corruption Branch, which was deemed to be inefficient in addressing the problem of bribery in the police force, was replaced by the Corrupt Practices Investigation Bureau (CPIB) in 1952. This may partly explain the relatively small increase in manpower, as officers found guilty of corruption were punished more severely than in earlier years.[36] Consecutively, the Riot Squad became the Police Reserve Unit, and its functions were expanded to include the control of labour unrest and violence perpetrated by secret societies.[37]

Rapid improvements and modernisation were sustained along similar lines in the following years. Recounting his role within the reform process, Nigel Morris held the view that the aftermath of the riots saw the breaking down of perceptual barriers between the police and Muslims in Singapore, a religious grouping with had not been treated with empathy by the colonial administration.[38] Indeed, for more than four years after December 1950, Singapore remained free from major outbreaks of violence. The next serious riot was on 13 May 1954, when Chinese students took to the streets to protest the National Service Ordinance. The rioters were effectively crushed by scores of policemen who were criticised for their indiscriminate employment of 'excessive force'.[39]

Education

Despite the fact that the police force underwent swift and comprehensive reforms shortly after the quelling of the riots, reforms in education, marriage and adoption policies experienced a time lag. A compelling but not necessarily conclusive factor in this delay was the British administration's urgent need to restore its authority and the public order which had been seriously undermined by the riots. To realise these goals, the maintenance of law and order by an enhanced policing body was given the highest priority. The British were also cognisant that the reform of marriage, educational and adoption policies necessitated the support of local elites on the island, who were already embittered by earlier reform efforts. Gradualism was thus seen as the best course of action.

'Education', as Ranajit Guha explains, 'always ranked high on the agenda of colonialism'.[40] The need to enhance the colonial educational agenda became all the more pertinent during the Maria Hertogh controversy. Relatively neglected for many years, the full-time *madrasahs* (or Islamic religious schools) and other



Figure 7.1 Opening ceremony of the Muslim College at Klang, Selangor

Source: Author's Family Collection

Malay-medium schools were perceived by the British and Muslim elites in Singapore as potential hotbeds of dissent, traditionalism, communalism and fanaticism. Aljunied and Dayang have argued that the years following the Second World War saw an increase in the enrolment of Muslim children in Malay-medium schools and *madrasahs* in Singapore. The lack of governmental regulation in determining the choices of educational instruction for Malays constituted one of the many factors which could account for such developments. Prior to the Japanese Occupation of Malaya, the colonial state had maintained a *laissez faire* policy whereby private schools – *madrasahs* being one type among an array of religious and vernacular-based schools – were given the prerogative to formally establish themselves as educational institutions and to enrol as many students as they deemed fit. Private schools gradually became entrenched as the preferred educational institutions in the years following the Japanese surrender, especially for most parents who held particular religious, communal and/or ideological inclinations. There was then a widespread and unfounded anxiety among Muslim parents with regards to the growing influence of Christian missionary activities within English-based schools. Sensational press reports that portrayed the Maria Hertogh case as a battle between Islam and Christianity worsened the situation by heightening Muslim suspicion of all efforts by the British to initiate improvements in the education of Muslims in Singapore. Due to these factors, *madrasahs* and other Malay-language schools in Singapore flourished in a socio-historical context in which the English language and education were perceived as a colonising and missionising tool of the *kafirun* (or unbelievers).[41]

By the end of 1951, it was reported that the total number of students in the six full-time *madrasahs* in Singapore had increased to 947 from 700 in the previous year. Even the modernist-oriented Malay Women's Welfare Association expressed its concern about the lack of available places for Muslim girls in religious schools.[42] In point of fact, the *madrasahs* avoided all forms of collaboration with the British and the Anglophone Muslim elites. Owned by philanthropists from Hadrami and Javanese families, namely, the Wak Tanjong, Alsagoff, Aljunied, Alkaff and Bamadhaj families, the administrators of the *madrasahs* regarded these institutions as the last surviving bastions of Islamic knowledge and as bulwarks against the corrupting influences of modernisation. A large number of the teachers were ex-students of the *madrasahs*, with only a handful who were educated in universities in the Middle East. In the name of defending the Islamic tradition and morality, administrators and teachers of the *madrasahs* were adverse to the incorporation of non-religious subjects such as English and Mathematics, and devoted much of their curriculum to the study of the Quran, the *Hadith* (the Islamic Traditions), the Arabic language, Islamic History and Jurisprudence.

Fully aware of such prevailing attitudes, Maulana Abdul Aleem Siddiqui, Ahmad Ibrahim and Syed Ibrahim Alsagoff resolved that the enhancement of Islamic knowledge in the full-time *madrasahs* and the Malay-medium schools must begin with the creation of a whole new generation of qualified teachers, well-equipped with both religious and secular knowledge, as well as a deep awareness of the challenges confronting Muslims. Discussions on the concept of

a proposed 'Muslim College', whose sole objective would be to train religious teachers with modern pedagogical methods, had begun as early as 1948. Yet, owing to the lack of funds and support from the British government, the idea of a Muslim College did not go beyond piles of written proposals. The British monitored all meetings related to the establishment of the college, and declined repeated appeals for financial support, as they saw no real benefits in sponsoring an institution for teachers who would render their services to private schools, rather than for the schools that had been built by the colonial state.[43] However, this stance shifted following the Maria Hertogh riots.

During a Legislative Council meeting on 22 May 1951, Ahmad Ibrahim highlighted the danger of the 'insidious propaganda and wiles of anti-religious and anti-moral movements' which had planted the seeds of dissension between various communities in Singapore. He stressed the importance of fostering moral and spiritual values in schools, particularly in Malay schools, to arrest such negative influences, and reiterated previous appeals for governmental support for the establishment of a Muslim College which would train teachers to impart such values to their students. The Singapore Colonial Secretary responded by stating that Ahmad 'has raised the rather thorny point of religious education in our schools in Singapore'. The matter was subsequently brought to the attention of educational advisers in the colony.[44]

Due largely to the relentless activism of *Jamiyah* and the support received from Muslim and non-Muslim communities in Singapore and Malaya for the establishment of the Muslim College, the British authorities in Singapore and Malaya were finally swayed in that direction. Several members of the Malay royal families of the states of the Malay Peninsula as well as various grassroots organisations pledged their financial aid, along with other facilities. The Johore Government donated a generous sum of $10,000 to the Muslim College Fund. Other state governments responded with pledges amounting to tens of thousands of dollars.[45] When interviewed by the local press on the establishment of a Muslim College, Reverend Robert Greer of the Presbyterian Church in Singapore mentioned that religious dignitaries of Islam 'occupy a very important place in the life of the Muslim community. It should accordingly be the duty of that community to establish every facility for the provision of sound education and training for its future religious leaders.' Likewise, Reverend Tracey K. Jones of Wesley Church asserted that the 'principle of freedom of thought and freedom of operation in higher education is a sound Christian principle. A Christian should recognize this for all forms of higher education.'[46] In July 1953, the Federation of Malay Students' Organisation carried out a survey of the conditions in religious schools throughout Malaya and Singapore. Information was collected on the welfare, curriculum, pedagogical methods, facilities and financial challenges faced by these schools. The report and the recommendations of the survey were discussed and later submitted to the government for consideration.

Newspapers such as *The Straits Times* also helped to accelerate the change in governmental mindset by highlighting the benefits of British cooperation with

Muslim organisations in Singapore to remedy the weaknesses of Islamic education on the island. An editorial comment published on 12 February 1953 mentioned that a majority of Muslim teachers in Singapore and Malaya had obtained Islamic knowledge in Egypt, Mecca or Pakistan. Although these teachers had played a satisfactory role in the existing religious schools, more could be achieved if a similar institution of religious education was established in Malaya.[47] Admittedly, the British too had developed deep concerns about the inflow of revivalist and militant ideologies, brought into Malaya and Singapore by students who had pursued religious studies in South Asia and the Middle East. As these threats became more apparent, the establishment of a Muslim College was seen as a necessity, as it could assist in preventing the growth of anti-colonial ideologies within the ranks of Muslim teachers and educators.

By the end of 1953, efforts towards enhancing the dismal state of full-time *madrasahs* in Singapore and the establishment of the Muslim College had gained the full support of the British. At a Legislative Council meeting on 15 December 1953, Ahmad Ibrahim emphasised that *madrasahs* should be treated on the same footing as the other vernacular schools and, therefore, provided with the necessary financial support. D. McLellan (the acting Director of Education) responded, saying, 'I see no reason why we should not include Arabic schools in this Scheme.'[48] This was a stark departure from the official position that was held just two years earlier. The British had also decided that the Muslim College was to be built at Klang in Selangor. The college started its first classes on 24 February 1955, with a batch of 55 students from Singapore and various states in Malaya. It was officially opened by the Sultan of Selangor, Sir Hishamuddin al-Haj Alam Shah, on 8 April 1955. Along with the establishment of the Islamic Studies Department in the University of Malaya in 1959, there was a marked improvement in the educational standards of the *madrasahs*, and their curriculum was substantially modified to meet the entry requirements of the Muslim College.[49]

This period also witnessed the unsuccessful introduction of the 'Reorientation Plan', which was to have taken effect on 1 January 1952. The plan was part of a wider reform of communal educational institutions in Singapore and Malaya, which the British had come to regard as avenues for the spread of Communist and anti-colonialist ideologies. Under this plan, the colonial administration hoped to equip students in the 60 Malay-medium schools with a knowledge of the English language and other necessary skills. This would enable Malays to cope with the rapid changes of the post-war years, to embrace the policies churned out by the ruling regime and to open up a wider range of career choices to help them compete with other ethnic groups on the island. Had the plan been implemented, Malay and English would have been employed as the languages of instruction during the first three years of schooling. All subjects with the exception of Malay Literature would have been taught in English from the fourth to seventh year of primary education to better prepare Malay students for secondary school education and to qualify them for the Cambridge School Certificate.[50]

Though well intended, the Reorientation Plan was introduced at an inopportune time, in the midst of the development of a culture of suspicion between Muslims and the colonial regime and the reassertion of the Malay culture and identity. In an attempt to gain public approval for the plan, the Singapore Governor announced that the idea was supported by Malay teachers and a large number of Malay parents. Malay elites in Singapore were not at all convinced, and they protested against what was seen as a sinister plot by the British to dilute the attachment of Malays to Islam and the *adat* (the local custom). Representatives of a dozen Malay organisations maintained that the plan had been conceived without prior consultation. The most vehement resistance came from members of the Singapore Malay Teachers' Union, who were alarmed by their decreasing relevance in the colony and inevitable unemployment in the years to come.

Though a minority, several prominent Malays in Singapore were initially supportive of the plan. An example of such counter-reaction was the Singapore Malay Union, which criticised Malays for their narrow approach towards education. The organisation campaigned for the importance of learning the English language. Pamphlets were distributed to villages and *kampongs* in the colony and the neighbouring islands, urging Malays to work towards the attainment of university degrees, both locally and in England.[51] But such efforts were cut short by the mounting resistance to the government's proposal, which became particularly acute upon the formation of the Malay Education Council (or MEC, known in Malay as *Majlis Pelajaran Melayu*, or MPM). Consisting of fifty-two Malay/Muslim organisations in Singapore, the MEC organised petitions and public protests against the plan. Their efforts received the full support of all leading Malay newspapers and organisations on the island. The British were left with no alternative but to relent. Towards the end of 1955, the Reorientation Plan was abandoned to make way for the enhancement of Malay language education on the island.[52]

Marriage policies

The movement towards instituting a proper system of recording and arbitration of marital conflicts among Muslims in the colony was pursued by the Muslim Advisory Board in Singapore some few years prior to the December 1950 riots. However, the Board encountered a lukewarm response from the colonial authorities, who did not recognise the crucial need to address high rates of divorce, unreported marriages and the seeking of services from unqualified *kathis*. This apathy on the part of the British resulted in a delay in the appointment of a *mufti* (a Muslim scholar who interprets the laws of Islam) whose expertise could have been sought in order to reduce the occurrences of marriages like that of Maria Hertogh and Mansoor Adabi.

Appealing to the Singapore Governor for the latter's endorsement of a scheduled executive meeting to decide on a suitable candidate for the post of *mufti*, Ahmad Ibrahim explained that the task of the *mufti* would be to organise regular meetings with all *kathis* in Singapore so as to impart the knowledge of secular as

well as Islamic laws. The *mufti* would also ensure that the *kathis* were guided by clear procedures and ethical codes:

> If they violate any of the codes, they will be punished and asked to resign. Unfortunately, we do not have a Department in Singapore. If we have such organisation here, I am sure in future there will be no misunderstanding and confusion about what is Muslim law and what is the Colony law, and the laws of the country and the Muslim laws will be properly classified once and for all, so that we shall have peace and prosperity again and forever.[53]

Gimson thanked Ahmad for his insights, but was reticent about the appointment of a *mufti*.

Members of the Muslim Advisory Board were not deterred by the Governor's indecisiveness. Rather, in a private meeting with Gimson, Syed Ibrahim Alsagoff (the Chairman of the Muslim Advisory Board) seized upon the opportunity to highlight the high prevalence of child marriages between Malays and Chinese girls in the colony, insinuating the similar nature of the case of the marriage of Maria Hertogh to Mansoor Adabi. Chinese girls would, 'to the consternation of their parents or guardians, appear before a *kathi* and state they had been converted to Islam. Thereupon the *kathi*, without further ado, would perform the marriage ceremony.' Relating his discussion with Islamic scholars at the Al-Azhar University in Cairo, Syed Ibrahim Alsagoff informed the Governor of Islamic edicts (or *fatwa*) that had been issued in other British colonies to curb the practice of child marriages. *Muftis* in these colonies had admonished *kathis* to disregard the conversion of non-Muslim girls and their marriage to Muslim men, unless the girls had obtained prior approval from their parents.[54]

Details of the conversation between Gimson and Syed Ibrahim Alsagoff were made known to officials in London. Almost immediately, officials at the Colonial Office and the Commonwealth Relations Office were instructed to conduct a thorough search for documents pointing towards the implementation of the above-mentioned *fatwa*, but none were found. Realising the positive implications of the *fatwa* upon British relations with Muslim subjects within Britain's post-war empire, John Higham at the Colonial Office sought the assistance of the Foreign Office to conduct a meticulous search of their archives. He was later informed by legal advisers of the futility of the search.[55]

By early February 1951, debates regarding the marriage patterns of Muslims in Singapore were gaining momentum. One of the key issues that attracted media attention was the high rate of divorce among Malays. Female Muslim activists, such as Che Zaharah, agitated for the establishment of a *Syariah* (Islamic Law) Court, which was to be endowed with the power to deter men from divorcing their wives without valid reasons and to curtail the widespread practise of secretly keeping 'another wife in town or in some other part of the Colony'.[56] Unsympathetic to the radical activism of the Singapore Malay Women's Welfare Association led by Che Zaharah, male Muslim elites in Singapore sought to re-assert their place as the rightful leaders of the Muslim community by forming a sub-committee to assess and

suggest necessary changes to the existing legislation pertaining to Muslim marriages. A month later, the issues of divorce and uncontrolled marriages were brought before to the Singapore Legislative Council. Hindu and Sikh members of the Council expressed their full support for a review of the laws pertaining to marriage, as the challenges faced by Muslims were analogous to those in their own communities. A British member of the Council, John Laycock, reiterated the need to implement the defunct Marriage Age Bill, which would invalidate all marriages of children under the age of sixteen. Unsurprisingly, Muslims in the colony expressed their outright opposition to the bill. Laycock later stated that Muslims would be excluded from the operation of the bill. Such a hasty retraction was met with criticism from other members of the Council. Balwant Singh, for example, questioned: 'Why was the bill, when first presented to the Council, not excluded [*sic*] Muslims from its provisions? Why did Laycock do this a month after? Could it be that the storm of Muslim protest that lashed at this Bill gave the veteran politician an inkling of what was going to happen in the coming Legislative Council Elections?'[57]

After two months of heated exchanges, representatives of the Hindu and Sikh communities took exception to the provisions of the Laycock Bill. The British acquiesced to the demands of the minority communities in a conscious attempt to limit public opposition towards the colonial state. Such a non-interventionist policy in the realms of Muslim, Hindu and Sikh affairs, however, mutated into intervention by other means, that is, by amending the Civil Marriage Ordinance (No. 9, 1940) and the Christian Marriage Ordinance (No. 10 of 1940). Speaking in defence of the proposed changes during the second reading of the bill, John Laycock argued that he had hoped

> that a measure of this kind would be regarded as a social reform, which indeed it truly is, and that it would be treated on that basis only, instead of involving religious discussion or argument at all. Unfortunately that was not possible. I then indicated that I was prepared to move an exemption excluding Muslims from the operation of the Bill. . . . Now, I cannot see why the law which is good in England is not good here in Singapore. I regard it solely as a measure of social reform.[58]

Laycock's Eurocentric statements led to widespread resistance from Christian groups in the colony, which were particularly incensed by the high-handed implementation of the reforms. A representative of Protestant Bishops in Singapore disputed Laycock's rationale and, as an alternative, propounded an environmentally deterministic theory, which stated that children reach maturity at an earlier age in Asia than in Europe. Hence, the age limit of 16 to be imposed by the bill was impractical for an Asian colony. Another Christian priest urged Laycock to withdraw the bill, claiming that Christians saw the bill as an infringement of their religious rights. The priest went on to state that the bill would 'militate against' one of the most organised religious groups on the island.

Coming in between the two opposing parties, Legislative Councillor P. F. de Souza highlighted that the negative reactions from leaders of various Christian

churches in the colony had resulted from the lack of empathy on the part of the colonial state. The objection against the bill, de Souza added,

> is not against the age limit imposed. The objection is that if this age limit is approved, it would be hardship on the few cases that crop up now and then, particularly of girls being pregnant under age of sixteen, who would perhaps, not be in a position to marry during their pregnancy, and would consequently bring into the world bastard children. . . . Now pastors of the various denominations are experienced in worldly affairs, and they weigh up the pros and cons of every particular case and sometimes do come to the conclusion that marriage would be the lesser of two evils. . . . I move to an amendment that this Bill be referred to a Select Committee with quorum of three.[59]

P. F. de Souza's proposal was seconded by Nazir Mallal and agreed upon by the council. The Select Committee would consist of three members of the Legislative Council. Feedback would be sought from the Right Reverend Bishop of Singapore on behalf of the Anglican Church, the Right Reverend Bishop of Malacca on behalf of the Catholic Church, and the Right Reverend Archer of the Methodist Church.

Still, protests from Christians in Singapore remained unabated. The Right Reverend Henry Wolfe Baines (the Anglican Bishop of Singapore) sent an open letter to John Laycock stating that representatives of the various Christian churches had not been appropriately consulted on the amendments to the Christian Marriage Ordinance and that the Christian populace was offended by Laycock's disregard of their views. Catholics in Singapore, Bishop Baines contended, were unwilling to acquiesce to governmental policies limiting the age of marriage to 16 years:

> Let me repeat … I am uncertain whether the method you have chosen will by itself achieve the reform you have had the courage to promote and in which I hope all right-minded citizens will follow you. I regret the fact that your failure to consult the Christian leaders has put them in an ambiguous position.[60]

Such criticism persisted for three months; however, in the end, the amendments to the Civil Marriage and Christian Marriage Ordinances were pushed through, despite the united opposition of the heads of churches in Singapore.

The Select Committee report, which was presented at the Legislative Council meeting in December 1951, highlighted the resistance from members of the Christian minority community in Singapore. P. F. de Souza, who was a member of the Select Committee, supported the amendment to the Civil Marriage Ordinance, but recorded his disagreement with the enactment of a revised Christian Marriage Ordinance. He criticised the government for contradicting its policy of religious freedom. Several churches in Singapore joined in the fray by stating that such hasty reforms by the government would not change the current

practices and that education should precede legislation. British officials organised meetings with Christian leaders in the colony to provide more detailed explanations of the rationale behind the revision of the Christian Marriage Ordinance, but none of the Christian leaders were won over. Nevertheless, the Legislative Council passed the Laycock Marriage Bill on 17 June 1952.[61] The episode is an example of how the British enactment of several policies in a colonial setting had the *reverse* effect of that intended, dispossessing minorities in Southeast Asia of their religious rights. In placing their ideas of progress and social reform over and above the preservation of traditional religious rights and customs, the colonial state's decision to override the objections of Christian religious leaders indicates that no one was immune to its reformist zeal.

It is pertinent to note, however, that such interventionist measures towards the Christian marital policies were an exceptional case, in which the British ignored all forms of resistance from the minority community and imposed policies in accordance with their intended motives. In contrast to the case of the Laycock Marriage Bill, a policy of non-interference was sustained in the case of Muslim efforts to establish a *Syariah* court. As it happens, Muslims in Singapore were radically divided on the issue of the roles and functions of the proposed court. Much time, for example, was devoted to debating the choice of which school of Islamic jurisprudence would serve as the ideological basis of the court.[62] A majority among the Arabs and Malays subscribed to the *Shafi'i* school and maintained strong reservations about the acceptability of the *Hanafi* interpretation of marriage laws that was followed by most Indian Muslims in Singapore. Prominent Muslim leaders belonging to the Shi'ite sect were in support of the practice of *muta'ah* (or temporary marriage), which was deemed by the Sunni majority as fornication, adultery and prostitution garbed in Islamic rhetoric.[63] Divisions were even more disparate between the defenders of traditionalist interpretations of laws, as opposed to those who subscribed to a modernist mode of Islamic thought. A case in point was that of the members and sympathisers of the Malay Women's Welfare Association, who, although fully aware of the likely reactions of religious elites in Singapore and Malaya, stepped up their demands for legislation that would curb the practice of polygamy among Muslims in Singapore and Malaya. Muslim men were chided for their dishonourable practice of adopting non-Muslim daughters for the purposes of marriage. Male religious leaders responded indignantly to what seemed to them to be an irreligious stance and an ineffective way of reforming an established marital culture. In their eyes, Che Zaharah and her supporters had succumbed to Western influences and were corrupting Islam from within. Muslim women, they argued, should know their appropriate place in society. They should refrain from all forms of political activity and agitation for social reform, which was essentially a male domain.[64]

However, the reforms proposed by the female activists were supported by the statistics of the day. Research on the marital culture among Muslims in Singapore revealed that there were 2,091 reported marriages and 1,119 divorces from January till September 1952. Some 127 couples remarried after having been counselled by

local *kathis*. For that reason, the Muslim Advisory Board accepted Che Zaharah's demand for the amendment of the Mahomedan Marriage Ordinance, which had been enacted in 1936. Although the term 'Mahomedan' had been substituted with 'Muslim' by a bill that was passed some months earlier, it took the colonial administration more than nine months to publicise a newly revised ordinance that would address the high divorce rates among Muslims.[65] Beyond the expectations of the British, such a delay brought Muslim organisations in Singapore to a consensus on the functions and roles of the *Syariah* court. Singapore UMNO and the Singapore Malay Union sent several letters to William Goode, the newly appointed Singapore Colonial Secretary, to hasten the establishment of the court. The *Persatuan Melayu Semenanjung* in turn called for a conference of all Malay organisations in Singapore to deliberate on the establishment of the *Syariah* court and other matters pertaining to Muslim affairs. By November 1953, a detailed blueprint of the *Syariah* Court and the management of the *kathis* had been forwarded to the government by the Muslim Advisory Board.[66]

It is significant that the *kathis* later became highly professionalised and regulated as a result of Muslim activism and the support that came from the colonial state. In 1957, the scope of the Muslim Ordinance was widened to include the registration of marriage, the regulation of the *Syariah* Court, property matters and other miscellaneous issues. The Ordinance also transferred a variety of issues pertaining to Muslim personal laws to the jurisdiction of the *Syariah* Court.[67] The *Syariah* Court was instituted in the following year and its effectiveness in addressing the problems of polygamy and divorce was far-reaching. The divorce rate among Muslims in Singapore plunged from 51.7% in 1957 to 17.5% in 1964. The practice of uncontrolled marriages was also successfully constrained through legislation.[68] By an unintended irony of history, such rapid socio-religious transformations and positive developments within the Muslim community in Singapore had their roots in the Maria Hertogh controversy and the riots that had torn families apart.

Child adoption

The practice of unregulated adoption in Singapore was yet another predicament with which the British government had to contend in the aftermath of the Maria Hertogh riots. In reforming laws governing this aspect of the lives of the common people, the British did not encounter any form of overt resistance from local organisations and leading personalities on the island. This was due partly to the growing awareness of exploitative acts and excesses committed by parents who had adopted children on an informal basis. To be sure, the Maria Hertogh appeal proceedings had exposed the problem of forcible conversions of adopted children and of marriages below the age of puberty. Aside from conducting country-wide studies and surveys on adoption practises, the colonial administration organised multiple meetings and discussions with the leaders of the Chinese, Muslim, Sikh and Hindu communities before passing new laws and implementing new policies.

Judith Djamour notes that the institution of adoption was particularly widespread among Malays and Chinese in Singapore in the 1950s. Although most

Malays belonged to the Shafi'i school of Islamic jurisprudence, they did not necessarily conform to certain stipulated Islamic laws and rulings. This was clearly seen in the practice of declaring their adopted children as natural children and the placing of the name of the adoptive father along with the state-registered name of the child. For example, instead of naming an adopted Chinese child Fatimah binte Abdullah (meaning 'Fatimah, daughter of Abdullah the servant of Allah and not a particular person', which was in line with Shafi'ite teachings), most Malays would name the child Fatimah binte Kassim, if Kassim was the name of the adoptive father. Another divergence from Shafi'ite teachings was that the adoption process was often informal, relying upon mutual trust between the parties involved and lacking proper documentation. A child would be handed over to adoptive parents in exchange for a bottle of wine, a fowl and a nominal cash gift ranging from $5 to $50.[69]

A survey conducted by the Social Welfare Department in the first half of 1951 revealed that sixty children had been given up for adoption. By the end of the year, the numbers had peaked to over 200. These figures were based on formal registrations of adoptions by parents who had sought the assistance of the department. The number of cases of undeclared adoption must have been much larger. It was found that a large proportion of the parents who had given up their children for adoption had done so because of economic hardship arising from having more than nine or ten children. Some informants mentioned that their decision was contingent upon the advice of fortune-tellers who predicted that a given child would bring misfortune to the natural parents. Connected to this was the stigma of having too many daughters. The Chinese tended to view girls as a burden and a waste of financial resources because they would contribute more to their husbands' families upon marriage. Above all, the breakdown of families due to separation or the death of a parent contributed to the high adoption rates in Singapore. Prospective adoptive parents of children from crisis-stricken families revealed that they were more inclined to undergo the legal adoption process rather than to adopt by traditional methods. Even so, ignorance of the legal procedures for adoption and the avenues for obtaining information on family planning was pervasive.[70]

In October 1952, a new bill was passed to repeal the Adoption of Children Ordinance of 1939. The sole objective of the bill, according to the Colonial Secretary, was to reform 'the law of adoption of children with the modern view that an adopted child should be placed on an equal footing as a natural and lawful child, and also to remove the present restrictions contained in the Principal Ordinance on adoption.'[71] In reality, it aimed to alleviate the recurrence of high numbers of undeclared adoptions and other related problems. The main clauses of the bill included, first, the lifting of earlier restrictions which permitted only British subjects to be adopted, and only persons domiciled in the colony to be legal adopters. Instead, any person in the colony was allowed to adopt if he or she fulfilled several of the criteria laid down in the Ordinance. Second, all adopted children were to be regarded as the lawful children of the adopter. The rights of the natural parents would dissolve immediately upon the handing over of the child to the adopters. This was in line with the Adoption Act of 1950 in the United

Kingdom. Third, the dates of birth and names of adopted children were to be registered in the Adopted Children Register.[72] This bill was subsequently publicised in local newspapers and other media, along with the legal procedures for adoption.

The *Annual Report of the State of Singapore of 1953* stated that there was an exponential increase in the number of persons filing adoption appeals through formal procedures. The Civil District Court dealt with 186 cases of adoption in 1953, triple the number of two years earlier. The Singapore High Court handled sixty-seven petitions from prospective adoptive parents in 1953, compared with only eleven petitions in 1951.[73] The increase in formal adoptions was, however, only a partial reflection of the social realities of the time. A majority among the Chinese, Muslim, Sikh and Hindu communities in Singapore were still resistant to the new adoption legislation, citing the cost of legal fees and the unwillingness to wait for long periods to obtain rights to the desired children. Others were averse to the idea of a new Birth Certificate that had the word 'Adopted' stamped on it. The newly amended Adoption Ordinance did not significantly limit the customary practices of adoption that characterised both the Muslim and non-Muslim communities. A key underlying reason for this failure was that informal adoption was not declared illegal.[74]

In restrospect

British strategies for reform in the aftermath of the Maria Hertogh riots were focused upon the police, education, marriage and adoption policies. Even though the police force as a whole underwent comprehensive changes, British efforts in recruiting the Chinese were defeated by the latter's refusal to take part in the policing of the colony. The colonial regime was also unsuccessful in achieving its goals in the area of educational reform because it had to accede to the demands of Muslims that Malay-language education be preserved, as opposed to switching to an English medium. The *madrasahs* were eventually provided with financial support, and the same held true for the Muslim College, which the British hoped could encourage changes in the texture of Islamic education in the colony and throughout Malaya. By contrast, the prospects were much brighter in the realm of marriage policies. High rates of child marriages, easy divorce and uncontrolled polygamy among Muslims were effectively reduced. The colonial state had also paved the way towards the establishment of the *Syariah* court. New ordinances were set in place to reduce the number of marriages of under-age Christians to persons of other faiths. The British were, however, unable to achieve significant reform of the established custom of informal adoption within the Malay, Chinese and Indian communities, even after the introduction of a new bill. All in all, through the symbiosis of reform and the four other strategies discussed in the preceding chapters, it can be argued that the British succeeded in redeeming their tarnished image and position in the years from 1950 to 1953, while limiting the wide-ranging ramifications of the riots and preventing similar outbreaks arising from racial and religious dissensions. Despite its setbacks and failures, the colonial state had turned the aftermath of the riots to their advantage.

Conclusion

The aftermath of violence

This book began by stressing the significance of the Maria Hertogh controversy in the history of modern Singapore and Malaysia. For the first time since the re-establishment of British colonial rule in post-war Southeast Asia, Malay-Muslims who were previously regarded as peaceful and loyal subjects of the Crown had taken it upon themselves to commit serious acts of aggression and murder against Europeans and Eurasians. The seeds of such rage had been germinated by the British failure to address the influence of radical ideas, the effects of socio-economic marginalisation, press sensationalisation of the legal controversy and the ineffectiveness of the police force which shaped the Singapore Muslim community's attitudes towards the colonial regime. Compounded by circumstances that led to the shooting of two Malay men, the colony witnessed the outbreak of one of the bloodiest in a series of acts of mass violence. Innocent lives were lost and large amounts of property fell in ruins. Although the riots were quelled within two days, the legitimacy of British rule was put into question.

With that in mind, I have sought to traverse beyond the uncovering of the contributing factors of the riots and the means by which they were suppressed, and to explore instead the lesser-known terrain of the various strategies which the British employed in the riots' aftermath. By framing the legal controversy against the background of a global climate of decolonisation, I have shown that resistance towards the British colonial administration remained intense following the quelling of the riots, and was manifested in various forms within the colonised society, as well as in the wider Muslim World and in Britain itself. Discord, tensions and anxieties characterised the interactions between colonial officials within Singapore and throughout the Empire. Even so, the British were quick to recognise the challenges and predicaments that lay before them, and sought to amend their embedded weaknesses.

It was the recognition of the need to reform, adapt and react swiftly to the crisis through a combination of proscriptions, surveillance, self-criticism, reconciliation and reforms that enabled the British to deal effectively with the changing conditions on the ground in the aftermath of the Maria Hertogh riots. Whilst *proscriptions* had the effect of keeping potential instigators of violence and other opportunists at bay, the British were able to anticipate and eventually deal with selected opposing elements through intense *surveillance*. By way of judicious *self-criticism*, the higher echelons of the colonial administration were shielded

from public scrutiny, which would otherwise have had an adverse impact upon the legitimacy of British colonial rule. Through *reconciliation*, the British colonial administration regained the trust of its subjects and diplomatic partners. *Reforms* that were initiated addressed the weaknesses of various aspects of the administration of Singapore. Underlying these five strategies were the crucial roles played by selected officials and politicians in London and the outlying colonies, who provided guidance, insights and expertise arising from their experience as servants of the Empire. The British had also gained the support of various personalities and organisations, which aided in the process of recovery and conciliation, as well as averting resistance in the aftermath of the riots. Without indigenous collaboration and mediation, the colonial regime certainly could not have remained firmly ensconced in Singapore, as it was in the outlying colonies.[1]

In the light of the above argument, it may be useful then to consider the short-term and long-term effectiveness of British strategies in the aftermath of the Maria Hertogh riots. Viewed from a short-term perspective, I concur with the proposition advanced by Theda Skocpol that even 'after great loss of legitimacy has occurred, a state can remain stable – and certainly invulnerable to internal mass-based revolts – especially if its coercive organisations remain coherent and effective.'[2] Due partly to the short-term effectiveness of British strategies in the aftermath of the riots, Muslims in Singapore were diverted from resorting to violence, and instead pursued their political interests through constitutional, discursive and passive means. For Karim Ghani and other activists who saw the futility of pursuing these various forms of resistance, 'strategic desertion' became a means of escaping the repressive policies of the British authorities to agitate unyieldingly for Malaya's independence. While the Singapore Police Force was transformed into a more efficient instrument of the state, various legal measures were introduced by the colonial administration to minimise the recurrence of child marriages between Muslim and Christian minorities on the island. No other major outbreaks of violence were reported from 1951 to 1954. Indeed, the British successfully redeemed their tarnished image and position, mitigated the wide-ranging ramifications of the riots and anticipated similar outbreaks arising from racial and religious tensions.

Nonetheless, Skocpol's argument loses its validity when applied over a longer time frame. Though no religious or racial riots occurred in the remaining years of the colonial era in Singapore after the Maria Hertogh incident, from 1954 onwards Singapore remained plagued with incidents of mass violence that were often connected with left-wing radicalism. The Chinese Middle School student riots, the Hock Lee Bus riots and the anti-National Service riots which broke out in the mid-1950s, to name a few, reflected not only the increased activism among opponents of colonialism, but also the debility of British strategies in annihilating the sustained and violent opposition from Communists, ultra-nationalists, fundamentalists, communalists and opportunists. Revisionist histories of the causes and the aftermaths of each of these riots are long overdue. A possible explanation for the persistent occurrence of such riots was the failure on the part of the British and Labour Front governments in dispersing various ethnic enclaves in Singapore which were hotbeds of radicalism, as had been seen during the Maria Hertogh riots.

Such a non-interventionist attitude towards reconfiguring the social geography of Singapore characterised the political strategy of the People's Action Party (or PAP) upon its electoral triumph in 1959. However, after being faced with an unprecedented plot by two Malay/Muslim underground organisations known as *Sunting* (BLOSSOM) and *Angkatan Revolusi Tentera Islam Singapura* (ARTIS, Revolutionary Movement of the Singapore Islamic Army) to topple the Singapore Government and the subsequent eruption of riots between Malays and Chinese in 1964 which claimed thirty-six lives, the PAP was compelled to abandon its previous stance.[3] From then on, the Housing Development Board (HDB) imposed quotas on the percentage of members of various ethnic groups residing in a given area.[4] Power bases were defused and ethnic enclaves were transformed into multi-racial constituencies, while riots were relegated to the past in Singapore. But that is not all. Lee Kuan Yew was deeply affected by the jury's decision to acquit four of his clients who were responsible for the murder of a Royal Air Force officer in the midst of the Maria Hertogh riots and other homicide trials that followed. Upon his election as Prime Minister of Singapore in 1959, Lee Kuan Yew sought to abolish the British jury system for all cases except murder. Ten years later, following heated debates, particularly between Lee Kuan Yew and David Marshall (a renowned lawyer and former Chief Minister of Singapore), the Criminal Procedure Code Act 1969 was amended. The British jury system in Singapore was brought to an end.[5]

More to the point, in the long run, the British policy of ensuring a slow progress towards independence for Malaya and Singapore was ironically lost at the hands of Malay activists and politicians, who seized upon the sensibilities of the masses. The years following the aftermath of the Maria Hertogh riots, as Joel Kahn rightly observed, marked 'the coming to maturity of modern Malay nationalism, the creation of a coherent narrative of the coming-to-nationhood of the Malay peoples and its "implanting" in the broader popular consciousness. . . .'[6] Although Tengku Abdul Rahman was despised by the British in favour of Dato Onn, the aftermath of the Maria Hertogh riots witnessed the Tengku's rise, as he capitalised on the campaign to appeal for persons who were sentenced to death. The same was true for the Malay radicals whose imprisonment and proscriptions upon the quelling of mass violence had expanded their influence and mass support. Following their release, a select few initiated a shift in political strategy and eventually become ardent supporters of UMNO to pursue their intended objective of accelerating the process of independence from within an influential party.[7] Indeed, it was the rapid growth of popular support, strategic alliances and the progressive dismantling of Communist as well as other leftist strongholds that provided the Tengku with the necessary political leverage to accelerate the country's progress towards independence. A mere seven years after the Maria Hertogh riots, and despite the initial plans of Whitehall officials, Malaya was no longer a part of the British Empire. Independence was declared in 1957 before the emergency ended and before Malaya had developed a multi-racial political outlook.[8]

But the drama did not end there. The new Prime Minister of Malaya played an instrumental role in the movement to incorporate Singapore – one of the last remaining British colonies in Asia – as a state within the new country of Malaysia

that was established in 1963. The merger experiment was, however, doomed from the onset. Dissensions between politicians on both sides of the causeway developed and soon went far beyond the possibility of resolution. In spite of appeals by Sir Harold Wilson to exercise restraint, the Tengku decided upon the separation of Singapore from its peninsular hinterland. On 9 August 1965, a new island city-state was born in Southeast Asia: the Republic of Singapore. Notwithstanding such political changes, the riots that broke out in December 1950 continues to haunt both Malaysia and Singapore, as a common thread that binds the discourse on race–religion relations and national security debates in the two countries.[9]

Above and beyond the politics of independence and the dismantling of colonial systems of governance in Singapore and Malaysia, the Maria Hertogh controversy was especially momentous for those who had been traumatised by the ordeal. Che Aminah returned to Trengganu a broken woman, regretting her decision to take Maria Hertogh to Singapore to ascertain her adoption status. Addicted to tobacco and mentally depressed, she died in 1976 without realising her hope of being reunited with the woman she once regarded as her own daughter. As for Maria Hertogh, she developed no real sense of attachment to her natural parents in the Netherlands and was unable to cope with the change in her social environment. A convenient yet perilous strategy to escape from her predicament was to marry a Dutch soldier, by whom she bore thirteen children. And yet, the spectres of the legal controversy and riots remained. Feeling dejected with her life and haunted by a disturbed childhood, she was accused of hatching a plan to murder her husband. Although a Dutch court acquitted her of all charges, that second major legal trial marked another crucial turning point in Maria Hertogh's life. In 1980, she finally divorced her husband and left her children to stay in Dallas in the United States. The last known account states that Maria Hertogh now works as a cleaner and regards herself as neither a Muslim nor a Christian.[10]

In hindsight, the years that succeeded the riots were a powerful impetus for the creation of postcolonial states and have continually shaped the destiny of individuals who shouldered a series of unintended ramifications. It is more than timely, therefore, for scholars of the human sciences to go beyond the study of the causes that led to mass violence in a given context, and examine the strategies employed by ruling regimes in the aftermath, the resistance they encountered and the impact of these processes upon the local and global communities. Clearly, the proscriptions of Muslim groups, the surveillance of civil society organisations and their publications, the proliferation of radical collectives and the tracing of funds to global philanthropists in the aftermath of the Maria Hertogh controversy mirror the contemporary challenges faced by states and societies the world over in the aftermath of 9/11. If there is one lesson to be learned from this study of the past that will help us cope with our troubled times – a critical moment in history where the promise of peace, freedom, liberty and the protection of human rights has been lost at the expense of innocent lives and mass destruction – it is to be found in the ways in which individuals and non-governmental organisations aided in the process of rebuilding societies crippled by deep-seated social problems and torn asunder by violence.

Appendix 1

Statement by members of the inter-religious organisation and other representatives of religious bodies, 22nd February, 1951

The world today is an arena in which forces of good and evil are locked in deadly combat.

We summon men of goodwill to return to faithful obedience of God and His Law. In obedience to the Law of God is the only foundation of freedom and the only protection from slavery.

We summon men of goodwill to set men free from every force that enslaves them; from ignorance and falsehood, from want and exploitation, from persecution and oppression.

We repudiate and condemn mob violence and political terror.

We deeply deplore the recent sad happenings in Singapore, and express our profound sorrow and grief at the sufferings caused.

We offer our condolence to the relations and friends of those who were killed in those days and sympathise with those who were injured or sustained any loss.

We will henceforth do all in our power to promote understanding and reconciliation between those at variance.

We pledge ourselves and summon all people of goodwill to further the cause of men living in freedom and righteousness according to the Law of God; and to this end to advance and protect those natural and lawful associations in which men grow to freedom and justice – the family, the school, the occupational association or union, the nation, the religious community.

We pray God to awaken in the hearts of all men the spirit of Forgiveness and Love.

Signed by:

Maulana Abdul Aleem Siddiqui (Muslim)	Ahmad bin Mohamed Ibrahim (Muslim)
Dato Syed Ahmad Alsagoff (Muslim)	Syed Abdullah bin Yahya (Muslim)
M. Tahir Mahmood (Muslim)	Syed Abubakar bin Taha Alsagoff (Muslim)
Syed Ibrahim Alsagoff (Chairman, M.A.B.)	Haji Ali bin Haji Said Salleh (Chief *Kathi*)
Ang Gim Tong (Buddhist)	Venerable Sek Hong Choon (Buddhist)
A. K. Isaac (Methodist)	Paul B. Means (Methodist)
Herbert H. Peterson (Methodist)	H. B. Amstutz (Methodist)
M. Bonamy (Vicar General Catholic Church)	Rev. I. J. Aloysius (Catholic)
Henry, Lord Bishop of Singapore (Anglican)	R. K. S. Adams (Anglican)
Professor T. H. Silcock (Society of Friends)	Rabbi Jacob Shababo (Jewish)
K. Ramanathan (Theosophist)	Mehervan Singh (Sikh)

Appendix 2

Dramatis personae

Abdul Aleem Siddiqui (Maulana) – Founder of the All-Malaya Muslim Missionary Society and Muslim Preacher

Abdul Rahman (Tengku) – Second President of the United Malays National Organisation (UMNO), 1951–1971. He was Chief Minister of Malaya (1955 to 1957) and Prime Minister of Malaya (1957–1963), as well as the first Prime Minister of Malaysia (1963 to 1971)

Ahmad Ibrahim – Social activist, lawyer, legislative council member

Al-Attas, Syed Ali – Arab businessman and a member of the Malay Welfare Council

Alsagoff, Syed Ibrahim bin Omar – Arab second President of the All-Malaya Missionary Society, 1932–1964 and Chairman of the Muslim Advisory Board

Attlee, Clement – British Prime Minister, 1945–1951

Baines, Henry Wolfe – Bishop of Singapore, Anglican Church, 1949–1961

Blythe, Wilfred L. – Singapore Colonial Secretary, 1950–1953

Brown, T. A. – Singapore High Court Judge

Burhanuddin Al-Helmy – Co-founder of the Malayan Nationalist Party and Editor of *Melayu Raya*

Che Aminah binte Mohamed – Maria Hertogh's foster mother

Che Zaharah bte Noor Mohamed – President of the *Kesatuan Kebajikan Perempuan Islam* (the Singapore Malay Women's Welfare Association)

Churchill, Winston – British Prime Minister, 1940–1945, 1951–1955

Darus Shariff – Secretary of the Singapore Malay Welfare Council

Gaag, Jacob Van Der – Dutch Acting Consul General in Singapore

Gimson, Franklin C. – Singapore Governor, 1946–1952

Goode, William – Singapore Colonial Secretary, 1953–1957

Haji Ali bin Haji Said Salleh – Chief *Kathi* of Singapore, 1948–1958

Greer, Robert – Minister, Presbyterian Church in Singapore

Griffiths, James – Secretary of State for the Colonies, 1950–1951

Gurney, Henry – British High Commissioner for Malaya

Hertogh, Adeline – Maria Hertogh's natural mother

Hertogh, Adrianus – Maria Hertogh's natural father

Hertogh, Maria – also known as Nadra binte Ma'arof, daughter of Adrianus and Adeline Hertogh who was brought up as a Muslim.

Higham, John D. – Assistant Secretary, Head of Eastern Department and Southeast Asian Department, Colonial Office, 1949–1953

Karim Ghani (Abdul Mohammed Abdul Karim Ghani) – Publisher, political activist and President of the Muslim League of Singapore

Langdon, William A. – American Consul General based in Singapore

Laycock, John C. – Legislative Council member and founder of the Progressive Party

Leach, Lionel – Chairman of the Commission of Enquiry

Lee Kuan Yew – Lawyer, Founder of the People's Action Party and later first Prime Minister of Singapore, 1959–1990

Lim Han Hoe – Medical Practitioner and Member of Executive Council

Lloyd, Thomas – Permanent Under-Secretary of State at the Colonial Office, 1947–1956

Locke, Arthur – Administrative Officer (East), based in Trengganu, Malaya.

M. A. Majid – President of the Muslim Welfare Association

Macdonald, Malcolm – United Kingdom Commissioner General for Southeast Asia, based in Singapore, 1948–1955

Mallal, Bashir – Lawyer and Secretary of the Muslim League of Singapore

Mansoor Adabi – Malay-Muslim Husband of Maria Hertogh, trainee teacher and social activist

Marshall, David Saul – Lawyer, Member of the Singapore Progressive Party and later first Chief Minister of Singapore, 1955–1956

McIntyre, L. R. – Acting Australian Commissioner for Malaya

Mohamed Mustaza – President of the *Pemuda Radikal Melayu* (or PERAM, the Radical Malay Youths)

Montgomery, Bernard Law – Field Marshal of the British Army

Morris, Nigel – Singapore Commissioner of Police, 1952–1957

Namazie, Mohamed Javad [M. J.] – Joint Secretary of the Muslim Advisory Board

Nazir Mallal – Lawyer for Mansoor Adabi and the Melayu Raya Press

Nicoll, John F. – Singapore Governor, 1952–1955

Onn bin Jaafar – First President of United Malays National Organisation (UMNO), 1946–1951

Paglar, Charles Joseph – Medical Practitioner and legislative council member

Pennefather-Evans, John P. – Singapore Commissioner of Police, 1951–1952

Onraet, Rene – Police Adviser to the Malayan Special Branch

Sardon Jubir – Lawyer, social activist and legislative council member

Shinwell, Emmanuel – British Minister of Defense, 1950–1951

Syed Abdullah bin Yahya – President of the Arab Union

Tan Cheng Lock – President of the Malayan Chinese Association

Templer, Gerald – High Commissioner of Malaya, 1952–1954

Wiltshire, R. C. B. – Acting Singapore Commissioner of Police, 1950–1951

Notes

1 Remembering violence

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Indonesia, Ithaca, NY: Cornell University Press, 2006; Jemma Purdey, *Anti-Chinese Violence in Indonesia, 1996–99*, Honolulu: University of Hawai'i Press, 2006 and Donald L. Horowitz, *The Deadly Ethnic Riots*, Berkeley, CA: University of California Press, 2002. Now established as a classic, *The Deadly Ethnic Riots* provides an incisive analysis of the underlying patterns and common elements that gave rise to riots in Singapore, Malaysia, Indonesia and other major cities throughout the world.

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6 Reconciliation

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